



Jenny Staeben <jenny.staeben2@wyo.gov>

FW: Pre-Application Meeting Request - Granite Renewables Site Layer 4 (Lazy V Six) Project

11 messages

Stephanie Blochowiak <Stephanie.Blochowiak@swca.com> Fri, Feb 20, 2026 at 7:08 AM
To: Nancy Vehr <nancy.vehr1@wyo.gov>, Jenny Staeben <jenny.staeben2@wyo.gov>
Cc: Bill Karl <Bill.Karl@swca.com>, "Keyfauver, Andrew" <andrew.keyfauver@wyo.gov>, Ben Gager <Ben.Gager@swca.com>, Carlynn Walker <Carlynn.Walker@swca.com>, Mallory Phillips <Mallory.Phillips@swca.com>

Hello WDEQ team - cross-sharing communications here in case helpful to you.

Nancy and Jenny – please see below communications from our Air Permitting lead for Site Layer 4, Bill Karl.

Andrew – please see attached the recent request for an introductory meeting with WDEQ followed by a pre-application meeting for an Industrial Siting Act permit.

Thank you,

Stephanie Blochowiak AICP PMP | she, her, hers

Principal Natural Resources Team Lead

C +1.970.231.1913

Stephanie.Blochowiak@swca.com



From: Bill Karl <Bill.Karl@swca.com>

Sent: Thursday, February 19, 2026 2:09 PM

To: Keyfauver, Andrew <andrew.keyfauver@wyo.gov>

Cc: Ian Marcus <ian@graniterenewables.com>; Blake Marcus <blake@graniterenewables.com>; Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>; Ben Gager <Ben.Gager@swca.com>

Subject: FW: Pre-Application Meeting Request - Granite Renewables Site Layer 4 (Lazy V Six) Project

Andrew,

I'm following up on my request to schedule a pre-application meeting with WDEQ to discuss the Granite Renewables Site Layer 4 (Lazy V Six) project as described in the trailing email. Could you please advise some

time blocks that WDEQ could be available? Alternatively, please advise if there is another WDEQ point of contact that could assist with scheduling this pre-application meeting.

Thanks Andrew.

Bill

William F. Karl, P. E.

Principal Air Quality Team Lead

SWCA Environmental Consultants

Gainesville, FL

C +1.352.214.5733

Bill.Karl@swca.com



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From: Bill Karl

Sent: Wednesday, February 11, 2026 2:08 PM

To: andrew.keyfauver@wyo.gov

Cc: Ian Marcus <ian@graniterenewables.com>; Blake Marcus <blake@graniterenewables.com>; Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>; Ben Gager <Ben.Gager@swca.com>

Subject: Pre-Application Meeting Request - Granite Renewables Site Layer 4 (Lazy V Six) Project

Mr. Keyfauver,

On behalf of Granite Renewables, SWCA Environmental Consultants (SWCA) is requesting an air quality pre-application meeting with Wyoming Department of Environmental Quality (WDEQ) to discuss potential air regulatory, permitting and modeling requirements for Site Layer 4 (Lazy V Six) project. The Project is a proposed co-located utility-scale energy generation, storage and data center consisting of alternating current (AC) solar energy generation, natural gas generation, battery energy storage system (BESS), hyperscale data center, and ancillary facilities. The Project will be located on private land in Platte and Goshen counties. Preliminary emissions estimates indicate that the Project will trigger PSD review for most PSD pollutants. The purpose of the requested pre-application meeting is to present the project to WDEQ and to provide our preliminary regulatory assessment and project timelines. We would request any preliminary permitting or modeling guidance from WDEQ as well as current permit process review timeline and any suggestions to potentially expedite the permitting process.

Could you please provide several suggested dates/times or block of times that would accommodate WDEQ's schedule? I would suggest planning on a 1-hour pre-application meeting though we may not need that entire time.

Thank you and we look forward to working with you and WDEQ on this project.

Bill Karl

William F. Karl, P. E.

Principal Air Quality Team Lead

SWCA Environmental Consultants

Gainesville, FL

C +1.352.214.5733

Bill.Karl@swca.com



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----- Forwarded message -----

From: Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>

To: Nancy Vehr <nancy.vehr1@wyo.gov>, Jenny Staeben <jenny.staeben2@wyo.gov>

Cc: Ian Marcus <ian@graniterenewables.com>, Blake Marcus <blake@graniterenewables.com>, Ben Gager <Ben.Gager@swca.com>, Carlynn Walker <Carlynn.Walker@swca.com>, Mallory Phillips <Mallory.Phillips@swca.com>

Bcc:

Date: Wed, 18 Feb 2026 19:48:20 +0000

Subject: Site Layer 4 - Introduction and ISA Pre-application Meeting Request

Hello Nancy and Jenny,

On behalf of Site Layer 4, LLC (representatives Ian Marcus and Blake Marcus copied) SWCA Environmental Consultants is reaching out to introduce the Site Layer 4 project and request a meeting with the Wyoming Department of Environmental Quality (DEQ) followed by a pre-application meeting with the Industrial Siting Division (ISD). The project is a proposed co-located utility scale natural gas generation, solar energy generation, battery energy storage system (BESS), data center, and ancillary facilities on approximately 6,339 acres of privately owned land in Platte and Goshen Counties, Wyoming (project or Site Layer 4). The project assumes a closed loop cooling system that will not exceed 800 acre-feet of state waters annually. Site Layer 4 would like to submit a Wyoming Industrial Siting Act (ISA) Permit application this year. Would one of the following time frames be available for a virtual introduction to DEQ and pre-application meeting with ISD? I am including a doodle poll link as well, if helpful to you and team.

Tu 3/3 12-3p MT

We 3/4 8-10a MT

Mo 3/9 11:30a-1:30p MT
We 3/11 8-10a MT

<https://doodle.com/group-poll/participate/bm07MjEa>

We look forward to meeting with you. Sincerely,

Stephanie Blochowiak AICP PMP | she, her, hers

Principal Natural Resources Team Lead

SWCA Environmental Consultants

1063 W Horsetooth Rd, Unit B

Fort Collins, CO 80526

C +1.970.231.1913

Stephanie.Blochowiak@swca.com



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 **Site Layer 4 - Introduction and ISA Pre-application Meeting Request.eml**
40K

Nancy Vehr <nancy.vehr1@wyo.gov>

Fri, Feb 20, 2026 at 1:54 PM

To: Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>

Cc: Jenny Staeben <jenny.staeben2@wyo.gov>, Bill Karl <Bill.Karl@swca.com>, "Keyfauver, Andrew" <andrew.keyfauver@wyo.gov>, Ben Gager <Ben.Gager@swca.com>, Carlynn Walker <Carlynn.Walker@swca.com>, Mallory Phillips <Mallory.Phillips@swca.com>

Stephanie,

Thank you for reaching out. We will coordinate on our end and get back to you on Monday with several proposed dates/times.

Thanks,

-nancy v

[Quoted text hidden]

--

Nancy Vehr
Deputy Director
Wyoming DEQ

200 W. 17th St.
Cheyenne, WY 82002
Ph: 307-777-7192
nancy.vehr1@wyo.gov

E-Mail to and from me, in connection with the transaction of public business, is subject to the Wyoming Public Records Act and may be disclosed to third parties.

E-Mail to and from me, in connection with the transaction of public business, is subject to the Wyoming Public Records Act and may be disclosed to third parties.

Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>

Fri, Feb 20, 2026 at 3:55 PM

To: Nancy Vehr <nancy.vehr1@wyo.gov>

Cc: Jenny Staeben <jenny.staeben2@wyo.gov>, Bill Karl <Bill.Karl@swca.com>, "Keyfauver, Andrew" <andrew.keyfauver@wyo.gov>, Ben Gager <Ben.Gager@swca.com>, Carlynn Walker <Carlynn.Walker@swca.com>, Mallory Phillips <Mallory.Phillips@swca.com>

Nancy,

Sounds good and thank you so much. Sincerely,

[Quoted text hidden]

Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>

Tue, Feb 24, 2026 at 3:12 PM

To: Nancy Vehr <nancy.vehr1@wyo.gov>, Jenny Staeben <jenny.staeben2@wyo.gov>

Cc: Bill Karl <Bill.Karl@swca.com>, "Keyfauver, Andrew" <andrew.keyfauver@wyo.gov>, Ben Gager <Ben.Gager@swca.com>, Carlynn Walker <Carlynn.Walker@swca.com>, Mallory Phillips <Mallory.Phillips@swca.com>

Hello Nancy and Jenny,

Thank you both for the quick response and recent phone calls. For the Site Layer 4 general introduction and informal meeting, could we please lock in the meeting time on Wednesday March 11 from 1-2:30p MT? We are already working on an air permitting specific call next week (Bill and Andrew copied here).

Site Layer 4 Introduction

Wednesday, March 11, 2026, 1-2:30p MT

1-1:45p MT WDEQ Divisions Meeting

1:45-2:30p MT Discuss Industrial Siting Act Permitting

On our side please invite the following:

Stephanie.Blochowiak@swca.com; Mallory.Phillips@swca.com; Carlynn.Walker@swca.com; Ian Marcus ian@graniterenewables.com; Blake Marcus blake@graniterenewables.com

Please reach out with any questions. Thank you,

Stephanie Blochowiak AICP PMP | she, her, hers

Principal Natural Resources Team Lead

C +1.970.231.1913

Stephanie.Blochowiak@swca.com



From: Nancy Vehr <nancy.vehr1@wyo.gov>

Sent: Friday, February 20, 2026 1:54 PM

To: Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>

Cc: Jenny Staeben <jenny.staeben2@wyo.gov>; Bill Karl <Bill.Karl@swca.com>; Keyfauver, Andrew <andrew.keyfauver@wyo.gov>; Ben Gager <Ben.Gager@swca.com>; Carlynn Walker <Carlynn.Walker@swca.com>; Mallory Phillips <Mallory.Phillips@swca.com>

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Nancy Vehr <nancy.vehr1@wyo.gov>

Wed, Feb 25, 2026 at 5:16 AM

To: Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>

Cc: Jenny Staeben <jenny.staeben2@wyo.gov>, Bill Karl <Bill.Karl@swca.com>, "Keyfauver, Andrew" <andrew.keyfauver@wyo.gov>, Ben Gager <Ben.Gager@swca.com>, Carlynn Walker <Carlynn.Walker@swca.com>, Mallory Phillips <Mallory.Phillips@swca.com>

Stephanie,

Meeting confirmed and calendar invite sent.

Thanks,

-nancy v

[Quoted text hidden]

Jenny Staeben <jenny.staeben2@wyo.gov>

Wed, Feb 25, 2026 at 8:39 AM

To: Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>

Cc: Bill Karl <Bill.Karl@swca.com>, "Keyfauver, Andrew" <andrew.keyfauver@wyo.gov>, Ben Gager <Ben.Gager@swca.com>, Carlynn Walker <Carlynn.Walker@swca.com>, Mallory Phillips <Mallory.Phillips@swca.com>

Hi Stephanie,

It was a pleasure speaking with you this morning. Please find the attached information and the rules that apply to the Industrial Siting permit process.

Information regarding the steps of the ISC permitting process is provided in the "002 ISC Process Overview 2026" document.

Please let me know if you have any questions regarding the attached materials.

Best regards,

Jenny

On Fri, Feb 20, 2026 at 7:08 AM Stephanie Blochowiak <Stephanie.Blochowiak@swca.com> wrote:
[Quoted text hidden]

11 attachments

-  **005 ISD Chap 2_2024.pdf**
67K
-  **003 Jurisdiction Threshold 2025.pdf**
165K
-  **002 ISC Process Overview 2026.pdf**
253K
-  **004 ISD Chap 1_2024.pdf**
348K
-  **001 Jursidiction Meeting Checklist.pdf**
141K
-  **006 35-12-101 et seq _ ISD _ 2024.pdf**
106K
-  **007 39-15-111 _Sales Tax IAP 2024.pdf**
71K
-  **008 39-16-111 _Use Tax IAP_2024.pdf**
62K
-  **009 18-5-501 et seq _ Wind & Solar_2024.pdf**
84K
-  **011 EO 2020-1 _ Mule Deer Corridor.pdf**
1449K
-  **010 EO 2019-3 Greater sage-grouse Core Area Protection 8.21.19.pdf**
12853K

Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>
To: Jenny Staeben <jenny.staeben2@wyo.gov>

Thu, Apr 2, 2026 at 3:40 PM

Hello Jenny,

Thank you again for all of your assistance to date as we navigate the industrial siting division process for the proposed Site Layer 4 Project in Goshen and Platte Counties, Wyoming.

For the Industrial Siting Division jurisdictional meeting, can you please remind me if this meeting must be in person? Or, if there is the possibility for a virtual meeting? And then also, does ISD have a preference for in person rather than virtual jurisdictional meeting?

In addition, what might be your team's availability to complete a jurisdictional meeting for the Site Layer 4 Project some time April 29 – May 13?

Thank you,

Stephanie Blochowiak AICP PMP | she, her, hers

Principal Natural Resources Team Lead

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Stephanie.Blochowiak@swca.com

Upcoming OOO: Friday 4/3/26



From: Jenny Staeben <jenny.staeben2@wyo.gov>

Sent: Wednesday, February 25, 2026 8:39 AM

To: Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>

[Quoted text hidden]

[Quoted text hidden]

[Quoted text hidden]

Jenny Staeben <jenny.staeben2@wyo.gov>
To: Kelsey Escobedo <kelsey.escobedo@wyo.gov>

Fri, Apr 3, 2026 at 3:47 PM

Please set up this meeting and the meeting can be virtual. Please remind her of the checklist.

[Quoted text hidden]

Kelsey Escobedo <kelsey.escobedo@wyo.gov>
To: Jenny Staeben <jenny.staeben2@wyo.gov>

Fri, Apr 3, 2026 at 4:23 PM

I believe this will be the pre-jurisdiction meeting. Is that correct? We met with them after the all-division meeting on March 11.

[Quoted text hidden]

--

Kelsey Escobedo
Sr. Economic Analyst
Wyoming DEQ, Industrial Siting Division
(307) 777-7512
Kelsey.Escobedo@wyo.gov

[Quoted text hidden]

Stephanie Blochowiak <Stephanie.Blochowiak@swca.com>
To: Jenny Staeben <jenny.staeben2@wyo.gov>

Tue, Apr 7, 2026 at 11:51 AM

Hi Jenny,

Just left a voicemail message too. Circling back on potential ISD availability for a jurisdictional meeting with Site Layer 4 LLC some time April 29 or 30 or some time May 4 – 8. Mostly likely virtual only if that works for you and team.

Thanks,

[Quoted text hidden]

Jenny Staeben <jenny.staeben2@wyo.gov>
To: Kelsey Escobedo <kelsey.escobedo@wyo.gov>

Tue, Apr 7, 2026 at 3:28 PM

Because they have all the jurisdiction information and preliminary meeting with us - they can set a date for a jurisdiction meeting if they want.

[Quoted text hidden]

Industrial Siting Division Jurisdictional Meeting Checklist

Project Name:

Date of Jurisdiction Meeting:

Applicant Name	
Project Name	
Applicant's Wyoming Attorney	
Company Preparing Application	
Points of Contact for Application Development	
Project Description	
Estimated Construction Cost	
Project Location Map	
Site Plan and Land Ownership	
Legal Description of Project	
Estimated Construction Schedule	

Estimated Materials Cost	
Physical Location for Receipt of Materials	
Number of Phases of Construction	
Estimated Construction Workforce Number and Job Classification by Calendar Quarter, Number of Nonresidents	
Schedule for Final Opinion from State Engineer's Office (Required for ISC Permit)	
Schedule for WDEQ Air Permit Schedule for WDEQ Water Permit Schedule for WDEQ SHWD Permit	
Schedule for County Permit(s)	
Requested Date to Submit ISC Application	
Preference for Section 107 or Section 109 Application	
Exempt Projects: Copies of any studies made to evaluate environmental impact of Project	



**Department of Environmental Quality
Industrial Siting Counsel Permit Process Overview - 2026**

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What is the waiver of a permit application?	Page 4
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What government entities should be contacted?	Pages 7-9

Industrial Siting Division

Jenny C. Staeben, Administrator	307.777.7174
Sierra Oman, Senior Economic Analyst	307.777.7369
Kelsey Escobedo, Senior Economic Analyst	307.777.7152

What is the purpose of the Industrial Siting Act?

The Industrial Siting Act, W.S. §§ 35-12-101 et seq., is designed to protect Wyoming's environmental, social and economic fabric of communities from unregulated large-scale industrial development. By consolidating the review of 19 state agencies and public statements into one comprehensive permitting process, the Industrial Siting Act offers a thorough analysis of potential impacts of a proposed industrial facility.

The Industrial Siting Council (ISC) works to ensure that large-scale industrial development in Wyoming:

- Complies with all applicable law.
- Will not pose a threat of serious injury to the environment nor to the social and economic condition or inhabitants or expected inhabitants in the affected area.
- Will not substantially impair the health, safety or welfare of the inhabitants.
- It has financial resources to decommission and reclaim the facility.
- And, if the development is a large-scale solar and/or wind facility, that it has the financial resources to construct, maintain and operate.

What industrial facilities are required to obtain an ISC permit?

Permits are required for industrial facilities with an estimate construction cost of \$290 million or more.

- Please see W.S. § 35-12-119 for potential permit exemptions for this type of facility.

Industrial facilities required to obtain an ISC permit, regardless of the estimated construction cost include:

- Commercial facilities generating electricity from wind energy that consist of 20 or more wind turbines or expansion of an existing installation resulting in 20 or more turbines.
- Commercial facilities generating electricity from solar power with power capacity of more than 30 megawatts, or solar facilities whose construction disturbs at least 100 acres of land, and solar facility expansions that increase power capacity to more than thirty megawatts or disturb at least one hundred acres of land.
- Industrial facilities that a county commission has referred to the ISC for permitting.
- Commercial radioactive waste management facilities.
- Commercial waste incineration or disposal facilities capable of receiving more than five hundred short tons of household refuse or mixed household and industrial refuse daily. Please see W.S. § 35-11-402(a)(xiii) for potential permit exemptions for these types of facilities.
- Commercial facilities that incinerate or dispose of any regulated quantity of hazardous waste that is subject to hazardous waste shipping manifest requirements under subtitle C of the Resource

Conservation and Recovery Act.

- Facilities constructed solely for the disposal of overburden, development waste rock or refuse from mining. Please see W.S. § 35-12-102 (a)(vii)(D) for potential permit exemptions for these types of facilities.

What is a jurisdictional meeting?

A jurisdictional meeting is a meeting between the Industrial Siting Division (Division) and an ISC permit applicant (applicant). During the meeting, the applicant presents information about the proposed facility to the Division. Based on the information provided by the applicant, the Division determines whether the ISC has jurisdiction over the proposed facility. If the ISC has jurisdiction over the proposed facility, then the applicant must obtain an ISC permit prior to commencing construction of the facility.

When is the appropriate time to schedule a jurisdictional meeting?

A jurisdictional meeting typically occurs six months to one year before the submission of an ISC permit application. It is recommended that facility developers (developer) engage with the Division months in advance of the jurisdictional meeting. Such engagement typically includes a pre-jurisdiction meeting, which provides an opportunity for a developer to discuss jurisdiction meeting requirements and any permit application concerns with the Division prior to attending the jurisdiction meeting.

Where are jurisdiction meetings held?

Jurisdiction meetings may be held in person at WDEQ headquarters in Cheyenne, Wyoming or virtually. Please contact the Division to make arrangements regarding the communication format in which the meeting will take place.

What should the applicant bring to a jurisdictional meeting?

- Please see the Industrial Siting Division Jurisdictional Meeting Checklist for a complete list of information that must be provided the Division at the jurisdiction meeting.
- At the jurisdiction meeting, a developer presents the required jurisdictional information to the Division and answers any questions the Division has regarding the proposed facility.
- All information provided to the Division at the jurisdiction meeting is considered a publicly accessible record, unless otherwise privileged or confidential by law.

The applicant should include the following team members in the jurisdiction meeting:

- Wyoming attorney

- Company representative to request the permit
- The consultant preparing the permit application
- Designation of the points of contact for the development

What is the outcome of a jurisdictional meeting?

Following the jurisdiction meeting, the Division will issue a written determination to the developer; stating whether the ISC has jurisdiction over the project (i.e. whether an ISC permit is required).

What is the waiver of permit application?

At the jurisdictional meeting, if the Division determines the ISC has jurisdiction over the proposed facility, the developer can request a waiver of certain features of the typical ISC permitting process. See W.S. § 35-12-107. Please see W.S. §§ 35-12-107 and 35-12-109 for additional information.

What are the phases of the ISC permitting process?

Phase I - Preliminary discussions with the Industrial Siting Division (Division)

1. Informal discussions
2. Information exchanged about the project and permit procedures
 - a. Issues, guidance, design features
3. Jurisdiction of commenting agencies
4. Project may be indefinite, a concept or a vision

Phase II - Pre-application

1. Jurisdictional Meeting
2. Typically occurs 2 to 12 months before submission of permit application
3. Applicant meets with Division personnel
 - a. Applicant introduces project team (consultants, attorney, principal etc.) to Division personnel
4. Division reviews information provided by Applicant in accordance with the WDEQ/ISD Jurisdiction Meeting Information Checklist
5. Division discusses potential permits required by other entities
6. Division provides guidance regarding permit proceedings
7. Division makes formal decision of whether the Industrial Siting Council (Council) has jurisdiction over the project

- a. Division determines study area
 - b. Division provides instructions regarding submission of the permit application
- 8. Application development
 - a. Impact of project research and discovery
 - b. Division may provide examples of other permit applications
- 9. Meetings with local governments
 - a. Public meetings
 - b. Presentation to state agencies
 - c. One-on-one
- 10. Decision on filing
 - a. A Section 107 waiver or a Section 109 application
- 11. Pre-Application meeting
 - a. Discussion of permitting proceedings and any issues
 - b. Specifications for data presentation
 - c. Coordination with local governments on impact assistance
- 12. Finalize permit proceedings calendar

Phase III - Application Proceedings (165 days)

- 1. Applicant must submit a complete filing that includes:
 - a. Fee
 - b. Transmittal certification letter
 - c. Application
 - d. 15 hard copies
 - e. 50 USB copies with bookmarked/searchable .pdf file
- 2. Notice of Application
 - a. Division completes within 10 days after submission of an application
 - b. Certified letters to potentially impacted parties
 - c. Public notice submitted to the area primarily affected
- 3. Notice of Deficiency (NOD)
 - a. Division issues NOD within 30 days from application submission
 - b. Applicant responds to NOD within 45 days from receipt of NOD
- 4. Notice of Continued Deficiency (NOCD)
 - a. Applicant's responds to NOCD within 15 days of receiving NOCD

5. Notice of Completeness
6. Agency comments/recommendations
 - a. Agency submits comments and permit condition recommendations to Division within 60 days of receiving notice the application has been filed
 - b. Division and Applicant negotiate proposed permit conditions
7. Pre-hearing conference
 - a. Entry of Appearances are filed by parties not less than 20 days before the hearing date
 - b. Pre-hearing conference occurs 10 to 20 days before the permit hearing
 - c. Submission of pre-hearing statements, exhibits and pre-filed testimony
 - i. Division includes proposed permit conditions in its exhibits
8. State Engineer's Office (SEO)
 - a. Issues Preliminary Opinion
 - b. Issues Final Opinion
 - c. SEO must confirm in writing that proposed facility will use less than 800 ac/ft of water
 - d. Application is incomplete if neither confirmation in writing that facility will use less than 800 ac/ft or a Final Opinion is not submitted to the Division before the hearing
9. Permit hearing before the Council
 - a. Occurs within 120 days from submission of the application
 - b. Is a bifurcated proceeding because granting/denial of the permit must be determined before impact assistance can be decided
10. Permit issued within 45 days after close of the hearing
 - a. Served to all parties within 10 days of execution
 - b. Appeal of permit expires 30 days from date of service of the Permit

Phase IV – Construction

1. Three years to start construction
2. Compliance
 - a. Identify compliance coordinator in writing
 - b. Complete of compliance training
 - c. Provide compliance plan to Division prior to construction
3. Notice of start of construction
 - a. Start of impact assistance
4. Changes to terms of Permit
 - a. Promises/description in Application

- b. Appeals to council by parties
 - i. Changes in impact assistance
 - ii. Unforeseen impacts from project
- 5. Reports
 - a. Calendar Quarter(ly) Reports
 - b. Annual Reports start on the anniversary of the construction start date
 - c. Review of construction schedule and progress
 - d. Division provides Project updates to Council at quarterly meetings
- 6. Notice of 90% completion
 - a. Termination of impact assistance
- 7. Final Reports
 - a. Final Quarterly Report
 - b. Final Annual Report at close of one year of operation

Phase V – Operations

- 1. Permit amendments
 - a. Unforeseen issues
 - b. Party requests for impact assistance review
 - c. Permittee sells Project or company re-organization
 - d. Permit termination or surrender

What government entities should be contacted?

Wyoming Department of Environmental Quality

Don Newton, Administrator - Abandoned Mine Lands Division	307.777.7062
Amber Potts, Administrator - Air Quality Division	307.777.3746
Brandi O'Brian, Administrator - Land Quality Division	307.777.7046
Suzanne Engels, Administrator - Solid and Hazardous Waste Division	307.777.5447
Jennifer Zygmunt, Administrator - Water Quality Division	307.777.5985
Lily Barkau, Natural Resources Program Manager - Groundwater Permits	307.777.5973
Keenan Hendon, Water/Wastewater Section Manager- Wastewater Permits	307.777.7075
Jason Thomas, WYPDES Section Manager - Stormwater & Surface Water Permits	307.777.5504

Wyoming State Engineer's Office

Ryan Cox, Administrator, Ground Water Division	307.777.5063
Jeff Cowley, Administrator, Interstate Streams Division	307.777.1942
Wyoming Public Service Commission	
John Burbridge, Chief Council	307.777.7429
Wyoming State Parks & Cultural Resources	
Sara Sheen, Director, State Historic Preservation Officer	307.777.7498
Brian Beetles, Deputy, State Historic Preservation Officer	307.777.8594
Orrin Koenig, Senior Archeologist	307.777.5497
Wyoming Game and Fish Department	
Will Schultz, Habitat Protection Program Supervisor	307.777.4587
Wyoming Department of Health	
Emily Curren, State Public Health Veterinarian	307.777.5825
Wyoming Department of Transportation	
District 1 Cheyenne Ralph Tarango, District Engineer	307.745-2100
District 2 Casper Mark Williams, District Engineer	307.473-3221
District 3 Rock Springs John Eddins, District Engineer	307.352-3031
District 4 Sheridan Scott Taylor, District Engineer	307.674-2314
District 5 Basin Pete Hallsten, District Engineer	307.568-3425
Wyoming Department of Fire Prevention and Electrical Safety	
Byron Mathews, Fire Marshal	307.777.7288
Wyoming Department of Workforce Services	
Tony Glover, Manager, Research & Planning Division	307.473.3801
Carola Cowan, Supervisor, Bureau of Labor Statistics Programs	307.473.3804
Michael Moore, Research Supervisor, Research & Planning Division	307.473-3814
Wyoming Department of Revenue	

Alan Lemaster, Appraisal Services Supervisor	307.777.3450
Office of State Lands and Investment	
Stacia Berry, Director	307.777.7331
Wyoming Department of Agriculture	
Chris Wichmann, Natural Resources Division Manager	307.777.6576
Wyoming Department of Education	
Megan Delgenfelder, Superintendent	307.777.7675
Wyoming State Geological Survey	
Ranie Lynds, Interim Director and State Geologist	307.745.2250
Wyoming Business Council	
Josh Dorrell, Chief Executive Officer	307.777.2800
Wyoming Department of Family Services	
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Department of Environmental Quality

To protect, conserve and enhance the quality of Wyoming's environment for the benefit of current and future generations.



Mark Gordon, Governor

Todd Parfitt, Director

By: Jenny C. Staeben, Administrator, Industrial Siting Division

Date: March 1, 2025

Subject: **Industrial Siting Council;
Jurisdictional Threshold Construction Cost 2025**

The Industrial Siting Division has calculated the jurisdictional threshold construction cost for 2024, in accordance with Wyoming Statute § 35-12-102(a)(vii). The previous jurisdictional threshold construction cost was \$283,166,876.00. **The updated jurisdictional threshold construction cost for 2025 is \$290,444,666.00.**

Eligibility for a Certificate of Insufficient Jurisdiction is 80% of the current jurisdictional threshold construction cost, which will be \$232,355,732.80.

The calculation for the jurisdictional threshold construction cost is the Composite Index multiplied by the estimated construction cost of \$96,900,000. The Industrial Siting Council approved the Composite Index to include the Bureau of Labor Statistics indices on March 30, 2015; the indices are detailed below. See Wyo. Stat. §35-12-102(a)(vii). The indices used to calculate the jurisdictional threshold construction cost include indices for construction machinery and equipment, general-purpose machinery and equipment, industrial commodities and the employment cost index for the month of December 2024.

Bureau of Labor Statistics	(A)		(B)	(C) A/B	(D)	(E) C*D
	Current Index	Previous Index	Base	Value	Weight	Value
			May-87	Dec-24		
Construction Machinery & Equipment	307.68	304.94	109.2	2.82	0.25	0.70
General Purpose Machinery & Equipment	343.35	332.01	108.0	3.18	0.20	0.64
Industrial Commodities	252.36	250.50	101.9	2.48	0.20	0.50
Employment Cost Index (Civilian Workers)	168.30	161.90	50.7	3.32	0.35	1.16
Composite Index					1.00	3.00
2.99 x \$96,900,000 = \$290,444,666			Threshold		\$290,444,666	
80% of Threshold = \$232,355,733			Certificate of Non-		\$232,355,733	

The jurisdictional threshold construction cost stated above is the new construction cost threshold used by the Division to determine jurisdiction until such time that a new jurisdictional threshold is calculated. A new jurisdictional threshold construction cost is determined each year. See Wyo. Stat. §35-12-102(a)(vii).

Environmental Quality, Dept. of

Industrial Siting Council

Chapter 1: Industrial Development Information and Siting Rules and Regulations

Effective Date: 08/09/2018 to Current

Rule Type: Current Rules & Regulations

Reference Number: 020.0004.1.08092018

CHAPTER 1
INDUSTRIAL DEVELOPMENT INFORMATION AND SITING
RULES AND REGULATIONS

Section 1. **Authority.**

These rules and regulations are promulgated by the Wyoming Industrial Siting Council (Council), pursuant to the authority granted the Council by the Wyoming Industrial Development Information and Siting Act; W.S. 35-12-101 through 35-12-119. If any provision of these rules or the application thereof to any person or circumstances is held invalid, such invalidity shall not affect other provisions or applications of these rules which can be given effect without the invalid provision or application and to this end the provisions of these rules are declared to be severable.

Section 2. **Definitions.**

Definitions contained in W.S. 35-12-102, shall be applicable, where appropriate. The following terms used in these regulations shall have the following meanings, unless the context otherwise requires:

(a) “Act” means the Industrial Development Information and Siting Act, W.S. 35-12-101 through 35-12-119.

(b) “Area or local government primarily affected by the proposed industrial facility” means:

(i) Any defined geographical area in which the construction or operation of the industrial facility may significantly affect the environment, population, level of economic well-being, level of social services, or may threaten the health, safety or welfare of present or expected inhabitants.

(ii) Any such county, incorporated municipality, school district, or combination thereof formed under the Wyoming Joint Powers Act within (i) above.

(c) “Areas of site influence” means the areas which may be affected environmentally, socially, or economically, in any significant degree, by the location of the industrial facility at the proposed site. A separate “area of influence” may be considered for each resource identified in Section 8(i) of these rules.

(d) “Complete application” means an application which contains all of the information required by W.S. 35-12-109 and Section 8 of these rules, except those portions of the application requirements that the Council has waived pursuant to W.S. 35-12-107; excluding proprietary information. If proprietary information is withheld, it must be stated in the application.

(e) “Construction schedule” means the schedule of events by time, from the commencement of construction through completion of construction and commencement of commercial operation of the facility, as described in the application and any approved updates.

(f) “Cumulative impacts” means the combined impacts upon the environment or the social or economic conditions resulting from construction and operation of the proposed industrial facility and from construction and operation of other on-going or proposed developments in the area of site influence. Proposed developments to be considered in cumulative impacts include those

facilities which have public information available, or are actively permitting.

(g) “Decommissioning” means the removal from service, disassembly, and proper off-site disposal of the facility components.

(h) “Dependent component” means any ancillary facility to be constructed by the applicant that is necessary and essential to the construction or operation of the industrial facility. Dependent components are considered part of the industrial facility. Facilities described at W.S. 35-12-119 as exempt are not dependent components.

(i) “District or Special District” means the following:

(i) A special purpose local government created pursuant to W. S. 16-1-101 et seq. (Joint Powers Act) and whose registry as such is maintained by the Wyoming Secretary of State; or

(ii) A public school district.

(j) “Effective date of the Act” means May 30, 1975.

(k) “Environment” means the physical conditions existing within the affected area, including, but not limited to, land, air, water, minerals, flora, wildlife, noise, and objects of historic, aesthetic, or recreational impacts over which the Council has jurisdiction.

(l) “Estimated construction costs” means the anticipated total costs and expenses attributable directly to the planning, design, erection and construction of the applicant’s proposed facility. The estimate shall be based upon current cost projections within the possession of the applicant. Such costs and expenses shall include, but are not limited to, the following: costs of materials, supplies and equipment, including allocable construction equipment costs; labor and management personnel compensation and salaries; contract and subcontract fees; employee benefits; employment; sales and use taxes; per diem and subsistence allowances; and all other costs necessary and incident to the construction of the proposed facility. For purposes of estimating construction costs, the proposed facility shall be described and considered to include all units and components at the proposed site location, and which are or have been included in current plans for development of the proposed site. Exempt activities and site acquisition expenditures including the acquisition costs of mineral rights and interests are not to be included in the estimated construction cost.

(i) In computing an estimate pursuant to Section 2(l) above, the estimated costs for materials, supplies, equipment and allocable construction equipment shall include:

(A) The total costs of materials, supplies, and equipment incorporated into or otherwise necessary to construct the facility;

(B) The total costs of equipment used in site preparation and construction, which is further required to place the proposed facility into operation; and

(C) The allocable costs of that equipment used in site preparation and construction of the proposed facility, but which is not retained on site, and is not required to place the proposed facility into operation.

(ii) The proposed facility's estimated construction cost shall include the costs of access roads including modifications and improvements to existing roadways when such modifications or improvements are necessitated by the proposed facility, the costs of any rail facilities constructed for the substantial use of the proposed facility, and costs of other dependent components.

(m) "Estimated materials costs" means the estimated costs of materials, supplies and equipment, including allocable construction equipment costs, necessary and incident to the construction of the proposed facility.

(n) "Financial assurance" means a security serving as collateral in the form of a surety bond, certificate of deposit, corporate guarantee, letter of credit, deposit account, insurance policy or other form acceptable to the Director to insure proper decommissioning and reclamation activities.

(o) "Financial capability" means evidence of the financial strength of the applicant to construct, maintain, operate, decommission and reclaim the facility.

(p) "Health" shall mean the state of being sound in body or mind and includes psychological as well as physical well-being.

(q) "Information applicant" means any person who intends to initiate a construction activity with an estimated construction cost of at least ninety-six million nine hundred thousand dollars (\$96,900,000.00) adjusted by applicable cost indices as provided in W.S. 35-12-102(a)(vii), which construction activity also falls within W.S. 35-12-119.

(r) "Job classification" means those of the 2010 Standard Occupational Classification System of the U. S. Department of Labor.

(s) "Mineral rights" means fee, leasehold, or mining claim interests in the mineral estate.

(t) "Mitigated impacts" means impacts that are minimized by limiting the magnitude of the impact, or are compensated for by replacing or providing substitute resources or supplemental environmental projects.

(u) "Oil and gas drilling facilities" are any and all activities in connection with or associated with drilling, testing, or completing oil and gas wells including well access roads and any electrical service, mobile and fixed equipment, and services used for drilling, completing, testing, maintaining and repairing oil or gas wells and related activities.

(v) "Oil and gas producing facilities" are any and all activities necessary to extract oil or gas or both from a naturally occurring underground reservoir containing a common accumulation of oil or gas or both. Producing facilities include the oil or gas well downhole equipment, well heads, flow controls, and artificial lift equipment including compressors. Producing facilities also include those facilities used for pressure maintenance, enhanced recovery, or produced water disposal.

(w) "Permit termination" means cessation or termination of a permit and all permit conditions, which were issued by the Council for the construction and operation of an industrial facility.

(x) "Phase" or "phase of construction" means any future expansion or

modification of the facility described in the application pursuant to W.S. 35-12-109 (a)(vi), and interpreted for jurisdiction by the Division.

(y) “Projection period” means the period of time over which projections of socioeconomic factors are made. The projection period shall not exceed five (5) years beyond the period during which stable operation of the industrial facility is achieved.

(z) “Reclamation” means the process of restoring all lands affected by the proposed industrial facility or its dependent components to a use for grazing, agriculture, recreational, wildlife purpose, or any other purpose of greater or equal value which satisfies the landowner or land management agency. The process may require removal of structures, backfilling, grading, contouring, compaction, stabilization, revegetation and drainage control.

(aa) “Safety” shall mean freedom from injury or threat of injury. Such injury or threat of injury may be premised on crime rates, traffic accident rates, dangers of industrial accidents or mishaps, or other similar considerations.

(ab) “Studies” shall include all social, economic or environmental reports, analyses, evaluations or compilations dealing with the impact of the industrial facility whether prepared by the applicant, the applicant’s employees, or consultants retained by the applicant. Where such studies are part of a longer report or study, the applicant may sever such study from the larger document for purposes of submission to the Council.

(ac) “Study Area” is the geographic and political boundary, as designated by the Administrator for the required governmental, social, and economic studies required for applications.

(ad) “Unmitigated impacts” means identified impacts that are not minimized by limiting the magnitude of the impact, or are not compensated for by replacing or providing substitute resources or supplemental environmental projects.

(ae) “Welfare” shall mean considerations of public convenience, public wellbeing and general prosperity. The term also properly covers those subjects encompassed under health and safety.

(af) “Wellfield activity” means any and all activity directly associated with the development, operation, or abandonment of oil and gas drilling or producing facilities. Wellfield activity includes but is not limited to construction of flow lines, heaters, treaters, dehydrators, fluid separators and stabilizers. Storage tanks not within the definable boundaries of an industrial facility are wellfield activities.

Section 3. Certificate of Insufficient Jurisdiction.

No person shall commence to construct an industrial facility unless an application has been filed in conformity with these rules and regulations and a permit has been issued by the Council.

(a) Any person who intends to initiate construction activity which may qualify as an industrial facility under the Act shall submit to the Division an application for a Certificate of Insufficient Jurisdiction which shall demonstrate that the proposed construction activity does not qualify as an industrial facility under the Act, and that the Council lacks sufficient jurisdiction to require that an application for a permit be submitted.

(b) Industrial facilities that meet one of the following criteria shall not need a certificate of insufficient jurisdiction:

(i) The estimated construction cost is less than eighty percent (80%) of the current threshold construction cost.

(ii) A commercial waste incineration or disposal facility is not physically capable of receiving four hundred (400) short tons or more per day of household or mixed household and industrial waste.

(c) An application for a Certificate of Insufficient Jurisdiction shall contain the following information:

(i) A description of the proposed construction activity.

(ii) An estimated construction cost for the proposed construction activity that is in conformity with Section 2 (m) of these regulations.

(d) When an application for a Certificate of Insufficient Jurisdiction is submitted to the Division, the Administrator shall within ten (10) days after the application is submitted:

(i) Serve notice of the application upon each local government that would be entitled to receive service of a copy of the application for a permit under W.S. 35-12-110(a)(i), as if the person submitting the application for a Certificate of Insufficient Jurisdiction was submitting an application for a permit.

(ii) Publish notice of such application for a Certificate of Insufficient Jurisdiction throughout the state for four (4) consecutive weeks in newspapers of general circulation.

(iii) Such notice shall state the following:

(A) A description of the construction activity proposed by the applicant for a Certificate of Insufficient Jurisdiction.

(B) The estimated construction cost of the construction activity proposed by the applicant for a Certificate of Insufficient Jurisdiction.

(C) A statement that any interested party, who would be a party in any permit proceeding with respect to the construction activity, may file objections to the issuance of a Certificate of Insufficient Jurisdiction within thirty (30) days after the last date of publication of notice.

(e) The Director shall present an application for a Certificate of Insufficient Jurisdiction to the Council after thirty (30) days has expired from the last date of publication of notice of application with his recommendation for issuance or denial. The Council shall thereupon, after consideration of the application and the objections thereto, either issue or deny the application for a Certificate of Insufficient Jurisdiction.

(f) The decision of the Council to issue a certificate shall be effective immediately.

Section 4. **Jurisdictional Meeting**

(a) Persons requesting a jurisdictional determination for the following from the Division shall first request a jurisdictional meeting with the Division:

- (i) A permit pursuant to W. S. 35-12-109;
- (ii) Waiver or waivers of requirements;
- (iii) A certificate of non-jurisdiction;
- (iv) An informational filing pursuant to W. S. 35-12-119 (a) and (b); or
- (v) An exemption from a permit pursuant to W.S. 35-12-119 (c).

(b) The jurisdictional meeting shall be held when the preliminary facility design and estimated construction schedule are known.

(c) The Person seeking the jurisdictional meeting shall provide information to describe the facility and shall include the following:

- (i) Details of ownership; and points of contact;
- (ii) Description of the proposed facility including a site plan;
- (iii) Proposed facility location and land ownership;
- (iv) The location for the receipt of purchase and where title changes;
- (v) Any future phases to be requested in the application;
- (vi) The estimated cost of construction, including preliminary estimated material costs;
- (vii) Information which the applicant feels to be pertinent.

(d) The Director shall provide a written decision within 15 days following the jurisdictional meeting stating whether or not the facility is within the jurisdiction of the Siting Council and provide notice of any application fee pursuant to W.S. 35-12-105(g) and W. S. 35-12-109(b). The Director may provide conditional determinations. The Director, according to the accounting standards and procedures used by the State of Wyoming, will perform the deposit of revenues, payment of expenditures, and accounting. Any such fee will:

- (i) Be determined by the Director in accordance with the provisions of W.S 35-12-109 (b) and (d);
- (ii) Be collected at the time of the filing of an application;
- (iii) Recover the full actual costs to the Division and Council for the activities specified by W. S. 35-12-109(b) and (d);

(iv) May be subject to revision by the Director if the fees are determined to be insufficient to pay the full actual cost of the Division and Council as specified by W.S. 35-12-109 (b) and (d).

(e) If the Director determines that the information provided by the person is incomplete, the Director shall respond in writing within 15 days following the jurisdictional meeting stating that the information is incomplete and that a determination cannot be made at that time.

Section 5. Pre-Filing and Filing.

(a) At the jurisdictional meeting the Administrator shall specify the study area for the project application. The study area provides the boundaries for studies of counties and municipalities.

(b) The applicant shall notify and describe the project to local governments in the study area. The notice and description shall be sent by certified mail, return receipt, and shall include a description of the project, its location, the expected construction period, the number of construction workers, transportation routes for construction materials, the anticipated economic benefits of the project, the anticipated impacts from the project and offer methods to comment to the applicant and attend scheduled informational meetings. The notice and description will be mailed no later than 10 business days prior to the first informational meeting.

(i) Informational meetings shall be held no later than 60 days before the filing of an application and shall be in the principal city of the county and at a place as close to the site of the project as is practical.

(c) The date of filing of an application is that date when all of the following have been received by the Division:

- (i) The application fee;
- (ii) The application document; and
- (iii) The letter of transmittal.

(d) When the application is filed, the Division shall provide the applicant with a written receipt for the application which shall stipulate the application has been filed on that date.

(e) After receipt and examination of the application the Administrator shall determine the area primarily affected.

(f) Counties who wish to make a referral according to W.S. 18-5-509 shall provide the following:

(i) Information obtained from the applicant as described in Section 4(c) subparagraphs (i) through (v).

(ii) Justification why the referral is necessary. The Director will make a decision on the referral and notify the county within fifteen (15) days from the date of the referral.

Section 6. General Format of Application or Request for Waiver.

In accordance with W.S. 35-12-107 and W.S. 35-12-109, the applicant shall abide by the following rules and conditions:

(a) Prior to submitting its application or request for waiver, each applicant shall confer with the Division to determine the number of copies of the application or request for waiver to be filed with the Division. The applicant shall file a minimum of forty (40) copies of the application with the Division. The applicant shall not be required to file more than seventy-five (75) copies of the application without prior approval of the Council.

(b) The application or request for waiver shall be typed, printed, or otherwise legibly reproduced on 8 ½-inch by 11-inch paper. Maps, drawings, charts, or other documents that are bound in the application or request for waiver shall be cut or folded to 8 ½-inch by 11-inch size. All pages in an application or request for waiver shall be consecutively numbered.

(c) The application or request for waiver shall be verified by the applicant as to its truth and accuracy, upon oath or affirmation. Such application or request for waiver shall be signed by the president of the corporation or owner of the company, or another official designated by the bylaws to obligate and bind the applicant. The application or request for waiver shall be accompanied by a letter of transmittal which shall contain the following information:

(i) The company's request for a permit or waiver of permit to construct and operate the facility; and

(ii) The designated individual to serve as point of contact for the permit process including address of service of notice.

(d) The Applicant shall notify the Division immediately whenever, subsequent to submitting an application or waiver request under the Act, a material change in the design, location, schedule, or scope of the industrial facility has occurred. Such notification by the applicant may constitute a request for amendment pursuant to W.S. 35-12-106(c) and Section 15 of these rules if the Division determines that such differences materially change the nature, location or impact of the proposed industrial facility.

(e) An applicant may apply for a permit to construct an industrial facility in phases over an extended period.

(f) As part of the application, the applicant shall submit a summary of the entire application. The summary shall contain references to supporting data and analysis contained in the application.

(g) Whenever the Act or these rules require information concerning the industrial facility to be submitted to the Council and the applicant is required to submit the same or similar information to another state, federal or local agency having jurisdiction, the applicant may submit the information to the Council in the same format required by the other agency.

(h) Applicants may fulfill informational requirements of the regulations and the Act by describing the area of jurisdiction covered by other regulatory agencies in the state.

(i) The application shall contain a table containing all commitments stated in the application and provide the page number where each commitment is discussed in the body of the

application. The table shall also provide a narrative of all the commitments made to local governments in accordance with W.S. 35-12- 107(b)(xi) and W.S. 35-12-109(a)(xiii).

Section 7. Request for Waiver.

(a) The request for waiver shall contain the information required by the Act with respect to both the construction period and on-line life of the proposed industrial facility and any additional information the applicant considers relevant to the needs of the Council and local units of government for making an informed decision for granting or refusing the waiver request. The waiver application shall follow the same format as the application contents described in Section 8, less those parts identified as not necessary by the Administrator.

(b) The Council shall grant a request for a waiver either as proposed or as modified by the Council as provided by the act and considering the following:

(i) In order to find that the industrial facility would not produce an unacceptable impact, the Council must find that the granting of a waiver will not result in a significant detriment to, or significant impairment of, the environment or the social and economic condition of present or expected inhabitants. If applicable, the Council may consider direct or cumulative impacts not within the area of jurisdiction of another regulatory agency in this state.

(ii) A proposed industrial facility is considered to be designed in compliance with applicable local ordinances, regulations and compatible with land use plans if it meets applicable requirements relative to zoning laws, building codes, health and safety laws, and other laws of a similar nature in force on the date of submittal of the request for waiver.

(c) If the Council finds that the considerations of subsection (b) above have been met, the Council may waive all of the application requirements of the Act, and shall issue a permit for the industrial facility in accordance with W.S. 35-12-113. If the Council is not able to find that these requirements are met, the Council may deny the request, and issue an order requiring that an application for a permit be filed pursuant to W.S. 35-12-109. The Council may also waive any part(s) of the application requirements of W.S. 35-12-109 if it determines that it is justified by the circumstances.

Section 8. Application Information to be Submitted.

In accordance with W.S. 35-12-109, the application shall contain the information required by the Act with respect to both the construction period and online life of the proposed industrial facility and the following information the Council determines necessary:

(a) The application shall state the name, title, telephone number, mailing address, and physical address of the person to whom communication in regards to the application shall be made.

(b) A description of the specific, geographic location of the proposed industrial facility. The description shall include the following:

(i) Preliminary site plans at an appropriate scale indicating the anticipated location for all major structures, roads, parking areas, on-site temporary housing, staging areas, construction material sources, material storage piles and other dependent components; and

(ii) The area of land required by the industrial facility and a land ownership map covering all the components of the proposed industrial facility.

(c) A general description of the major components and dependent components of the proposed industrial.

(d) A description of the operating nature of the proposed industrial facility, the expected source and quantity of its raw materials, and energy requirements. The description shall include, but is not limited to, the following:

(i) The proposed on-line life of the industrial facility and its projected operating capacity during its on-line life; and, for transmission lines exceeding one hundred fifteen thousand (115,000) volts included as part of the proposed industrial facility, a projection indicating when such lines will become insufficient to meet the future demand and at what time a need will exist to construct additional transmission lines to meet such demands; and

(ii) Products needed by facility operations and their source.

(iii) Estimated material costs for the project.

(e) A statement that shall be a reasonable estimate of the calendar quarter in which construction of the industrial facility will commence, contingent upon the issuance of a permit by the Council.

(f) A statement that shall be a reasonable estimate of the maximum time period required for construction of the industrial facility and an estimate of when the physical components of the industrial facility will be ninety (90) percent complete, and the basis for that estimate.

(g) The applicant shall identify what it deems to be the area of site influence and recommends as the local governments primarily affected by the proposed industrial facility as defined in Sections 2 (b), (c) and (d). The immediately adjoining area(s) and local governments shall also be identified with a statement of the reasons for their exclusion from the list of area(s) or local governments primarily affected by the proposed industrial facility.

(h) Using tables, provide a detailed tally of the estimated work force to construct and to operate the facility showing the following information:

(i) All workers providing direct labor and direct support; (safety, supervision, inspection) at the work site;

(ii) Information by calendar month and year from the commencement of construction through the first year of operation;

(iii) Identify and provide totals of those which are construction and those which are permanent;

(iv) Identify and provide quarterly totals of the number, job classification and recurrence; of those which are estimated to be in-migrating (from outside the study area at the time of hire for the facility) and of those pre-existing employees of the applicant engaged in construction;

(v) Provide estimates of wages; and

(vi) Provide estimates of paid benefits including per diem and paid fees.

(i) The social and economic conditions in the area of site influence shall be inventoried and evaluated as they currently exist, projected as they would exist in the future without the proposed industrial facility and as they will exist with the facility. Prior to submitting its application, each applicant shall confer with the Administrator to define the needed projections, the projection period and issues for socioeconomic evaluation. The evaluation shall include, but is not limited to:

(i) An analysis of whether or not the use of the land by the industrial facility is consistent with state, intrastate, regional, county and local land use plans, if any. The analysis shall include the area of land required and ultimate use of land by the industrial facility and reclamation plans for all lands affected by the industrial facility or its dependent components;

(ii) A study of the area economy including a description of methodology used. The study may include, but is not limited to, the following factors:

(A) Employment projections by major sector;

(B) Economic bases and economic trends of the local economy;

(C) Estimates of basic versus non-basic employment;

(D) Unemployment rates;

(iii) A study of the area population including a description of methodology used. The study may include, but is not limited to, an evaluation of demographic characteristics for the current population and projections of the area population without the proposed industrial facility;

(iv) An analysis of housing facilities by type, including a quantitative evaluation of the number of units in the area and a discussion of vacancy rates, costs, and rental rates of the units. The analysis should include geographic location, including a quantitative evaluation of the number of units in the area required by the construction and operation of the proposed industrial facility and a discussion of the effects of the proposed industrial facility on vacancy rates, costs, and rental rates of the units. Specific housing programs proposed by the applicant should be described in detail;

(v) An analysis of effects on transportation facilities containing discussion of roads (surface type), and railroads (if applicable).

(vi) Public facilities and services availability and needs, which may include, but are not limited to:

(A) Facilities and personnel required for the administrative functions of government including specific new demands or increases in service levels created by construction of the proposed industrial facility;

(B) Sewer and water impacts shall describe the distribution and treatment facilities including the capability of these facilities to meet projected service levels required due to the proposed industrial facility. Use of facilities by the proposed industrial facility should be assessed separately from population related increases in service levels. If required pursuant to W.S. 35-12-108, the application shall contain the Water Supply and Water Yield Analysis and Final Opinion of the State Engineer;

(C) Solid waste collection and disposal services including the capability of these facilities to meet projected service levels required due to the proposed industrial facility. Use of facilities by the proposed industrial facility should be assessed separately from population related increases in service levels;

(D) Existing police and fire protection facilities including specific new demands or increases in service levels created by the proposed industrial facility;

(E) An analysis of health and hospital care facilities and personnel including specific new demands or increases in service levels created by the proposed industrial facility;

(F) Human service facilities, programs and personnel, including an analysis of the capacity to meet current demands and a description of problems, needs, and costs of increasing service levels;

(G) An analysis of community recreational facilities and programs and urban outdoor recreational opportunities including specific new demands or increases in service levels created by the proposed industrial facility;

(H) Educational facilities, including an analysis based upon enrollment per grade, physical facilities and their capacities and other relevant factors with an assessment of the effect that the new population will have on personnel, programs and facilities;

(I) Problems due to the transition from temporary, construction employees to operating workforces should be addressed. Changes in levels of services required as a result of the proposed industrial facility should specifically be addressed. Cumulative impacts of the proposed industrial facility and other developments in the area of site influence should be addressed separately. This assessment should examine increased demands associated with the construction and operational phases of the proposed industrial facility, as well as effects on the level of services as the construction or operational workforces decline;

(J) A copy of any studies that may have been made of the social or economic impact of the industrial facility.

(vii) A fiscal analysis over the projection period for all local governments and special districts identified by the applicant as primarily affected by the proposed industrial facility, including revenue structure, expenditure levels, mill levies, services provided through public financing, and the problems in providing public services. If modeling software is used, then identifying the software program and providing a summary table of the data set inputs (including any multipliers) for the analysis is required. The analysis may include, but is not limited to:

(A) An estimate of the cost of the facility with a separate line item for the estimated material costs;

(B) An estimate of the sales and use taxes to be paid directly by the applicant to construct the facility. This estimate should be broken down by year.

(C) If a facility is located in more than one county, the estimate under subsection (B) above shall be broken down by year and for each affected county.

(D) Estimates of impact assistance payments which will result from the

project.

(E) An estimate of the cost of components of the industrial facility which will be included in the assessed value of the industrial facility for purposes of ad valorem taxes for both the construction and operations periods. This estimate should include a breakdown by county if the components of the industrial facility will be located in more than one county.

(j) An evaluation of the environmental impacts as they would exist if the proposed industrial facility were built. Each evaluation should be followed by a brief explanation of each impact and the permit issued that regulates the impact. If the impact is not regulated by a state regulatory agency or federal land management agency, the application must include plans and proposals for alleviating adverse impacts. Cumulative impacts of the proposed industrial facility and other projects in the area of site influence should be addressed separately.

(k) The applicant shall describe the procedures proposed to avoid constituting a public nuisance, endangering the public health and safety, human or animal life, property, wildlife or plant life, or recreational facilities which may be adversely affected by the estimated emissions and discharges from the proposed facility.

(l) The applicant shall provide certification that all local governments in the study area were provided notification of the facility, a description of the proposed project and an opportunity to ask the applicant questions regarding the proposed project at least thirty (30) days prior to the submission of the application. The certification shall include a description of the actual process used.

(m) For a permit application, the applicant shall provide a description of land use and changes to land use as a result of the project. Such will include:

- (i) The project site, transportation routes, utilities, and collector systems.
- (ii) County land use plans and zoning, if any.
- (iii) Changes to agricultural production as a consequence of the project.

(n) For a permit application, the applicant shall provide the following:

(i) An evaluation of potential impacts together with any plans and proposals to alleviate potential impacts. The evaluation shall include a recent survey for threatened and endangered and rare species of concern (flora & fauna), as identified in the state wildlife action plan prepared by the Wyoming Game and Fish Department, found at the site location.

(ii) An evaluation of the potential impacts to terrestrial and aquatic wildlife and any plans or proposals to alleviate potential impacts.

(o) The applicant shall provide a description of the methods and strategies to maximize employment and utilization of the existing local or in-state contractor and labor force during the construction and operation of the facility.

(p) The applicant shall provide a description of the impact controls and mitigating measures proposed to mitigate and alleviate adverse environmental, social and economic impacts associated with the construction and operation of the proposed industrial facility, including:

(i) Monitoring programs to assess effects of the proposed industrial facility and the overall effectiveness of impact controls and mitigating actions.

(ii) Impact controls and mitigating measures proposed by the applicant to alleviate adverse environmental, social and economic impacts associated with construction and operation of the proposed industrial facility.

(q) The applicant shall provide a description and quantification of the mitigated and unmitigated impacts that will result from the construction and operation of the proposed facility on the affected local governments and special districts. Such description shall include:

(i) Quantification of fiscal impacts, regardless of amount, on all items contained in Wyoming Statute 35-12-109 (a)(xiii)(A)–(S).

(ii) Projection of when, by calendar month, the unmitigated impacts will occur in the affected communities.

(iii) Projection, by calendar month, of fiscal impact in affected communities.

(r) Counties wishing to present evidence shall provide a description and quantification of the unmitigated impacts that will result from the construction and operation of the proposed facility. Such description shall include:

(i) Estimates of fiscal impacts on services provided by communities; and

(ii) Estimated projections of when unmitigated impacts will occur in communities;

Section 9. Additional Application Requirements for Wind Energy Facilities.

(a) Facility Decommissioning. The applicant shall provide a facility decommissioning plan.

(i) The facility decommissioning plan shall include provisions regarding the removal and proper disposal of all wind turbines, towers, substations, buildings, and cabling, electrical components, foundations to a depth of forty-eight (48) inches, and any other associated or ancillary equipment or structures within the facility boundary above and below ground.

(ii) The facility may request that a building be left on site if approval is obtained from the surface landowner and upon written notification to the Administrator.

(iii) Facility or individual wind turbine decommissioning shall begin:

(A) Within twelve (12) months after the end of the useful life of the facility or individual wind turbine, or

(B) When no electricity is generated for a continuous period of twelve (12) months of the facility or individual wind turbine.

(C) The Council may extend the time period of Section (8)(a)(iii)(B) if the facility demonstrates good cause prior to the end of the continuous period of (12) months of the facility or wind energy generating towers not generating electricity.

(iv) The facility decommissioning plan shall be updated and submitted to the Administrator every five (5) years.

(b) Interim Reclamation. Interim Reclamation shall comply with the applicable permitting requirements of the Department of Environmental Quality, Water Quality Division storm water program.

(c) Final Reclamation. The applicant shall provide a final reclamation plan which shall include:

(i) A detailed description of site conditions prior to construction, including topography, vegetative cover (including plant species and plant community structure), climate, and land uses.

(ii) Re-grading. All tower foundations, roads, and all other surface disturbances within the facility boundary must be re-graded to the natural contours of the area. Backfilling, grading and contouring of affected land shall be accomplished by one or more of the following as detailed in the approved reclamation plan:

(A) Re-establishment of the contour of the land in a manner consistent with the proposed future use of the land.

(B) Contouring affected land to blend in with the topography of the surrounding terrain unless so doing would create an erosion problem or a hazard.

(C) The facility may leave a road un-reclaimed if approval is obtained from both the surface landowner and the Administrator.

(iii) Re-vegetation

(A) After backfilling, grading and contouring, and the replacement of topsoil, re-vegetation shall be commenced in such a manner so as to most efficiently accommodate the retention of moisture and control erosion on all affected lands to be re-vegetated.

(B) Re-vegetation documentation shall include seedbed preparation, seed mixture, and post seeding maintenance of all disturbed areas.

(C) If applicable, documentation of any mulching and/or use of fertilizers.

(D) Reclamation shall restore the land to a condition and native or adaptive perennial vegetative cover equal to or better than the original condition.

(E) Re-vegetation of all affected lands shall be accomplished in a manner consistent with the approved reclamation plan and the proposed future use of the land.

(F) Seeding of affected land shall be conducted during the first normal period for favorable planting conditions after final preparation unless an alternative plan is approved. The species of vegetation to be used in re-vegetation efforts shall be described in the reclamation plan indicating the composition of seed mixtures and the amount of seed to be distributed on the area on a per acre basis.

(G) The operator must control and minimize the introduction of noxious weeds into the re-vegetated areas until final reclamation is achieved.

(iv) The final reclamation plan shall be updated and submitted to the Administrator every five years.

(d) Financial Assurance: The applicant shall provide financial assurances for a wind energy facility, sufficient to assure complete decommissioning and site reclamation of the facility in accordance with the provisions of these rules. Wind energy facilities subject to regulation by the Public Service Commission shall be exempt from these financial assurance provisions and from the Cost Estimation for Decommissioning and Site Reclamation provisions of Section 9(e) and (h) of these rules.

(i) All financial assurances shall be in place prior to commencement of construction of any wind energy facility, and shall be adjusted up or down every five years from the date of permit issuance by the Council based on the results of paragraph (e) of this section.

(ii) Additional financial assurances to cover risks not anticipated at the time of the permit may be required at any time by the Director, as reasonable and necessary, provided the Director first gives thirty (30) days written notice stating the reason for and the amount of the additional financial assurance.

(iii) Financial assurance in the form of domestic securities may be accepted in any of the following forms at the discretion of the Director with consideration of credit worthiness, financial strength, credit history, credit rating and debt.

(A) Surety bond with a corporate surety registered in Wyoming.

(B) Certificate of deposit in the name of the "Department of Environmental Quality" with a state or federally insured financial institution in Wyoming. The permittee shall be entitled to all interest payments.

(C) Other forms of assurance such as corporate guarantee, letter of credit, insurance policy, or other forms as may be acceptable to the Director.

(iv) If the Permittee fails to decommission and reclaim as described in its permit, the Director may determine that the financial assurance be forfeited to the Division to arrange for the decommissioning and reclamation to be conducted by a third-party. In order for the Director to determine that the financial assurance be forfeited, the Director shall:

(A) Determine that decommissioning or reclamation has not started or it has fallen behind the approved schedule for more than six (6) months.

(B) Notify the Permittee in writing of the failure to perform reclamation in accordance with its approved reclamation plan and demand that justification be provided to the Division within 30 days.

(I) If no justification is made by the Permittee within the time provided, or if the Director rejects the justification, the Director shall provide the Permittee written notice that the Division intends to pursue forfeiture of the financial assurance.

(II) The Permittee has 30 days from the date of receiving the

notice of financial assurance forfeiture to request a hearing with the Council contesting the forfeiture of the financial assurance.

(III) If no hearing is requested, the Council will address the revocation of the permit and forfeiture of the financial assurance at the next meeting of the Council. If a hearing is requested, the Council shall conduct a hearing in accordance with the Wyoming Administrative Procedures Act. The Permittee shall bear the expense of scheduling and holding the hearing.

(e) Cost Estimation for Decommissioning and Site Reclamation of the facility:

(i) Estimates of cost for decommissioning and site reclamation shall be made by a licensed professional engineer provided by the applicant and subject to review and approval by the Director.

(ii) Total decommissioning costs shall be estimated without regard to salvage value of the equipment.

(iii) Decommissioning and site reclamation estimates shall be submitted to the Division in the application and every five years after the date of permit issuance until the completion of final reclamation.

(iv) The licensed professional engineer estimate of decommissioning and reclamation costs shall include the following:

(A) A general discussion of assumptions, including equipment, timeframes, backup calculations, procedures, methods, and any other considerations used in developing the cost estimate.

(B) A detailed description of the decommissioning activities to be performed.

(C) A detailed description of the reclamation activities to be performed.

(v) The facility may request release of the financial assurance mechanism when the facility has achieved final reclamation. Final reclamation means that all surface disturbances have been re-graded and re-vegetated with a uniform perennial vegetative cover with a density of 90% of the native or adaptive background vegetative cover. Noxious weeds shall not be included in percent cover in determining reclamation success.

(f) The Council may give a case-by-case variance to requirements of this Section after considering evidence by the applicant or landowner.

(g) Notice to record owners of mineral rights. Before submitting the application, the applicant shall provide notice to record owners of mineral rights located on or under the land where the proposed facility will be constructed.

(i) The notice shall consist of a statement of the applicant's intention to construct the project, features of the project, a legal description of the boundaries of the project, locations where the application may be examined, and persons to contact for additional information.

(ii) The notice shall be mailed by first class mail to all record owners of mineral rights whose identity and current addresses are readily obtainable from publicly available documents.

(iii) The notice shall be published twice in a newspaper of general circulation in the county or counties where the project is to be located.

(iv) The notice and details of steps taken to notify the record owners of mineral rights shall be entered into the record either within the application or as separate exhibit filed with the hearing examiner and parties.

(h) The application shall contain information demonstrating the applicant's financial capability to construct, maintain, operate, decommission, and reclaim the facility. Such documentation, if requested, shall be held confidential to the extent authorized by Wyoming law and shall include:

(i) Commitment letters from the principal investors of the project, which may be conditioned on issuance of required state and local permits; or

(ii) For applicants whose securities are publicly traded and are required to publicly disclose financial statements, any one of the following:

- (A) General audited financial statements for the most recent year-end;
- (B) Most recent credit rating reports for the financing company as published.
- (C) Reports by chartered financial analysts as published.

(iii) For applicants whose securities are not publically traded, financial statements of the majority financial contributors.

(i) Notice to affected landowners

(i) Applicant must provide a list of the names and mailing addresses of all affected landowners at the time the application is submitted.

(ii) Upon receipt of an application subject to this section, the Division will provide notice to the affected landowners and request information and recommendations, which pertain to their respective lands and interests.

(iii) All review comments from State agencies pursuant to W.S. 35-12-110(b) and (c) will be provided to the affected landowners by the Division.

(iv) All comments by affected landowners received by the Division about the project and about the agency comments under (iii) above will be provided to the State agencies. The agencies will give the Division their replies to the comments from affected landowners.

Section 10. Application Information for Commercial Waste Disposal Facilities.

Application requirements for a commercial waste disposal facility shall include information required for a request for waiver or permit application under W.S. 35-12-107, 35-12-109 and Sections

6 and 7 of these rules and regulations and the information required in subsections (a) through (f) of this section.

(a) A statement of the applicant's financial condition, including but not limited to:

(i) A profit and loss statement

(ii) Debt to equity ratio

(b) A description of the mode of transportation by which the wastes will be transported to the site; including access route specification, modification of existing traffic patterns, an estimate of the additional load and traffic placed on access routes, and the method of waste containment during transport. The applicant shall describe possible hazards associated with the transportation of wastes, safety precautions and emergency procedures should a transportation accident occur in route to the facility. If the wastes are to be temporarily stored, transferred, or handled during transport, the location of storage facilities or transfer stations shall be identified. For hazardous wastes, the applicant shall describe how the facility will comply with Department of Transportation the Environmental Protection Agency manifest and transportation requirements of 49 CFR 271-279 and 40 CFR 263.

(c) A description of the effect the facility may have on local land use, and an estimate of the potential short and long-term effect on local property values and tax revenues, and an estimate of the adverse effect the proposed facility may have on local businesses and jobs.

(d) Specification of the types of wastes to be managed by the facility, an estimate of the average waste volume the facility will manage in tons per day and the maximum tonnage the facility will be capable of handling, as well as a general description of the waste management methods used by the facility or associated operations.

(e) A description of the record keeping procedures that will be maintained to assure accurate accounting and payment of the waste management surcharge. The applicant may also request that certain records be held as confidential in accordance with Section 16(b) of these regulations.

(f) The applicant's assessment of impacts must include the impacts of required or proposed recycling operations resulting from the proposed facility.

Section 11. **Decision of Council.**

(a) The Council shall either grant or deny the application as filed, or grant it upon terms, conditions or modifications of the construction, operation or maintenance of the industrial facility as the Council deems appropriate. The Decision of the Council shall be written and shall be effective the date it is signed by the chair of the Council.

(b) Compliance with all applicable law. The Council must find that the proposed industrial facility will comply with all applicable local, state, and federal law throughout each phase of planning, construction, and operation. The local and state laws that must be complied with for purposes of this subsection consist of those laws which were in force on the date of application. In many cases, required permits and approvals may not be applied for until subsequent to the filing of the application. Therefore, the Council will examine the list of permits that regulate other aspects of the facility development for the purpose of determining whether the proposed industrial facility would be in compliance with all applicable laws if the permits and approvals specified therein were issued as expected.

(c) Threat of serious injury. In order to find that the industrial facility does not pose a threat of serious injury, the Council must find that the granting of a permit, as conditioned by the Council, will not result in a significant detriment to, or significant impairment of, the environment or the social and economic condition of present or expected inhabitants.

(i) In determining whether the proposed industrial facility poses a threat of serious injury to the social condition of the inhabitants, any significant decrease in the quality or quantity of services or facilities may be considered a serious injury. "Social condition" shall include, but is not limited to, the following factors:

- (A) Water treatment;
- (B) Sanitary waste disposal;
- (C) Solid waste collection;
- (D) Housing;
- (E) Police and fire protection;
- (F) Medical facilities;
- (G) Schools;
- (H) Recreational facilities;
- (I) Transportation systems;
- (J) Mental health facilities;
- (K) Social service facilities.

(ii) In determining whether the proposed industrial facility poses a threat of serious injury to the economic condition of the present or expected inhabitants, any net deterioration of a material nature in the condition of either present or expected inhabitants will be weighed negatively. "Economic conditions" may include, but is not limited to, the following factors:

- (A) Upgrading of jobs and increased income;
- (B) Family and per capita income;
- (C) Unemployment and underemployment rates within the area of site influence.
- (D) Purchasing power of earnings within the area of site influence.
- (E) Short term and long term fluctuations in resource consumption and resource availability.
- (F) Employment dislocation and skill obsolescence.

(G) Employment opportunities;

(H) Diversity of economy and stability of various segments of the economy.

(d) Substantially impair the health, safety or welfare. The Council must find that the proposed industrial facility will not substantially impair the health, safety or welfare of the present or expected inhabitants of the areas of site influence. A proposed industrial facility may be found to substantially impair the health, safety or welfare of the inhabitants if their health, safety or welfare during and after construction would be significantly diminished or weakened relative to present levels.

(e) If the Council is not able to find that these conditions are met, the Council shall deny the application.

(f) If the Council determines that the location of all or part of the proposed industrial facility should be modified, it may condition its permit upon that modification, provided that the local governments, and persons residing therein, affected by the modification, have been given reasonable notice of the modification.

(g) If the Council decides to grant a permit for the industrial facility, it shall issue the permit embodying the terms and conditions in detail, including the time specified to commence construction, which time shall be determined by the Council's decision as to the reasonable capability of the local government, most substantially affected by the proposed industrial facility, to implement the necessary procedures to alleviate the impact. If the construction of the facility fails to follow the schedule used by the Council to make its decision, the Council may require an amendment to the permit in accordance with W.S. 35-12-106(c) and (d).

(h) Unless the Council extends the permit as provided in subsection (i) of this section a permit to construct shall expire for any of the following conditions:

(i) Construction has not commenced within thirty-six (36) months after the date of the Decision of the Council;

(ii) If commenced construction has discontinued before the completion of the described project for a period of twelve (12) consecutive months, provided that the discontinuance is not in an approved schedule or for approved phases.

(i) The Council may extend the time periods of paragraphs (h)(i) and (h)(ii) above for good cause provided that the facility requests an extension in a timely manner accompanied by an update to the Application including the following:

(i) The construction schedule;

(ii) The estimated start of commercial operation;

(iii) Socio-economic baseline; and

(iv) Updates to those sections of the Application as defined by the Administrator where material changes are expected to occur.

(j) Permit Term. During the application for a permit or permit waiver, an applicant may request that the permit be issued for a term of less than the life of the facility, but not less than the construction phase(s). The Council may authorize a permit for a term less than the life of a facility if the applicant demonstrates that all of the following conditions exist:

(i) After the permit term (over the remaining life of the facility), no adverse environmental, social and economic impacts in the area of site influence may occur, which are not regulated by another State regulatory agency. The life of the facility includes cessation of operations, site clearance and site reclamation.

(ii) There are no conditions or requirements of the pending permit that warrant the continuation of Council's jurisdiction for the remaining life of the facility.

(iii) The permit term would not conflict with any statute or rule governing the facility, and would not conflict with the purposes of the Industrial Development Information and Siting Act.

(A) The Council shall consider all objections from local government before granting a permit term request.

(k) Local governments may make a request for a bond pursuant to W. S. 35-12-113(e), such requests must:

(i) Be provided to the Director and parties three weeks prior to the date of the hearing of the permit application by the Council;

(ii) Justify the need for the bond;

(iii) Describe the purpose and use of the bond;

(iv) Justify the amount of the bond;

(v) Recommend a mechanism to determine when and if the bond should be released; and

(vi) Recommend a mechanism to determine when and if the bond should be surrendered to the State of Wyoming. The Director shall make a recommendation on any such bond request to the Council prior to the hearing of the Council. Such recommendation shall be provided to the parties to the hearing.

Section 12. Impact Assistance Funds.

(a) If all affected counties, cities and towns in the area primarily affected can agree to an amount and schedule for payment distributions, they may provide their agreement to the Division for submission to the Council for its consideration. If an amount and schedule supported by all governments within the area primarily affected has not been provided to the Division within 30 days of filing an application or waiver of permit application, the Division will review the information provided in the application and provide to counties, cities and towns within the area primarily affected the Administrator's recommendation to the Council for distribution of the impact assistance funds. Counties in disagreement with the Administrator's draft recommendation shall provide to the

parties an alternate distribution recommendation and information showing that the Administrator's recommended distribution does not account for all the unmitigated impacts.

(b) Pursuant to W.S. 39-15-111(c) and (d), and W.S. 39-16-111 (d) and (e) the Council shall, after consideration of all evidence and recommendations presented at the hearing held pursuant to W.S. 35-12-107(g) and W.S. 35-12-110(f), establish an amount and schedule for distribution of impact assistance funds. The Council shall establish a dollar amount associated with the unmitigated impacts on the affected counties, cities and towns from the construction of the proposed facility. Under no circumstances shall the impact assistance payment exceed two and seventy-six hundredths percent (2.76%) of the total estimated material costs of the facility, as those costs are determined by the Council.

(c) If impact assistance payments are already being distributed to an affected area of site influence, and another facility commences construction, the Council shall consider the effect of the following factors in establishing, modifying, adjusting or revising the distribution:

(i) The amount of impact assistance funds generated by each facility and the degree of impact in the county attributable to each facility; and

(ii) The timeframe in which different amounts of impact assistance funds are generated by each facility in relation to the timeframe in which impacts attributable to each facility occur.

(d) The Council may adjust, revise or modify distributions during the construction of a facility. A local government which is primarily affected by the facility and which has filed a notice of intent to be a party pursuant to W.S. 35-12-111(b), or any person issued a permit pursuant to W.S. 35-12-106, may petition the Council for review and adjustment of the distribution upon a showing of good cause. The request shall be submitted to the Division.

(i) Upon receiving a request to modify a distribution, the Administrator shall:

(A) Within ten (10) days after the request is received, serve a copy of the request to each local government primarily affected. A copy of the request shall be provided to the permittee.

(B) Request the affected local governments and permittees to submit to the Division all relevant studies, statements, reports, analyses, evaluations, compilations, or other written material which will enable the Council to determine whether the social and economic impacts have changed and establish a new distribution.

(C) Conduct such investigations, studies, reports and evaluation as may be necessary to prepare a recommendation on the request.

(ii) The Administrator shall present the request for impact assistance funds to the Council at least thirty (30) days after the Division received the request, with a recommendation. The Council may thereupon, after consideration of the materials submitted by the local governments, applicants, permittees and Administrator, determine that the social and economic impacts from construction of the facility have changed, and establish a new distribution as appropriate and necessary.

(e) Pursuant to W.S. 39-15-111(c) and (d), and W.S. 39-16-111(d) and (e) the Council, may determine that the social and economic impacts from construction of an industrial facility upon

the adjoining county are significant and establish the distribution of impacts between all communities in the impact area.

(i) The Council may adjust, revise or modify a distribution during the construction of a facility; upon receiving a written request from any person issued a permit pursuant to W.S. 35-12-106, and a showing of good cause.

(f) Upon establishing or modifying a distribution pursuant to W.S. 39-15-111(c) and (d), and W. S. 39-16-111 (d) and (e) the Division shall notify all parties.

(g) For the purposes of this Section of these regulations, the period of construction for a facility shall end when the physical components of the industrial facility are ninety (90) percent complete. The physical components of the industrial facility shall include all materials, supplies, and equipment included in the estimated construction cost of the facility pursuant to Section 2 (l) of these regulations.

Section 13. Information Requirements Imposed Upon Exempt Activities.

(a) No entity defined as an information applicant shall commence construction activity unless such entity has supplied the following information to the Council a reasonable time prior to the commencement of such construction:

(i) A description of the nature and location of the construction activity.

(ii) The estimated time of commencement of construction and construction time.

(iii) The estimated number and job classifications, by calendar quarter, of the employees of the applicant, of its contractor or subcontractor during the construction phase and during the operating life of the facility. Such estimates shall include the number of employees who will be utilized but who do not currently reside within the area to be affected by the facility.

(b) For construction activities which are exempt from the permit requirements of the Act pursuant to W.S. 35-12-119(c), and which are associated with an industrial facility as defined by W.S. 35-12-102(a)(vii), the applicant shall provide the information required by W.S. 35-12-109(a)(iii), (iv), (v), and (viii) at the same time that the application for a permit for the industrial facility is filed.

Section 14. Permit Transfers and Terminations.

(a) The Administrator may recommend corrections to the name of the permit holder to the Council.

(b) The Council may authorize transfers of permits to a different person buying the assets of the permitted facility if:

(i) The matter is initiated by a written request from the current permit holder and accompanied by a written acceptance of the permit, its terms and conditions by the prospective buyer.

(ii) The matter is heard by the Council at its next meeting after notice is

published and parties are notified.

(iii) Appropriate officers of the current permit holder and the acquiring company are present for examination by the Council.

(c) Petition by a Permittee for termination of the permit.

(i) Upon application for a permit termination, the Council may authorize permit termination if the Permittee demonstrates that all of the following conditions exist:

(A) The operation is in compliance with local ordinances and land use plans in force or adopted on or prior to the date of the application.

(B) Termination of the permit will not cause or add to any adverse environmental, social and economic impacts in the area of site influence, which are not regulated by another State regulatory agency, during the remaining life of the facility. The remaining life of the facility includes cessation of operations, site clearance and site reclamation.

(C) All construction phases of the facility have been completed and there are no conditions or requirements of the permit that warrant the continuation of the permit for the remaining life of the facility.

(D) Permit termination would not conflict with any statute or rule governing the facility, and would not conflict with the purposes of Act.

(ii) The Council shall consider all objections from local governments before granting a permit termination.

(iii) Within fourteen (14) days of receipt of a termination application the Director shall cause notice to be published in newspaper(s) of general circulation in the area primarily affected stating the nature of the request. Written notice shall also be provided to local governments in the area of site influence. The notice shall describe the name and location of the operation and provide for a thirty (30) day public comment period.

(iv) Prior to granting a permit termination, the Council shall provide opportunity for a public hearing if requested, in accordance with Chapter II, Section 13 and 14 of these regulations. The Council shall render a decision within ninety (90) days from the date the application is filed with the Department.

(v) The applicant shall pay an application fee to cover the costs of processing the application, inspecting, and for compliance activities. The amount shall be calculated by the Director.

Section 15. **Amendments.**

(a) A permit shall be amended if the applicant makes a significant change to the scope, purpose, size, or scheduling of the project; which would result in different impacts not within the scope of the approved permit.

(i) Supplemental submittals shall not be considered amendments, if they do not provide a significant change to the scope, purpose, size or scheduling of the project. In particular, material which is in the nature of a clarification in response to a request by the Division

shall not be considered a permit application amendment.

(ii) An amendment to a permit application or request for waiver may be allowed on condition that the applicant agrees to an extension of time for hearings, studies and determinations, in order to allow full and adequate notice in the manner and to the persons specified in W.S. 35-12-111(a).

(b) With respect to commercial waste disposal facilities, any major changes in the type or volume of wastes received, size of the facility, changes in transportation methods or routes for waste delivery, or changes in recycling, reuse, or treatment shall require notice and prior approval from the Director. If the Director determines that these changes may result in additional adverse impacts that were not previously reviewed by the Council, the Permittee shall submit a permit amendment in accordance with the requirements of this section.

Section 16. **Waste Management Surcharge.**

(a) Each Permittee of a commercial waste incineration or disposal facility shall keep records of all wastes received by the facility. Records shall consist of:

(i) A daily log of all wastes received by the applicant by weight, source and content.

(ii) A daily record of payments made for wastes received for disposal by source, including a first accounting of invoices;

(iii) A daily record of solid wastes removed from the facility and recycled or reused; and

(iv) A daily record of hazardous wastes treated at the facility.

(b) In accordance with W.S. 16-4-203(d)(v), records supplied for purposes of verifying the surcharge payment shall be public record unless the applicant can demonstrate to the Council, at the time of permitting, that the information consists of trade secrets, privileged information, or confidential commercial information. In such case, the applicant shall stamp as "confidential" each page containing privileged information.

(c) Waste receipt and surcharge reporting shall be on a quarterly basis through the use of monthly recapitulation sheets of the daily records.

(d) In accordance with W.S. 35-12-113(g), the Permittee shall remit the surcharge no later than the last day of the second month following the end of the quarter. Failure to remit the full payment as required by this section may constitute grounds for permit revocation in accordance with W.S. 35-12-116, after notice and reasonable opportunity to correct the failure.

(e) Upon a fourteen (14) day advance notice, the Permittee shall allow audits by the Division, or its auditors. The Permittee shall provide the Division access to all records and provide the copying of all records dealing with compliance of the permit requirements and payment of the waste management surcharge.

(f) Without advance notice, the Division or its designated agent may inspect manifests for shipments to determine accuracy of record keeping and weight scales.

(g) For audit purposes, all records required by this section will be maintained a minimum of five years.

(h) All measuring devices utilized to determine the surcharge payment shall be certified by the Wyoming Department of Agriculture in accordance with W.S. 40-10-117 through 40-10-123 and inspected and recertified annually.

(i) The waste management surcharge rate shall be a minimum of \$10 per short ton for non-hazardous wastes received and \$25 per short ton for hazardous waste. The Council may impose a higher rate at the time of permitting or annually thereafter. The rate may also be lowered as long as the surcharge remains at or above the minimum set in W.S. 35-12-113(g). The Council shall consider any of the following criteria as a basis for adjusting the surcharge rate:

- (i) National or regional cost escalation for waste disposal;
- (ii) Level of short and long term liabilities and risk to public health, safety and welfare.
- (iii) Encouragement of the use and demonstration of new and advanced technologies which benefit the community and state;
- (iv) Economic benefits accruing to the local community from the facility, including but not limited to, voluntary mitigation measures, employment opportunities, and importance to the economic stability; or
- (v) Utilization of waste reduction, recycling and treatment practices at the origin of the wastes.

(j) The Council shall authorize a reduction in the waste management surcharge rate to encourage recycling, reuse, or treatment of hazardous wastes in accordance with W.S. 35-12-113(g). To obtain the credit, the Permittee must provide for removal and recovery of useful components of the waste stream above the minimum required by W.S. 35-11-508(a) (iii). For hazardous wastes, the treatment process shall reduce the hazards and long-term risks from the wastes above the minimum treatment processes required by rules promulgated under the Environmental Quality Act. The Council may authorize a credit at, or greater than, the minimum of W.S. 35-12-113(g) if the Council finds:

- (i) Economic viability - where the Permittee can demonstrate a recycling or treatment technology or method which would not be economically viable through costs in excess of the minimum credit, the Council may grant a higher credit to promote the technology or method, if the Council determines the recycling or treatment technology or method beneficial to the State.
- (ii) Economic development - the credit may be increased to broaden the local economic base in the form of a subsidy to develop local recycling, reuse, or treatment enterprises. This subsidy may only be approved to increase business profitability in the growth years of the enterprise.

(k) Upon submittal of a permit application, request for waiver, or annually after permit approval, the Director may require the Permittee or applicant to provide cost data so that the Division may evaluate the merits of a surcharge rate adjustment. The information requested may include, but

is not limited to:

- (i) Breakdown of operation costs.
- (ii) Breakdown of construction costs.
- (iii) Breakdown of transportation costs.
- (iv) Current tipping charges.

Section 17. Fees and Public Records.

(a) Application Fee. The fee required by W.S. 35-12-109(b) is prepared on the basis of features of the proposed application and facility as are any increases in the Application Fee as required by W.S. 35-12-109(d).

(b) Public records may be inspected and copies provided upon written request specifying the document(s) requested.

(c) These rules incorporate by reference the following rules and regulations, as in effect of September 6, 2016:

(i) Wyoming Department Of Administration and Information, Director's Office, Chapter 2, Uniform Procedures, Fees, Costs, and Charge for Inspection, Copying, and Producing Public Records, available at <https://rules.wyo.gov>.

(d) These rules do not incorporate later amendments or editions of the incorporated matter.

(e) All incorporated matter is available for public inspection at the Department's Cheyenne office. Contact information for the Cheyenne Office may be obtained at <http://deq.wyoming.gov> or from (307) 777-7369.

Environmental Quality, Dept. of

Industrial Siting Council

Chapter 2: Practice and Procedure for the Industrial Siting Council

Effective Date: 05/21/2014 to Current

Rule Type: Current Rules & Regulations

Reference Number: 020.0004.2.05212014

CHAPTER 2
RULES OF PRACTICE AND PROCEDURE
INDUSTRIAL SITING COUNCIL

Section 1. **Authority.** In accordance with the provisions of W.S. 16-3-101 through 16-3-115 and W.S. 35-12-105(b), these rules of practice and procedure are hereby adopted. If any provision of these rules or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of these rules which can be given effect without the invalid provision or application and to this end the provisions of these rules are servable.

Section 2. **Scope.** These rules of practice and procedure relate to the procedures by which the Industrial Siting Council (Council) may reach informed decisions with respect to applications to construct industrial facilities, in which case, the Council shall be the sole judge as to whether or not a permit shall be granted. These procedures provide a method by which all persons interested in the subject matter of such applications may present their views. Nothing contained herein shall be construed to prevent the Council from conducting other investigations as may be deemed appropriate.

Section 3. **Definitions.**

(a) “Permit Proceeding” means all components and parts of the statutory and regulatory process required by the Act; the Rules and Regulations of the Council and these rules are initiated by the filing of an application and is terminated by the final order which grants or rejects a permit.

(b) “Presiding Officer” means the Chairman of the Council or another person designated by the Chairman with the consent of the Council to serve as presiding officer.

Section 4. **Initiation of Proceeding.**

(a) All hearings before the Council shall be held pursuant to these rules, the provisions of the Act, and the Wyoming Administrative Procedures Act (WAPA).

(b) All hearings, other than rulemaking and rehearing proceedings, may be initiated by:

(i) The filing of an application pursuant to W.S. 35-12-109(a) of the Act.

(ii) The initiative of the Council.

(iii) Petition to the Council.

(c) Persons requesting a hearing shall file two (2) copies of the written petition directed to and served upon both the Chairman of the Council and the Director. Original service shall be by certified mail, return receipt requested. Thereafter, all service shall be in accordance with the Wyoming Rules of Civil Procedure (WRCP).

(d) The petition for hearing shall set forth:

(i) Name and address of the person making the request and the name and address of his attorney, if any.

(ii) The action, decision, order or permit upon which a hearing is requested.

(iii) A statement in ordinary, but concise language of the facts on which the request is based, including whenever possible particular reference to the statutes, rules or orders that the petitioner alleges have been violated.

(iv) A request for hearing before the Council.

(e) A copy of the petition shall be served on any party who appeared in prior proceedings pertaining to the same matter.

(f) The Council shall consider the petition at its next scheduled meeting unless otherwise agreed to by the parties. After presentation of the arguments in support of and in opposition to the petition for hearing, the Council shall:

(i) Schedule a hearing with reasonable notice; or

(ii) Request additional information of the parties; or

(iii) Deny the petition and provide a statement of reasons for denial.

Section 5. Application provided to Parties; Party Application Submissions.

(a) Upon filing a notice of an intent to be a party by a person or organization described in W.S. 35-12-111(a)(iii), the Division shall immediately provide such a person or organization with a complete copy of the application. To the extent that there are copies available from the copies supplied by the applicant under Chapter 1, Section 6(a), the copy will be provided without cost to such persons in the order of filing such notice of intent. All other copies will be supplied by the Division upon payment by such person or organization of the smaller of \$100.00 or the actual cost of preparing duplicate copies.

(b) Any materials supplementing the permit application submitted by the applicant to the Division after the date of the application shall be mailed by the applicant on the date of submission to the Division to persons who are parties pursuant to W.S. 35-12-111(a) at the time of submission. The Division shall maintain a current list of parties, which will be supplied to any party (including the applicant) upon request.

Section 6. Notice and Other Actions

(a) Notice of hearings shall conform to W.S. 16-3-107(a) and (b). The manner and time for giving notice shall be as follows:

(i) When the Council determines that it shall hold a hearing on its own motion, it shall give notice as promptly as possible in advance of the hearing date to all parties.

(ii) When a party desires that a hearing be held before the Council, he shall file his petition and the Division shall forthwith set a date for hearing and notify all parties hereof.

Section 7. **Attorney General Presence.**

(a) In all matters before the Council, the Council may request the Attorney General of the State of Wyoming or a representative of his staff to be present throughout the hearing.

(b) The Council, upon its own motion, may certify an issue of law to the Attorney General for his opinion. Such opinion shall thereafter be part of the record for any proceeding before the Council, and may, if the Council so directs, constitute a finding of the Council with respect to the issuance of final orders or decisions.

Section 8. **Docket.** When an application is filed with the division, it shall be assigned a number and entered with the date of its filing on a separate page of a docket provided for such a purpose. The Division shall establish a separate file for each such docketed case, in which shall be systematically placed all papers, documents, transcripts, evidence, exhibits, and motions pertaining thereto, and all such items shall have thereon the docket number assigned, and the date of filing.

Section 9. **Motions.** The Council or a presiding officer may upon reasonable notice to all parties, hear orally or otherwise, any motion filed in connection with hearings under these rules.

Section 10. **Subpoenas.**

(a) Subpoenas, requiring the attendance of witnesses from any place in the State of Wyoming at any designated place or hearing, or for the production of books, papers or other documents, or a subpoena duces tecum, may be issued by the Council upon application of any party to the proceeding or upon the motion of the Council at any time after the date the application for a permit is filed.

(b) Subpoenas for the production of books, papers or other documents, unless directed by the Council upon its own motion, will issue only upon application in writing, and such application shall set forth the books, papers or other documents sought with a showing that they will be of service in the decision of the Council.

(c) Costs of service of subpoenas shall be paid by the parties requesting the service, or by the Office if requested by the Council.

Section 11. **Prehearing Conference**

(a) At least ten (10) days and no more than twenty (20) days before the day of any hearing, the Council may direct the parties to appear before the Council or its designated presiding officer to consider:

(i) The identification, simplification, and delineation of all issues to be considered at the hearing.

- (ii) Formulating procedures to govern the hearing.
- (iii) Such other matters as may aid in the disposition of the case.

(b) Such conferences shall be conducted informally. An order will be prepared and served on the parties no more than five (5) days after the prehearing conference that recites the actions taken at the conference. The prehearing conference will control the course of the hearing unless modified by the presiding officer to prevent manifest injustice. Any party may move to modify the order prior to the commencement of the hearing. The Council shall consider all motions and issue a final order prior to convening the hearing.

Section 12. **Appearances.**

(a) Appearances and representations of parties shall be made as follows:

- (i) An individual may appear and be heard on his own behalf.
- (ii) A copartnership may appear and be represented by a copartner.
- (iii) A corporation may appear and be represented by a corporate officer or a full-time employee of said corporation.
- (iv) A local government may appear and be represented by a government officer, a member of a local government board, a full-time employee of said local government or the authorized representative of the local government.
- (v) An unincorporated association may appear and be represented by a bonafide general officer or full-time employee of such association.
- (vi) Any party to a proceeding may appear and be represented therein by an attorney at law who is duly admitted to practice in Wyoming. Any attorney, who is not licensed to practice law in Wyoming, shall not be entitled to enter his appearance in any proceeding before the Council unless he shall have associated with him in such action or proceeding an active member of the Wyoming State Bar.

(b) All parties, except the applicant and any entity of local government, which is a party to the hearing, shall be present at the hearing with or without counsel. Except as to the applicant and any local governmental entity which is a party to the hearing, failure to be present at the hearing and to participate orally shall result in a waive of the right to be a party.

(c) Any person may make a limited appearance in the proceeding by filing a statement in writing with the Council prior to the adjournment of the hearing.

Section 13. **Hearings.**

(a) Public hearings conducted by the Council shall be at a time and place as are designated by the Council as required by the Act.

(b) The Division shall serve notice of the hearings upon the applicant, local governments and all other parties to the permit proceeding, as established by Section 5(a) of these rules, in accordance with the provisions of W.S. 16-3-107 of the WAPA. Such notice shall be served not less than seven (7) days prior to the date of the hearing. If notice of hearing is given by mail, the computation of time shall begin to run on the date the notice is deposited in the United States mail.

(c) The hearing shall be conducted by the Council with the Chairman or its designated presiding officer sitting as presiding officer. The designated hearing officer shall for purposes of the hearing, have all necessary powers normally vested in the Chairman.

Section 14. **Order of Procedure at Hearings.** As nearly as possible and feasible, hearings shall be conducted in accordance with the following order of procedure. The presiding officer shall determine all procedural questions not governed by these rules of practice and procedure.

(a) The presiding officer shall announce that the Council is convened to hear the evidence relating to the application for an industrial siting permit and shall call by docket number and title the application to be considered.

(b) The presiding officer shall direct the reading into the record of the notice of hearing given by the Council through its Director and proof of publication thereof and shall direct that the record reflect the issuance of all subpoenas and all appearances of record including parties and their counsel of record, if any.

(c) All witnesses who are present to give testimony in the hearing shall rise, identify themselves and indicate on whose behalf their testimony will be given and be sworn by the presiding officer. All witnesses shall be administered the following oath by the presiding officer:

Do you swear (or affirm) that the testimony which you are about to give in the matter or in the hearing before this Council is the truth, the whole truth and nothing but the truth?

(d) The parties will each be allowed an opening statement to briefly explain their position to the Council and outline the evidence they propose to offer together with the purpose thereof. Opening statement shall be of a length and in an order as shall be determined by the presiding officer.

(e) The parties' evidence shall be heard in the following order and manner:

(i) The applicant.

(ii) Each local government entity, which is a party, shall then be heard in an order established by the presiding officer.

(iii) Each other party to the permit proceeding, in an order to be established by the presiding officer, shall then be allowed to present its evidence and be heard by the Council.

(iv) Witnesses may be cross-examined by any party or its attorney and by members of the Council and legal counsel.

(v) Parties may have the opportunity to offer, once only, rebuttal evidence in order.

(vi) Parties may have the opportunity to offer closing statements in order.

(f) At the request of the Council, the Division or any party, state agencies, which act as advisory members of the Council, shall have an opportunity to present statements concerning the advisability of issuance of a permit after the parties' evidence is heard.

(i) Such statements shall be limited in scope to the particular area of expertise, which the agency has and/or to the specific area of study assigned to an agency by the Council.

(ii) Upon objection by any party to the permit proceeding to the admission of such statements into the record, the objecting party shall be afforded the opportunity to cross-examine the state agency presenting the statement.

(g) Every person testifying shall, at the Council's discretion, be qualified prior to testifying. Such qualification will include ascertaining the residency, occupation, background, education, and expertise of said person.

(h) Documentary material used as evidence by any party or witness must be of size consistent with the ease of handling, transportation, and filing. Where relevant and material matter offered in evidence by any party is embraced in a book, paper or document containing other matter not material or relevant, to the permit proceeding, the party must plainly designate the relevant matter so offered. If the material matter therein contains other material which unnecessarily encumbers the record, such book, paper or document will not be received in evidence, but may be marked for identification, and if properly authenticated, the relevant and material matter may be read into the record or, if the Council so directs, a true copy of such matter in proper form shall be received as an exhibit.

(i) After all parties have been offered the opportunity to be heard, the presiding officer shall excuse all witnesses and declare the evidence closed. The evidence may be reopened at a later date prior to a decision of the Council upon motion by a party or on the Council's own motion.

(j) After the evidence is declared to be closed, the Council may request the parties to the permit proceeding to submit proposed findings of fact and conclusions of law within fifteen (15) days after the closing of the evidence.

(k) During all hearings under these rules, the presiding officer shall have the power to:

(i) Administer oaths and affirmations;

(ii) Issue subpoenas;

- (iii) Rule upon offers of proof and receive relevant evidence;
- (iv) Take or cause to be taken depositions;
- (v) Preside over the hearing and regulate its proceedings;
- (vi) Dispose of procedural requests. The presiding officer may be assisted by a representative of the Attorney General's office when such assistance is deemed necessary.
- (vii) At his discretion, or with the consent of Council, require parties to tender written briefs and set the time for filing such briefs.
- (viii) Preside over and set the time for such prehearing conferences as he deems necessary;
- (ix) Exclude all irrelevant, immaterial, or unduly repetitious evidence;
- (x) Recess the hearing as required;
- (xi) Officiate and officially close the hearing.
- (xii) With the consent of the Council, declare that the matter is taken under advisement and that the decision and order of the Council will be announced at a later date.
- (xiii) Exclude any and all evidence and testimony which raises an issue of the jurisdiction of any agency which has regulatory authority over the industrial facility.

Section 15. **Record of Proceedings Reporter.** All hearings including all testimony, shall be reported verbatim by a competent reporter. The compensation of such reporter shall be paid as required by law and as ordered by the Council. If a transcript of the testimony is required by the Council, the cost thereof shall be paid by the Council, or as otherwise provided by law. The Council may direct any party or parties to assume the cost of the transcript if transcribed at his or their request.

Section 16. **Record.** The record in all cases shall include:

- (a) All formal and informal notices;
- (b) Evidence received or considered including matters officially noticed;
- (c) Questions and offers of proof, objections, and rulings thereon;
- (d) Any proposed findings and objections thereto;
- (e) The decision and order of the Council.

Section 17. **Decision and Order.** The Council shall make written decision and order in all cases which decision shall contain findings of fact and conclusions. The decision and order

of the Council shall be placed in the record of the case, which shall be retained by the Council. Notice of the Council's decision shall be given as provided by W.S. 35-12-113(f) of the Act.

Section 18. **Appeal.** Appeals to the District Court from decisions of the Council are governed by W.S. 16-3-114, Rule 12 of the Wyoming Rules of Appellate Procedure and by W.S. 35-12-114 of the Act.

Section 19. **Transcript of Appeal.** In case of an appeal as above provided from a final order of the Council, the party appealing shall secure and file a transcript of the testimony and all other evidence offered at the hearing, which transcript must be verified by the oath of the reporter who took the testimony as a true and correct transcript of the testimony and other evidence in the case. The compensation of the reporter for making the transcript of the testimony and all other costs involved in such appeal shall be borne by the party prosecuting such appeal.

Section 20. **Applicable Rules of Civil Procedure.** The WRCP, insofar as the same may be applicable and not inconsistent with the laws of the State and these rules shall apply to matters before the Council.

Section 21. **Rulemaking Hearings.**

(a) The provisions of the rules contained in this section shall govern:

(i) Any hearings conducted pursuant to a petition (within the meaning of W.S. 16-3-106 for the promulgation, amendment, or repeal of any rule (as defined in W.S. 16-3-101(a)(ix)).

(ii) Any hearings conducted pursuant to W.S. 16-3-103 for the promulgation of rules and regulations recommended by the Director.

(b) Any party may petition the Council to promulgate, amend, or repeal any rule or rules.

(i) Each petition must be submitted in duplicate to the Chairman of the Council and to the Director.

(ii) The filing of a petition under this Section shall not stay the effectiveness of any rule or rules.

(iii) After filing of a petition, the Council may hold a pre-hearing conference to review the petition and its persuasiveness.

(iv) As soon as practicable, the Council shall deny the petition in writing (stating its reasons for denial) or initiate rule-making procedures. The action of the Council in denying a petition is final and not subject to review.

(v) Before adoption, issuance, amendment, or repeal of any rule, or the commencement of any hearing on such proposed rule-making, the Council shall cause notice to be given in accordance with the provisions of W.S. 16-3-103.

(c) The adoption, amendment, or repeal of any rule, other than interpretive rules or statements of general policy, shall be in accordance with the requirements of the WAPA, except that the provisions of W.S. 16-3-107 through 16-3-112 (relating to conduct of hearings for contested cases) do not apply to hearings held under this section of these Rules. As a fact-finding legislative proceeding, each hearing is non-adversary and there are no formal pleadings or adverse parties. All information will be received by the Council without regard to rules of evidence.

(d) The hearing is directed to receiving factual evidence and expert opinion testimony relative to the issues in the proceeding.

(e) The Council, upon its own motion or upon the motion of any party, to promote the orderly presentation of evidence, may adopt one or more of the provisions contained in these Rules governing procedures in contested cases. Such action by the Council shall not constitute an agreement that the proceeding before the Council is in the nature of a contested case.

(f) The Council may impose time limitations upon oral presentations.

(g) Witnesses

(i) The Council or designated hearing officer may direct that summaries of the testimony of witnesses be prepared in advance of the hearing. If so directed, copies of such summaries shall be served upon the members of the Council or Office or upon any other party as the designated hearing officer may direct.

(ii) Witnesses will be permitted to read summaries of their testimony into the record or make other oral statements as they so desire. Witnesses shall not be available for cross-examination, but will be permitted to answer questions directed to them by members of the Council.

(iii) When necessary to prevent undue prolongation of the hearing, the presiding officer may limit the number of times any witness may testify.

(h) All timely comments shall be considered by the Council before final action is taken on any proposal to promulgate, amend, or repeal any rule. Late filed comments may be considered so far as possible without incurring additional expense or delay.

(i) As soon as practicable after receipt of the official transcript or as soon as practicable after the expiration of the time set for the submittal of written comments, the Council shall render a written decision on the issue presented at the hearing.

Section 22. **Amendment.** Any amendment to these rules shall become effective as provided by W.S. 16-4-102 through 16-4-106 of the Wyoming Administrative Procedure Act.

governments where the facility is located and shall make the information available on a public website.

CHAPTER 12 - INDUSTRIAL DEVELOPMENT AND SITING

35-12-101. Short title.

This chapter is the "Industrial Development Information and Siting Act".

35-12-102. Definitions.

(a) As used in this chapter:

(i) "Advisory member" means an advisory member of the council provided by W.S. 35-12-104(f);

(ii) "Applicant" means any person who applies for a permit pursuant to this chapter;

(iii) "Commence to construct" means:

(A) Any clearing of land, excavation, construction or other action that would affect the environment of the site of any facility, but does not include changes needed for temporary use of sites for less than ninety (90) days, changes required to conduct required studies and tests under this chapter, or any other state or federal act or regulation, or access roads and services associated with utilities, or routes for nonutility purposes or for uses in securing geological data but not limited to necessary borings or drillings to ascertain foundation conditions;

(B) The nuclear fracturing of underground formation, if any such activity is related to the possible future development of a facility subject to this chapter, but does not include the gathering of geological data by boring of test holes or other underground exploration, investigation or experimentation.

(iv) "Council" means the industrial siting council;

(v) "Director" means the director of the department of environmental quality;

(vi) "Impacted area" means an area of Wyoming in which sudden or prolonged population growth may occur or may

cause environmental, social or economic stresses of such nature that the total local, state and federal resources available are not sufficient to alleviate them properly and effectively as determined by the council;

(vii) "Industrial facility" or "facility" means any industrial facility with an estimated construction cost of at least ninety-six million nine hundred thousand dollars (\$96,900,000.00) as of May 30, 1987. Exempt activities shall not be included in the estimated construction cost of an industrial facility. The council shall adjust this amount, up or down, each year using recognized construction cost indices as the council determines to be relevant to the actual change in construction cost applicable to the general type of construction covered under this chapter. "Facility" also includes, regardless of construction cost:

(A) Any commercial waste incineration or disposal facility capable of receiving greater than five hundred (500) short tons per day of household refuse or mixed household and industrial refuse, excluding lands and facilities subject to W.S. 35-11-402(a)(xiii);

(B) Any commercial facility which incinerates or disposes of any regulated quantity of hazardous wastes which are subject to hazardous waste shipping manifest requirements under subtitle C of the Resource Conservation and Recovery Act (42 U.S.C. §§ 6921 through 6939e);

(C) Any commercial radioactive waste management facility defined by W.S. 35-11-103(d)(v);

(D) Until July 1, 1999, any facility constructed solely for the disposal of overburden, development waste rock or refuse from mining as defined under W.S. 35-11-103, except for the following facilities:

(I) Facilities permitted or licensed under article 4 of the Wyoming Environmental Quality Act;

(II) Facilities specifically exempt from permitting requirements under article 4 of the Wyoming Environmental Quality Act;

(III) Facilities specifically identified under W.S. 35-11-103(d)(v)(A).

(E) Any commercial facility generating electricity from wind and associated collector systems that:

(I) Consists of twenty (20) or more wind turbines in all planned phases of the installation; or

(II) Expand an existing installation not previously defined as a facility to include a total number of turbines greater than or equal to the thresholds in subdivision (a)(vii)(E)(I) of this section.

(F) Any facility over which a board of county commissioners has authority to issue the permit required by W.S. 18-5-502 and which facility the board of county commissioners has referred to the council under W.S. 18-5-509;

(G) Any commercial facility generating electricity from solar power and associated solar collector systems if the facility:

(I) Has a rated power capacity of more than thirty (30) megawatts;

(II) Would result in a surface disturbance equal to or greater than one hundred (100) acres; or

(III) Is expanded to where the facility would satisfy subdivision (I) or (II) of this subparagraph.

(H) Any facility that would meet the definition of subparagraphs (E) or (G) of this paragraph but is planned for construction and siting or has its ownership or business structure organized in a way to circumvent the definition of "industrial facility" or "facility" or the requirements of this chapter while engaging in conduct that otherwise would be subject to the requirements of this article. A facility that meets the definition of this chapter shall comply with all requirements applicable to facilities defined by subparagraphs (E) and (G) of this paragraph.

(viii) "Local government" means any county, city, town or school district or any combination thereof as formed under the Wyoming Joint Powers Act;

(ix) Repealed by Laws 1992, ch. 60, § 4.

(x) "Permit" means the permit issued by the council and required for the construction or operation of any industrial facility or facilities;

(xi) "Person" includes an individual, group, firm, partnership, corporation, cooperative, association, or other entity excluding the state, federal government and local government. "Person" also includes the parent company, partnership or holding entity for a commercial facility generating electricity from wind or solar;

(xii) "Administrator" means the administrator of the division;

(xiii) "Division" means the industrial siting division of the department of environmental quality;

(xiv) "Collector system" means the electrical transmission infrastructure, including conductors, towers, substations, switchgear and other components necessary to deliver power from any commercial facility generating electricity from wind or solar up to, but not including, electric substations or similar facilities necessary to interconnect to existing or proposed transmission lines that serve load or export energy from Wyoming;

(xv) "Affected landowner" means any person holding record title to land on which any portion of a commercial facility generating electricity from wind or solar is proposed to be constructed and including any portion of any collector system located on those same lands. For purposes of this chapter, an affected landowner may be represented by any designated person.

35-12-103. Creation of industrial siting division.

There is created within the department of environmental quality the industrial siting division.

35-12-104. Industrial siting council created; composition; terms; removal; compensation.

(a) There is created the industrial siting council consisting of seven (7) members who are residents of Wyoming.

(b) The terms of council members shall be six (6) years, except that on the initial appointment three (3) members shall

serve for six (6) years, two (2) members shall serve for four (4) years and two (2) members shall serve two (2) years as designated by the initial appointment.

(c) Members shall be appointed by the governor with the advice and consent of the senate. The governor may remove any member as provided in W.S. 9-1-202. If a vacancy occurs the governor shall appoint a new member as provided in W.S. 28-12-101. Not more than seventy-five percent (75%) of the members shall be of the same political party.

(d) The council, annually, shall elect a chairman, vice-chairman and secretary from among its members. The council shall have at least four (4) regularly scheduled meetings each year and may meet at the call of the chairman or upon request of a majority of the members at other times. For the purpose of conducting council business four (4) members constitute a quorum but no action taken is valid unless approved by at least four (4) members.

(e) Council members appointed pursuant to this section shall be reimbursed for per diem, mileage and expenses and receive salary for attending meetings and hearings of the council in the same manner and amount as members of the Wyoming legislature.

(f) The administrative head of each state agency enumerated in W.S. 35-12-110(b), or the designated representative, may attend meetings of the council and serve in an advisory capacity to facilitate and expedite the decision making process of the council. The council may request any administrative head to pursue, evaluate and submit reports relative to any study which may be required in the evaluation of an application for a permit.

(g) Appointments and terms under this chapter shall be in accordance with W.S. 28-12-101 through 28-12-103.

35-12-105. Appointment and duties of administrator; staff; rules and regulations.

(a) The director shall appoint an administrator of the division who shall serve at the director's pleasure as the executive and administrative head of the division. The administrator is responsible to and under control and supervision of the director. The director shall employ such

other staff as deemed necessary by the director to carry out the functions and responsibilities of the division.

(b) The council shall promulgate rules and regulations pursuant to the Wyoming Administrative Procedure Act, implementing this chapter. The director, or the administrator if designated by the director, shall administer and enforce this chapter and any rules, regulations and orders approved or issued by the council.

(c) The director, administrator and the staff of the division are authorized to the extent possible, at the request of local governments, to provide technical assistance to local governments in the preparation of anticipated impacts related to a proposed project consistent with W.S. 39-15-111(c) and (d) and 39-16-111(d) and (e) and negotiation of agreements with applicants as provided for in W.S. 35-12-107.

(d) In addition to the rules and regulations adopted under subsection (b) of this section, the council shall promulgate rules and regulations prescribing decommissioning and site reclamation standards for facilities permitted under W.S. 35-12-102(a)(vii)(E), (F) and (G). Such standards shall preempt county rules or regulations concerning decommissioning and reclamation and shall be designed to assure the proper decommissioning and interim and final site reclamation of commercial facilities generating electricity from wind or solar and wind energy and solar energy facilities during construction and operation of the facility, at the end of their useful life, upon revocation of a permit authorizing their operation or upon the happening of any event which causes operations to cease. The council's regulation shall only preempt those facilities regulated under this act. In the event of any conflict between a standard applied under this subsection and a valid order of the Wyoming public service commission, the order of the public service commission shall be applied.

(e) In addition to the rules and regulations adopted under subsection (b) of this section, the council shall promulgate rules and regulations prescribing financial assurance requirements for facilities permitted by it pursuant to W.S. 35-12-102(a)(vii)(E), (F) and (G). These rules and regulations shall not apply to facilities that are public utilities and regulated by the Wyoming public service commission. These rules and regulations shall preempt county rules and regulations concerning financial assurances and shall be designed to provide adequate assurance that the permitted facilities will be

properly reclaimed and decommissioned at the end of their useful life, upon revocation of a permit authorizing their operation or upon the happening of any event which causes operations to cease. The elements to consider when establishing adequate levels of financial assurance shall include credit worthiness, financial strength, credit history, credit rating and any other factors that reasonably bear upon the decision to accept a financial assurance. The financial assurance may be in any form acceptable to the council and may include a corporate guarantee, letter of credit, bond, deposit account or insurance policy.

(f) In addition to the rules and regulations adopted under subsection (b) of this section, the council shall promulgate rules and regulations requiring applicants for facilities described in W.S. 35-12-102(a)(vii)(E), (F) and (G) to provide notice to record owners of mineral rights located on or under the lands where the proposed facility will be constructed. Such notice may include notice by publication.

(g) The council may adopt such rules and regulations, including fee structures, as are appropriate to accept and consider applications referred by any board of county commissioners under W.S. 18-5-509.

35-12-106. Permit from council required before commencing construction of facility; electronic permitting; amendments; exceptions; federal requirements.

(a) No person shall commence to construct a facility, as defined in this chapter, in this state without first obtaining a permit for that facility from the council. Any facility, for which a permit is required, shall be constructed, operated and maintained in conformity with the permit and any terms, conditions and modifications contained in the permit. A permit may only be issued pursuant to this chapter or pursuant to the provisions of W.S. 18-5-501 through 18-5-513 for facilities referred to the council.

(b) A permit may be transferred, subject to council approval, to a person who agrees to comply with the terms, conditions and modifications contained in the permit.

(c) Except as provided in subsection (d) of this section, the council may allow the amendment of a permit or application for a permit for good cause if the holder demonstrates to the council at its next meeting that the requested change is in compliance with local ordinances and applicable land use plans

and will not significantly add to adverse environmental, social and economic impact in the impacted area.

(d) On an application for an amendment of a permit, the council shall hold a hearing in the same manner as a hearing is held on an application for a permit if in the council's opinion the requested change in the facility would result in a significant adverse increase in any environmental, social or economic impact of the facility or a change in the location of all or a portion of the facility unless the change in location was specifically approved by the council in the permit.

(e) The council may waive the application and permit provisions of this chapter if the applicant establishes by clear and convincing proof that an emergency exists created by the loss or damage to an existing facility which seriously threatens the health, safety and welfare of the public.

(f) The council may allow the permitting and reporting requirements of this act to be conducted electronically as provided by the Uniform Electronic Transaction Act, W.S. 40-21-101 through 40-21-119.

(g) For a permit issued for a facility meeting the definition of W.S. 35-12-102(a)(vii)(E), there shall be no vertical construction of a wind turbine within two (2) nautical miles of any active federal military missile launch or control facility, unless the owner or developer of the facility first obtains and furnishes documentation to the division of:

(i) A written determination of no adverse impact on nuclear security operations from the military installation commander or the commander's designee. The determination shall not be unreasonably withheld or denied;

(ii) A determination of no hazard from the federal aviation administration; and

(iii) Documentation from the federal military aviation and installation assurance siting clearinghouse that resolves any potential adverse impact on military operations and readiness and that commits to implement required mitigation measures.

35-12-107. Request for waiver of permit application; form.

(a) Any person proposing to construct an industrial facility may submit a written request for a waiver of the application provisions of this chapter.

(b) A request for a waiver shall be filed with the division, in a form as prescribed by council rules and regulations, and shall contain the following information:

(i) The name and address of the applicant, and if the applicant is a partnership, association or corporation, the names and addresses of the managers designated by the applicant responsible for permitting or construction of the facility;

(ii) A description of the nature and location of the facility;

(iii) Estimated time of commencement of construction and construction time;

(iv) Estimated number and job classifications by calendar quarter of employees of the applicant, or contractor or subcontractor of the applicant, during the construction phase and during the operating phase;

(v) Estimated population increases attributable to the facility;

(vi) Estimated additional revenue to local governments due to the facility;

(vii) Estimated construction cost of the facility;

(viii) A description of the methods and strategies the applicant will use to maximize the employment and utilization of the existing local or in-state contractors and labor force during the construction and operation of the facility;

(ix) Any other information the applicant considers relevant or required by council rule or regulation;

(x) The procedures proposed to avoid constituting a public nuisance, endangering the public health and safety, human or animal life, property, wildlife or plant life, or recreational facilities which may be adversely affected by the facility;

(xi) Preliminary evaluations of or plans and proposals for alleviating social, economic or environmental impacts upon local government or any special districts which may result from the proposed facility, including voluntary company agreements with local governments;

(xii) Certification that the governing bodies of all local governments within the potentially impacted area were provided notification, a description of the proposed project and an opportunity to ask the applicant questions at least thirty (30) days prior to submission of the application;

(xiii) For facilities permitted pursuant to W.S. 35-12-102(a)(vii)(E), (F) or (G), a site reclamation and decommissioning plan, which shall be updated every five (5) years and a description of a financial assurance plan which will assure that all facilities will be properly reclaimed and decommissioned. All such plans, unless otherwise exempt, shall demonstrate compliance with any rules or regulations adopted by the council pursuant to W.S. 35-12-105(d) and (e);

(xiv) Information demonstrating the applicant's financial capability to decommission and reclaim the facility. For facilities meeting the definition of W.S. 35-12-102(a)(vii)(E) or (G) the information shall also demonstrate the applicant's financial capability to construct, maintain and operate the facility;

(xv) For proposed facilities meeting the requirements of W.S. 35-12-102(a)(vii)(E), (F) or (G), a list of all affected landowners with an address at which each affected landowner can be given the notices required by this act.

(c) Not more than seven (7) days following receipt of a request for a waiver, the director shall:

(i) Serve notice of the request upon the governing bodies of local governments which will be primarily affected by the proposed facility and, for proposed facilities meeting the requirements of W.S. 35-12-102(a)(vii)(E), (F) or (G), upon affected landowners;

(ii) Cause a summary of the request to be published in one (1) or more newspapers of general circulation within the area to be primarily affected by the proposed facility;

(iii) File a copy of the request with the county clerk of the county or counties in which the proposed facility will be constructed or which will be affected by the construction.

(d) Not more than fourteen (14) days following receipt of a request, the director shall:

(i) Schedule and conduct a public meeting;

(ii) Notify the applicant and local governments of the meeting and, for proposed facilities meeting the requirements of W.S. 35-12-102(a)(vii)(E), (F) or (G), notify affected landowners;

(iii) Cause notice of the meeting to be published in one (1) or more newspapers of general circulation within the area to be primarily affected by the proposed facility; and

(iv) Hold the meeting at a community as close as practicable to the proposed facility.

(e) At the public meeting, the applicant shall present such information as necessary to describe the proposed facility and its estimated impacts upon local units of government.

(f) Within fourteen (14) days of the public meeting, the applicant shall meet with the director and each local government affected by the proposed facility to determine the mitigation required to minimize any adverse impacts resulting from the proposed facility.

(g) Not more than fifty (50) days following receipt of a request, the director shall:

(i) Schedule and conduct a public hearing;

(ii) Notify the applicant and local governments of the hearing and, for proposed facilities meeting the requirements of W.S. 35-12-102(a)(vii)(E), (F) or (G), notify affected landowners;

(iii) Cause notice of the hearing to be published in one (1) or more newspapers of general circulation within the area to be primarily affected by the proposed facility; and

(iv) Hold the hearing at a community as close as practicable to the proposed facility.

(h) The applicant shall present any evidence necessary to demonstrate to the council:

(i) That the facility would not produce an unacceptable environmental, social or economic impact;

(ii) That the applicant has reached agreement with local governments affected by the facility on the mitigation required to alleviate adverse effects resulting from the facility; and

(iii) That the applicant has financial resources to decommission and reclaim the facility. For facilities meeting the definition of W.S. 35-12-102(a)(vii)(E) or (G) the evidence shall also demonstrate the applicant's financial capability to construct, maintain and operate the facility.

(j) Within ten (10) days from the date of completion of the hearing the council shall make complete findings, issue an opinion and render a decision upon the record, either granting or denying the request for a waiver. The council shall grant a request for a waiver either as proposed or as modified by the council if it finds and determines that:

(i) The facility would not produce an unacceptable environmental, social and economic impact;

(ii) The applicant has discussed the proposed facility with all local governments potentially affected by the project;

(iii) The proposed facility is in compliance with all local ordinances and land use plans; and

(iv) The applicant has financial resources to decommission and reclaim the facility. For facilities meeting the definition of W.S. 35-12-102(a)(vii)(E) or (G) the council shall also be required to find the applicant has financial resources to construct, maintain and operate the facility.

(k) No request for a waiver shall be granted if two (2) or more local governments which will be affected are not satisfied that the facility, considering the voluntary company agreements, represents an acceptable impact on the local governments.

(m) If the council decides to waive all of the application requirements of this chapter, it shall issue a permit for the facility in accordance with W.S. 35-12-113. If the council decides to waive a part of the application requirements of this chapter, it shall issue an order specifying the requirements which will not be required for an application filed pursuant to W.S. 35-12-109.

35-12-108. Quantity of water available; analysis; public comment; opinions.

(a) If an applicant applies for an industrial siting permit, pursuant to W.S. 35-12-106, or for a waiver of the application provisions, pursuant to W.S. 35-12-107, for a facility which requires the use of eight hundred (800) or more acre feet of the waters of this state annually, the applicant shall prepare and submit to the state engineer a water supply and water yield analysis with a request for a preliminary and final opinion as to the quantity of water available for the proposed facility.

(b) Within ninety (90) days after the applicant has submitted an acceptable water supply and yield analysis, the state engineer, at the applicant's expense, shall complete a comprehensive review of the water supply and water yield analysis submitted.

(c) Within five (5) days after completion of the review, the state engineer shall render a preliminary opinion as to the quantity of water available for the proposed facility. The preliminary opinion, or a reasonable summary, shall be published for three (3) consecutive weeks in a newspaper of general circulation in the county in which the proposed facility is to be located. The expense of the publication shall be borne by the applicant.

(d) The state engineer may hold a public hearing before rendering a final opinion on the water supply and water yield analysis.

(e) In rendering a final opinion as to the quantity of water available for the proposed facility, the state engineer shall consider any comments which are submitted in writing within twenty (20) days of the last date of publication.

(f) Within thirty (30) days after the last date of publication, the state engineer shall render a final opinion. The final opinion shall:

(i) Be submitted to the industrial siting council and the public service commission;

(ii) Be binding on the industrial siting council for the purposes of issuing an industrial siting permit; and

(iii) Be reviewed by the public service commission prior to its issuance of a certificate of public convenience and necessity.

(g) The state engineer's preliminary and final opinion shall not create a presumption concerning injury or noninjury to water rights, nor shall those opinions be used as evidence in any administrative proceeding or in any judicial proceeding concerning water right determinations or administration.

35-12-109. Application for permit; form; fee; financial accounting.

(a) An application for a permit shall be filed with the division, in a form as prescribed by council rules and regulations, and shall contain the following information:

(i) The name and address of the applicant, and, if the applicant is a partnership, association or corporation, the names and addresses of the managers designated by the applicant responsible for permitting, construction or operation of the facility;

(ii) The applicant shall state that to its best knowledge and belief the application is complete when filed and includes all the information required by W.S. 35-12-109 and the rules and regulations, except for any requirements specifically waived by the council pursuant to W.S. 35-12-107;

(iii) A description of the nature and location of the facility;

(iv) Estimated time of commencement of construction and construction time;

(v) Estimated number and job classifications, by calendar quarter, of employees of the applicant, or contractor

or subcontractor of the applicant, during the construction phase and during the operating life of the facility. Estimates shall include the number of employees who will be utilized but who do not currently reside within the area to be affected by the facility;

(vi) Future additions and modifications to the facility which the applicant may wish to be approved in the permit;

(vii) A statement of why the proposed location was selected;

(viii) A copy of any studies which may have been made of the environmental impact of the facility;

(ix) Inventory of estimated discharges including physical, chemical, biological and radiological characteristics;

(x) Inventory of estimated emissions and proposed methods of control;

(xi) Inventory of estimated solid wastes and proposed disposal program;

(xii) The procedures proposed to avoid constituting a public nuisance, endangering the public health and safety, human or animal life, property, wildlife or plant life, or recreational facilities which may be adversely affected by the estimated emissions or discharges;

(xiii) An evaluation of potential impacts together with any plans and proposals for alleviating social and economic impacts upon local governments or special districts and alleviating environmental impacts which may result from the proposed facility. The evaluations, plans and proposals shall cover the following:

(A) Scenic resources;

(B) Recreational resources;

(C) Archaeological and historical resources;

(D) Land use patterns;

(E) Economic base;

- (F) Housing;
- (G) Transportation;
- (H) Sewer and water facilities;
- (J) Solid waste facilities;
- (K) Police and fire facilities;
- (M) Educational facilities;
- (N) Health and hospital facilities;
- (O) Water supply;
- (P) Other relevant areas;
- (Q) Agriculture;
- (R) Terrestrial and aquatic wildlife;

(S) Threatened, endangered and rare species and other species of concern identified in the state wildlife action plan as prepared by the Wyoming game and fish department.

(xiv) Estimated construction cost of the facility;

(xv) What other local, state or federal permits and approvals are required;

(xvi) Compatibility of the facility with state or local land use plans, if any;

(xvii) Any other information the applicant considers relevant or required by council rule or regulation;

(xviii) A description of the methods and strategies the applicant will use to maximize employment and utilization of the existing local or in-state contractors and labor force during the construction and operation of the facility;

(xix) Certification that the governing bodies of all local governments which will be primarily affected by the proposed facility were provided notification, a description of the proposed project and an opportunity to ask the applicant

questions at least thirty (30) days prior to submission of the application;

(xx) For facilities permitted pursuant to W.S. 35-12-102(a)(vii)(E), (F) or (G), a site reclamation and decommissioning plan, which shall be updated every five (5) years, and a description of a financial assurance plan which will assure that all facilities will be properly reclaimed and decommissioned. All such plans, unless otherwise exempt, shall demonstrate compliance with any rules or regulations adopted by the council pursuant to W.S. 35-12-105(d) and (e);

(xxi) Information demonstrating the applicant's financial capability to decommission and reclaim the facility. For facilities meeting the definition of W.S. 35-12-102(a)(vii)(E) or (G) the information shall also demonstrate the applicant's financial capability to construct, maintain and operate the facility;

(xxii) For proposed facilities meeting the requirements of W.S. 35-12-102(a)(vii)(E), (F) or (G), a list of all affected landowners with an address at which each affected landowner can be given the notices required by this act.

(b) At the time of filing an application or a written request for a waiver of the application provisions of this chapter as provided in W.S. 35-12-107, or as subsequently required by the director, an applicant shall pay a fee to be determined by the director based upon the estimated cost of investigating, reviewing, processing and serving notice of an application, holding a hearing in case of a request for waiver, inspection and compliance activities and processing application update requests. The fee shall be credited to a separate account and shall be used by the division as required to investigate, review, process and serve notice of the application, to hold a hearing in case of a request for waiver and to pay the reasonable costs of any meeting or hearing associated with permit compliance. Unused fees shall be refunded to the applicant. The maximum fee chargeable shall not exceed one-half of one percent (0.5%) of the estimated construction cost of the facility or one hundred thousand dollars (\$100,000.00), whichever is less.

(c) The director shall provide the applicant with a full financial accounting, including but not limited to all materials, labor and overhead costs relating to the expenditures of the fee at the time of the council's decision as provided in

W.S. 35-12-113 or at the completion of construction, whichever occurs later.

(d) At any time after the fee required by subsection (b) of this section has been exhausted or refunded and in addition to the fee imposed under subsection (b) of this section, the applicant may be required to pay a fee, as determined by the director, for the costs of any meeting or hearing associated with permit compliance. The director shall provide the applicant with a full financial accounting for the expenditure of the fee, including but not limited to all materials, labor and overhead costs, at the conclusion of the council meeting or hearing.

35-12-110. Service of notice of application; information and recommendations; application deficiencies; procedure; jurisdiction; hearing.

(a) Not more than ten (10) days following receipt of an application for a permit, the director shall:

(i) Serve an electronic or physical copy of the application upon the governing bodies of local governments which will be primarily affected by the proposed facility together with notice of the applicable provisions of W.S. 35-12-111 and, for proposed facilities meeting the requirements of W.S. 35-12-102(a)(vii)(E), (F) or (G), serve a copy of the application with notice of the applicable provisions of W.S. 35-12-111 upon affected landowners;

(ii) Cause a summary of the application to be published in one (1) or more newspapers of general circulation within the area to be primarily affected by the proposed facility;

(iii) File a copy of the application with the county clerk of the county or counties in which the proposed facility will be constructed.

(b) The division shall obtain information and recommendations from the following state agencies relative to the impact of the proposed facility as it applies to each agency's area of expertise:

(i) Wyoming department of transportation;

(ii) Public service commission;

- (iii) Repealed By Laws 1998, ch. 6, § 5.
- (iv) Game and fish department;
- (v) Department of health;
- (vi) Department of education;
- (vii) Office of state engineer;
- (viii) Repealed by Laws 1990, ch. 44, § 3.
- (ix) Wyoming state geologist;
- (x) Wyoming department of agriculture;
- (xi) Department of environmental quality;
- (xii) Repealed by Laws 1992, ch. 60, § 4.
- (xiii) Repealed by Laws 1990, ch. 44, § 3.
- (xiv) The University of Wyoming;
- (xv) Department of revenue;
- (xvi) The Wyoming business council;
- (xvii) Department of workforce services;
- (xviii) Office of state lands and investments;
- (xix) Department of workforce services;
- (xx) Department of state parks and cultural
resources;
- (xxi) Department of fire prevention and electrical
safety;
- (xxii) Department of family services;
- (xxiii) Oil and gas conservation commission.

(c) The information required by subsection (b) of this section shall be provided by the agency from which it is

requested not more than sixty (60) days from the date the request is made and shall include opinions as to the advisability of granting or denying the permit together with reasons therefor, and recommendations regarding appropriate conditions to include in a permit, but only as to the areas within the expertise of the agency. Each agency which has regulatory authority over the proposed facility shall provide to the council a statement defining the extent of that agency's jurisdiction to regulate impacts from the facility, including a statement of the agency's capability to address cumulative impacts of the facility in conjunction with other facilities. The statement of jurisdiction from each agency is binding on the council.

(d) On receipt of an application, the director shall conduct a review of the application to determine if it contains all the information required by W.S. 35-12-109 and the rules and regulations. If the director determines that the application is incomplete, he shall within thirty (30) days of receipt of the application notify the applicant of the specific deficiencies in the application. The applicant shall provide the additional information necessary within thirty (30) days of a receipt of a request for additional information from the director.

(e) Upon receipt of the additional information specified in subsection (d) of this section, the director shall either notify the applicant that the application is complete or notify the applicant of continued deficiencies. The applicant shall provide the required information within fifteen (15) days of receipt of the notice of continued deficiency. Upon receipt of the second deficiency notice, the applicant may:

(i) Provide the required information within the time allotted; or

(ii) Withdraw the application.

(iii) Repealed By Laws 2010, Ch. 47, § 2.

(f) Not more than ninety (90) days after receipt of an application for a permit, the director shall:

(i) Schedule and conduct a public hearing, provided that no hearing shall be held until the state engineer has submitted a preliminary and final opinion as to the quantity of water available for the proposed facility pursuant to W.S. 35-12-108;

(ii) Notify the applicant and local governments of the hearing and, for proposed facilities meeting the requirements of W.S. 35-12-102(a)(vii)(E), (F) or (G), notify affected landowners;

(iii) Cause notice of the hearing to be published in one (1) or more newspapers of general circulation within the area to be primarily affected by the proposed facility; and

(iv) Hold the hearing at a community as close as practicable to the proposed facility. The provisions of W.S. 35-12-111, 35-12-112 and 35-12-114 apply to the hearing.

(g) For proposed facilities meeting the requirements of W.S. 35-12-102(a)(vii)(E), (F) or (G):

(i) The division shall request information and recommendations from affected landowners relative to the impact of the proposed facility as it applies to each affected landowner's lands and interests;

(ii) Not less than twenty-five (25) days prior to any scheduled hearing on the application, the director shall provide to all affected landowners a copy of all information received from agencies providing information under subsections (b) and (c) of this section; and

(iii) Agencies providing opinions and recommendations under subsections (b) and (c) of this section shall receive comments from affected landowners and shall provide a summary of all affected landowner comments with other information submitted. If comments are received after the agency's other information is submitted, the comments shall be forwarded when received to the division.

35-12-111. Parties to permit proceeding; waiver by failure to participate.

(a) The parties to a permit proceeding include:

(i) The applicant;

(ii) Each local government entitled to receive a copy of the application under W.S. 35-12-110(a)(i);

(iii) Any person residing in a local government entitled to receive a copy of the application under W.S. 35-12-110(a)(i) including any person holding record title to lands directly affected by construction of the facility and any nonprofit organization with a Wyoming chapter, concerned in whole or in part to promote conservation or natural beauty, to protect the environment, personal health or other biological values, to preserve historical sites, to promote consumer interests, to represent commercial, agricultural and industrial groups, or to promote the orderly development of the areas in which the facility is to be located. In order to be a party the person or organization must file with the office a notice of intent to be a party not less than twenty (20) days before the date set for the hearing.

(b) Any party identified in paragraph (a)(iii) of this section waives his right to be a party if he does not participate orally at the hearing. Any party identified in paragraph (a)(ii) of this section waives its right to be a party unless the local government files a notice of intent to be a party with the office not less than twenty (20) days before the date set for the hearing.

(c) Any person may make a limited appearance in the proceeding by filing a statement in writing with the council prior to adjournment of the hearing. A statement filed by a person making a limited appearance shall become part of the record and shall be made available to the public. No person making a limited appearance under this subsection is a party to the proceeding.

(d) No state agency other than the industrial siting division shall act as a party at the hearing. Members and employees of all other state agencies and departments may file written comments prior to adjournment of the hearing but may testify at the hearing only at the request of the council, the industrial siting division or any party.

(e) Any person described in W.S. 35-12-111(a)(ii) or (iii) who participated in the public hearing under W.S. 35-12-107 may obtain judicial review of a council decision waiving all or part of the application requirements of this chapter.

35-12-112. Record of hearing; procedure.

Any studies, investigations, reports or other documentary evidence, including those prepared by the division, which any

party wishes the council to consider or which the council itself expects to utilize or rely upon, shall be made a part of the record. A complete record shall be made of the hearing and of all testimony taken. The contested case procedures of the Wyoming Administrative Procedure Act apply to the hearing under W.S. 35-12-110(f), but do not apply to the hearing under W.S. 35-12-107.

35-12-113. Decision of council; findings necessary for permit conditions imposed; service of decision on parties; waste management surcharge.

(a) Within forty-five (45) days from the date of completion of the hearing the council shall make complete findings, issue an opinion and render a decision upon the record, either granting or denying the application as filed, or granting it upon terms, conditions or modifications of the construction, operation or maintenance of the facility as the council deems appropriate. The council shall not consider the imposition of conditions which address impacts within the area of jurisdiction of any other regulatory agency in this state as described in the information provided in W.S. 35-12-110(b), unless the other regulatory agency requests that conditions be imposed. In considering the imposition of conditions requested by other agencies upon private lands, the council shall consider in the same manner and to the same extent any comments presented by an affected landowner. The council may consider direct or cumulative impacts not within the area of jurisdiction of another regulatory agency in this state. The council shall grant a permit either as proposed or as modified by the council if it finds and determines that:

(i) The proposed facility complies with all applicable law;

(ii) The facility will not pose a threat of serious injury to the environment nor to the social and economic condition or inhabitants or expected inhabitants in the affected area;

(iii) The facility will not substantially impair the health, safety or welfare of the inhabitants; and

(iv) The applicant has financial resources to decommission and reclaim the facility. For facilities meeting the definition of W.S. 35-12-102(a)(vii)(E) the council shall

also be required to find the applicant has financial resources to construct, maintain and operate the facility.

(b) No permit shall be granted if the application is incomplete.

(c) If the council determines that the location of all or part of the proposed facility should be modified, it may condition its permit upon that modification, provided that the local governments, and persons residing therein, affected by the modification, have been given reasonable notice of the modification.

(d) The council shall issue with its decision, an opinion stating in detail its reasons for the decision. If the council decides to grant a permit for the facility, it shall issue the permit embodying the terms and conditions in detail, including the time specified to commence construction, which time shall be determined by the council's decision as to the reasonable capability of the local government, most substantially affected by the proposed facility, to implement the necessary procedures to alleviate the impact. A copy of the decision shall be served upon each party.

(e) A permit may be issued conditioned upon the applicant furnishing a bond to the division in an amount determined by the director from which local governments may recover expenditures in preparation for impact to be caused by a facility if the permit holder does not complete the facility proposed. The permit holder is not liable under the bond if the holder is prevented from completing the facility proposed by circumstances beyond his control.

(f) Within ten (10) days from the date of the council's decision, a copy of the findings and the council's decision shall be served upon the applicant, parties to the hearing and local governments to be substantially affected by the proposed facility and filed with the county clerk of the county or counties to be primarily affected by the proposed facility. Notice of the decision shall be published in one (1) or more newspapers of general circulation within the area to be affected by the proposed facility.

(g) Each approved facility enumerated under W.S. 35-12-102(a)(vii)(A) through (D) shall, on a quarterly basis, remit to the division a waste management surcharge to be deposited in the general fund. The surcharge amount is:

(i) A minimum of ten dollars (\$10.00) per short ton of solid wastes, including radioactive wastes, received at the facility, less a minimum of five dollars (\$5.00) for each short ton of solid wastes removed at the facility and recycled or reused and less any amount credited against the surcharge pursuant to W.S. 35-11-503(b) (iv) (B); and

(ii) A minimum of twenty-five dollars (\$25.00) per short ton of hazardous wastes received at the facility, less a minimum of three dollars (\$3.00) for each short ton of hazardous wastes treated at the facility to reduce toxicity and long-term hazards to the environment.

(h) For applicants subject to W.S. 35-12-105(e), a permit may be issued conditioned upon the applicant furnishing a bond or other financial assurance acceptable to the division in an amount determined by the director to cover the cost of decommissioning and reclaiming the facility.

(j) The council may deny an application if the facility that is the subject of the application will unreasonably interfere with the development of a known and currently economically developable mineral resource within the proposed facility.

35-12-114. Review of grant or denial of permit.

(a) Any party as defined in W.S. 35-12-111 aggrieved by the final decision of the council on an application for a permit may obtain judicial review by the filing of a petition in any state district court in which the major portion of the proposed facility is to be located within thirty (30) days after the issuance of a final decision. The petition for appeal by any party must include an express assumption of the cost of preparation of the complete written transcripts and record for the court. Upon receipt of a petition, the division shall deliver to the court a copy of the complete written transcript of the record of the proceeding before it and a copy of the council's decision and opinion entered therein which shall constitute the record on judicial review. At the same time the division shall deliver to the petitioner an itemized statement of the cost of preparing the complete written transcript and record for the court. The petitioner shall pay the division this cost within forty-five (45) days or forfeit the right to appeal to district court. A copy of the transcript, decision and

opinion shall remain on file with the division and shall be available for public inspection.

(b) When a decision is issued after a hearing on an application for a permit, the decision is final for purposes of judicial review. The judicial review procedure shall be the same as that for contested cases under the Wyoming Administrative Procedure Act.

35-12-115. Additional requirements by other governmental agencies not permitted after issuance of permit; exceptions.

(a) Notwithstanding any other provision of law, no state, intrastate regional agency or local government may require any approval, consent, permit, certificate or other condition for the construction, operation or maintenance of a facility authorized by a permit issued pursuant to this chapter except that:

(i) The department of environmental quality shall retain authority which it has or which it may be granted to determine compliance of the proposed facility with state and federal standards and implementation plans and to enforce those standards; and

(ii) The public service commission shall retain authority which it has or may be granted relative to certificates of convenience and necessity, rates, interchange of services and safety regulations.

(b) Nothing in this chapter prevents the application of state laws for the protection of employees engaged in the construction, operation or maintenance of any facility specified in this section.

35-12-116. Revocation or suspension of permit.

(a) A permit may be revoked or suspended for:

(i) Any material false statement in the application or in accompanying statements or studies required of the applicant, if a true statement would have warranted the council's refusal to grant a permit;

(ii) Failure to comply with the terms or conditions of the permit after notice of the failure from the office and reasonable opportunity to correct the failure; or

(iii) Violation of this chapter, the regulations issued pursuant to this chapter or orders of the council or office.

35-12-117. Monitoring of facilities.

(a) Except as provided in subsection (b) of this section, the council and the division, utilizing to the fullest extent possible the staff and resources of all state agencies, boards and commissions, has continuing authority and responsibility for:

(i) Monitoring the operations of all facilities which have been granted permits under this chapter;

(ii) Assuring continuing compliance with this chapter and permits issued pursuant to this chapter; and

(iii) Discovering and preventing noncompliance with this chapter and the permits.

(b) The department of environmental quality has exclusive continuing authority and responsibility for monitoring and assuring compliance with:

(i) Laws and regulations pertaining to air, water and land quality, and solid waste management; and

(ii) Any permit conditions ordered by the council relating to matters of air, water and land quality, and solid waste management.

35-12-118. Penalties for violations; civil action by attorney general.

(a) No person shall:

(i) Commence to construct a facility after the effective date of this chapter without first obtaining a permit required under this chapter;

(ii) Construct, operate or maintain a facility, after having first obtained a permit, other than in specific compliance with the permit;

(iii) Cause any of the acts specified in this subsection to occur;

(iv) Operate or maintain an industrial facility without having first obtained the permit required under this chapter.

(b) Any person violating subsection (a) of this section is liable to a civil penalty of not more than ten thousand dollars (\$10,000.00) for each violation. Each day of a continuing violation constitutes a separate offense. The penalty shall be recoverable in a civil suit brought by the attorney general on behalf of the state in the district court in and for the county of Laramie.

(c) Whoever knowingly and willfully violates subsection (a) of this section shall be fined not more than ten thousand dollars (\$10,000.00) for each violation or imprisoned for not more than one (1) year, or both. Each day of a continuing violation constitutes a separate offense.

(d) In addition to any penalty provided in subsection (b) or (c) of this section, if the director determines that a person is violating this section, he shall refer the matter to the attorney general who may bring a civil action on behalf of the state in the district court in and for the county of Laramie for injunctive or other appropriate relief against the violation and to enforce this chapter or a permit issued under this chapter, and upon a proper showing a permanent or preliminary injunction or temporary restraining order shall be granted without bond.

(e) All fines collected pursuant to subsection (b) of this section shall be paid to the state treasurer and credited as provided in W.S. 8-1-109.

35-12-119. Exemptions; information required.

(a) Nonmineral processing facilities to be constructed in existing industrial parks, as designated by local governments, are exempt from payment of fees and certification procedures but shall furnish the information required by W.S. 35-12-109(a)(iii), (iv) and (v) to the division if included in W.S. 35-12-102(a)(vii).

(b) State and local governmental units and agencies are exempt from the application and permit procedures of this chapter, but prior to commencing to construct any facility as

provided in W.S. 35-12-102(a)(vii), those units and agencies shall furnish to the division information required by W.S. 35-12-109(a)(iii), (iv) and (v).

(c) The construction, operation and maintenance of the following activities are exempt from this chapter:

(i) Electric transmission lines with a maximum operating voltage of less than one hundred sixty thousand (160,000) volts, except:

(A) Any collector system, regardless of voltage, associated with a commercial facility generating electricity from wind and which meets the definition of an industrial facility pursuant to W.S. 35-12-102(a)(vii)(E) and (F) shall not be exempt;

(B) A commercial facility generating electricity from wind that is exempt from W.S. 35-12-102(a)(vii)(E) or (F) shall not become subject to this chapter because its collector system is greater than one hundred sixty thousand (160,000) volts.

(ii) Oil and gas drilling facilities;

(iii) All pipelines except coal slurry pipelines;

(iv) Oil and gas producing facilities;

(v) Oil and gas wellfield activities.

(d) Activities exempt under this section shall not be included as part of the application review of a facility subject to this chapter, and the council does not have jurisdiction over exempt activities. Applicants shall furnish the information required by W.S. 35-12-109(a)(iii), (iv), (v) and (viii) for exempt activities.

CHAPTER 13 - FACILITIES IN PUBLIC BUILDINGS FOR PHYSICALLY HANDICAPPED

ARTICLE 1 - IN GENERAL

35-13-101. Renumbered as 16-6-501 by Laws 1982, ch. 62, § 3.

(f) Escrow. There are no specific applicable provisions for escrow for this article.

(g) If a mobile telecommunications service customer believes that the amount of tax, assessment or assignment of place of primary use or taxing jurisdiction included in the customer's billing is erroneous, the customer shall notify the home service provider in writing. The written notification shall include the street address of the customer's place of primary use, the account name and number, a description of the error claimed by the customer, and any other information which the home service provider reasonably requires to process the request. Within sixty (60) days of receiving a written notice under this subsection, the home service provider shall review its records to determine the customer's taxing jurisdiction. If the review shows that the amount of tax, assessment or assignment of place of primary use or taxing jurisdiction is in error, the home service provider shall correct the error and refund or credit the amount of tax, charge or fee erroneously billed to the customer for a period of not to exceed three (3) years. If the review shows that the amount of tax, assessment and assignment of place of primary use or taxing jurisdiction are correct, the home service provider shall provide a written explanation to the customer. The procedures in this subsection shall be the first course of remedy available to a customer for a billing dispute, and no cause of action based upon the billing dispute shall accrue until the customer has reasonably exercised the rights and procedures set forth in this subsection.

39-15-110. Statute of limitations.

(a) No credit or refund shall be allowed after three (3) years from the date of overpayment. The receipt of a claim for a refund by the department shall toll the statute of limitations.

(b) The department may bring an action to recover any delinquent taxes, penalty or interest in any appropriate court within three (3) years following the delinquency. In the case of an assessment created by an audit, the delinquency period is deemed to start thirty (30) days after the date the assessment letter is sent. Any tax penalty and interest related to the audit assessment shall be calculated from the filing period during which the deficiency occurred. In any such action a certificate by the department is prima facie evidence of the amount due.

39-15-111. Distribution.

(a) License fees and interest collected by the department pursuant to this article shall be transferred to the state treasurer who shall credit them to the general fund. All penalties collected by the department under this article shall be paid to the state treasurer and credited as provided in W.S. 8-1-109, except the total sum of penalties collected by the department and paid to the state treasurer shall be allocated based upon the ratio of each county's population to the population of the state.

(b) Revenues earned under W.S. 39-15-104 during each fiscal year shall be recognized as revenue during that fiscal year for accounting purposes. Except as otherwise provided in subsection (p) of this section, for all revenue collected by the department under W.S. 39-15-104 the department shall:

(i) Credit sixty-nine percent (69%) to the state general fund for deposit by the state treasurer except as provided by subsections (c) and (d) of this section and less any credit allowed pursuant to W.S. 39-15-107(b)(xi);

(ii) Deduct one percent (1%) from the remaining share to cover all administrative expenses and costs attributable to the remaining share and credit for deposit by the state treasurer into the general fund for that amount;

(iii) From the remaining share, until June 30, 2004, deduct an amount equivalent to one-half percent (0.5%) and thereafter deduct an amount equivalent to one percent (1%) of the tax collected under W.S. 39-15-104. From this amount, the department shall distribute until June 30, 2004, twenty thousand dollars (\$20,000.00) and thereafter forty thousand dollars (\$40,000.00) annually to each county in equal monthly installments and then distribute the remainder to each county in the proportion that the total population of the county bears to the total population of the state. The balance shall then be paid monthly to the treasurers of the counties, cities and towns for payment into their respective general funds. The percentage of the balance that will be distributed to each county and its cities and towns will be determined by computing the percentage that net sales taxes collected attributable to vendors in each county including its cities and towns bear to total net sales taxes collected of vendors in all counties including their cities and towns. Subject to subsection (h) of this section, this percentage of the balance shall be distributed within each county as follows:

(A) To each county in the proportion that the population of the county situated outside the corporate limits of its cities and towns bears to the total population of the county including cities and towns;

(B) To each city and town within the county in the proportion the population of the city or town bears to the population of the county.

(c) If any person commences after the effective date of this act to construct an industrial facility, as that term is defined in W.S. 35-12-102, under a permit issued pursuant to W.S. 35-12-106, or if the federal or state government commences to construct any project within this state with an estimated construction cost as specified in the definition of industrial facility in W.S. 35-12-102 the department of revenue shall thereafter pay to the county treasurer and the county treasurer will distribute to the county, cities and towns of that county in which the industrial facility or project is located, impact assistance payments from the monies available under paragraph (b)(i) of this section. Each payment to the county treasurer shall be equal to an amount determined by the industrial siting council under this subsection and shall continue during the period of construction except that in the case of an industrial facility or a federal or state government project which is expected to continue in phases for an indefinite period of time, the department of revenue shall discontinue payments under this section when construction of any phase has ceased or been substantially completed for twelve (12) consecutive months. The person constructing the industrial facility and the counties affected by the construction of the industrial facility shall provide evidence at the public hearing held pursuant to W.S. 35-12-110(f)(i) of the mitigated and unmitigated impacts that the construction will have on the counties, cities and towns determined by the industrial siting council to be affected by the construction of the industrial facility. The industrial siting council shall review the evidence of the impacts and determine, applying a preponderance of evidence standard, the dollar amount of the unmitigated impacts. The council shall state, in the order issued under W.S. 35-12-113(a), the total dollar amount of the impact assistance payment and include specific findings of fact detailing the basis for the total dollar amount determination and if requested by the affected county, city or town, its justification for rejecting, in whole or in part, an application for an impact assistance payment. The impact assistance payment shall be distributed by the department

of revenue in an amount and on a schedule determined by the council, based on evidence presented at the hearing. Under no circumstances shall the total dollar amount of the impact assistance payment exceed the maximum allowable percentage specified in this subsection of the total estimated material costs of the facility, as those costs are determined by the council. The maximum allowable percentage shall be two and twenty-five hundredths percent (2.25%) for facilities with total estimated materials costs of three hundred fifty million dollars (\$350,000,000.00) or less except as otherwise provided in this subsection, two percent (2%) for facilities with total estimated materials costs in excess of three hundred fifty million dollars (\$350,000,000.00) but less than eight hundred fifty million dollars (\$850,000,000.00) and one and one-half percent (1.50%) for facilities with total estimated materials costs of eight hundred fifty million dollars (\$850,000,000.00) or more. For facilities with total estimated materials costs of three hundred fifty million dollars (\$350,000,000.00) or less, the council may increase the maximum allowable percentage to not more than two and seventy-six hundredths percent (2.76%) if the council includes in the specific findings required under this subsection that the maximum allowable percentage of two and twenty-five hundredths percent (2.25%) is insufficient to mitigate the identified impacts. The council shall submit a report to the joint appropriations committee and the joint minerals, business and economic development interim committee not later than ten (10) business days after increasing the maximum allowable percentage as specified in this subsection, including data to support the increase. The impact assistance payments shall be distributed to the county treasurer and the county treasurer will distribute to the county and to the cities and towns therein based on a ratio established by the industrial siting council during a public hearing held in accordance with W.S. 35-12-110(f)(i). In determining the distribution ratio, the industrial siting council may consider the extent and location of the unmitigated impacts, the populations of the affected counties, cities and towns, including any disproportionate impacts on smaller communities, and any other equitable factor. The industrial siting council shall review the distribution ratio for construction projects on a regular basis and make appropriate adjustments. A governing body which is primarily affected by the facility, or any person issued a permit pursuant to W.S. 35-12-106, may petition the industrial siting council for review and adjustment of the distribution ratio or the amount of the impact assistance payment upon a showing of good cause. The impact assistance payment shall be in addition to all other distributions under this section, but no impact assistance

payment shall be made for any period in which the county or counties are not imposing at least a one percent (1%) tax authorized by W.S. 39-15-204(a)(i) and 39-16-204(a)(i) or at least a total of a two percent (2%) sales tax authorized under W.S. 39-15-204(a)(i), (iii) and (vi) and at least a total of a two percent (2%) use tax authorized under W.S. 39-16-204(a)(i), (ii) and (v). For purposes of this subsection, the industrial facility or federal or state government project will be deemed to be located in the county in which a majority of the construction costs will be expended, provided that upon a request from the county commissioners of any adjoining county to the industrial siting council, the council may determine that the social and economic impacts from construction of the industrial facility or federal or state government project upon the adjoining county are significant and establish the ratio of impacts between the counties and certify that ratio to the department of revenue who will thereafter distribute the impact assistance payment to the counties pursuant to that ratio. Each county, city and town that receives a distribution under this subsection shall provide an annual report to the industrial siting council describing how the impact assistance payment was expended. The report shall first be submitted not later than one (1) year after the impact assistance payment is approved and annually each year thereafter for the duration in which distributions are made and until all distributions are expended. The industrial siting council shall adopt rules as necessary to implement this subsection.

(d) As used in subsection (c) of this section:

(i) "Period of construction" begins at the commencement of construction and ends when the physical components of the industrial facility or federal or state government project are ninety percent (90%) complete, provided, if payments are already being made under this act, commencement of construction of another industrial facility or federal or state government project will not be considered for purposes of establishing a new impact assistance payment amount or determining when payments will commence under this act, but will only be considered for determining when the period of construction ends;

(ii) Repealed by Laws 2015, ch. 107, § 2.

(iii) "Unmitigated impact" means an expense:

(A) Incurred by a county, city or town directly or indirectly attributable to the construction of an industrial facility;

(B) That is not otherwise mitigated by any other entity;

(C) For medical services, fire and law enforcement services, roads and public utilities. Expenses shall be supported by an analysis prepared by the county, city or town of the current excess capacity in each of these areas. Expenses in these areas may include the employment of additional employees or officers only if the county, city or town has determined overtime compensation or contract labor would not be appropriate; and

(D) Excluding expenses for which a county, city or town previously received an impact assistance payment unless the county, city or town can demonstrate the expenses are new or ongoing.

(e) Vendors shall annually provide the department information indicating the amount of tax under this article collected from sales of propane, butane, liquefied gas and compressed natural gas. Upon verification by the department, the state treasurer shall annually transfer from the revenues deposited pursuant to paragraph (b)(i) of this section to the state highway fund ten percent (10%) of the amount collected under this article on sales of propane, butane, liquefied gas and compressed natural gas. This transfer of revenue replaces highway revenues existing prior to the enactment of this act.

(f) In addition to the distribution specified in subsection (b) of this section, until June 30, 2004, twenty-nine and one-half percent (29.5%) and thereafter thirty-one percent (31%) of sales taxes collected from out-of-state vendors shall be distributed to counties, cities and towns in the same percentage as determined in paragraph (b)(iii) of this section.

(g) Repealed By Laws 2007, Ch. 140, § 2.

(h) If an annexation occurs under W.S. 15-1-404, the department of revenue shall determine whether the proportion of sales taxes to be distributed to the general fund of the county in which the annexation takes place will be reduced by more than five percent (5%) solely as a result of the annexation. If so,

then the distribution formula for sales taxes for the affected municipality and county is subject to the following:

(i) Beginning with the month following the month in which the annexation occurs and continuing through the remainder of the fiscal year in which the annexation occurs, the annexing municipality shall receive credit only for thirty-five percent (35%) of the population of the area to be annexed with the remainder credited to the county;

(ii) In each of the succeeding four (4) fiscal years, the annexing municipality shall receive credit for an additional one-fourth (1/4) of the remaining sixty-five percent (65%) of the population of the area annexed with the remainder credited to the county;

(iii) The department of revenue shall proportionally adjust credits for population under paragraphs (i) and (ii) of this subsection for the remainder of the period based upon new population figures if a federal decennial census occurs before the period under paragraph (ii) of this subsection ends.

(j) Repealed By Laws 1999, ch. 54, § 2.

(k) Repealed By Laws 1999, ch. 54, § 2.

(m) Repealed By Laws 1999, ch. 54, § 2.

(n) Repealed By Laws 1999, ch. 54, § 2.

(o) Repealed By Laws 1999, ch. 54, § 2.

(p) All revenue collected by the department under W.S. 39-15-104(h) shall be distributed as follows:

(i) The department shall credit the revenue collected under W.S. 39-15-104(h) (i) as follows:

(A) Eighty percent (80%) of the average annual revenue collected under this paragraph during the immediately preceding five (5) years shall be deposited each year in the Wyoming tourism account, which is hereby created. No funds shall be expended from the account until appropriated by the legislature. Funds in the account shall be used for the operation of the Wyoming tourism board and the Wyoming office of tourism;

(B) Any amount of revenue that exceeds the amount determined under subparagraph (A) of this paragraph shall be deposited as provided in this subparagraph. Revenue under this subparagraph shall be transferred to the Wyoming tourism reserve and projects account, which is hereby created. No funds shall be expended from the account until appropriated by the legislature.

(ii) The assessment revenue collected under W.S. 39-15-104(h)(ii) shall be distributed to each county on a monthly basis in proportionate shares determined by the amount of revenue collected within the county and its municipalities under W.S. 39-15-104(h)(ii) in relation to the entire amount collected under W.S. 39-15-104(h)(ii), to be distributed as follows:

(A) If the county imposes a countywide lodging tax under W.S. 39-15-204(a)(ii), the assessment revenue shall be distributed in the same manner as taxes collected under that paragraph are distributed under W.S. 39-15-211(a)(ii)(B) through (E);

(B) If the county has not imposed a countywide lodging tax under W.S. 39-15-204(a)(ii), the assessment revenue shall be distributed as follows:

(I) If no city or town in the county has imposed a lodging tax under W.S. 39-15-204(a)(ii), the assessment revenue shall be distributed to the county to be expended as provided in W.S. 39-15-211(a)(ii)(B);

(II) If any city or town in the county has imposed a lodging tax under W.S. 39-15-204(a)(ii), assessment revenue equal to the amount of the tax imposed by the city or town shall be distributed to the city or town to be used as provided in W.S. 39-15-211(a)(ii)(B) through (E). The remainder shall be distributed to the county to be expended as provided in W.S. 39-15-211(a)(ii)(B).

(q) No funds distributed to the Wyoming tourism account or the Wyoming tourism reserve and projects account as provided by subsection (p) of this section shall be expended for lobbying or legislative activities associated with any Wyoming local government or the Wyoming legislature.

ARTICLE 2 - LOCAL SALES TAX

39-15-201. Definitions.

(a) Every vendor and person storing, using or consuming tangible personal property in this state shall preserve within this state for three (3) years suitable records and books as may be necessary to determine the amount of tax for which he is liable under the provisions of this article, together with invoices and books showing all merchandise purchased. All records, books and invoices shall be available for examination by the department during regular business hours except as arranged by mutual consent.

(b) No credit or refund shall be allowed after three (3) years from the date of overpayment. The receipt of a claim for a refund by the department shall toll the statute of limitations. All refund requests received by the department shall be approved or denied within ninety (90) days of receipt.

39-16-111. Distribution.

(a) License fees and interest collected by the department pursuant to this article shall be transferred to the state treasurer who shall credit them to the general fund. All penalties collected by the department under this article shall be paid to the state treasurer and credited as provided in W.S. 8-1-109, except the total sum of penalties collected by the department and paid to the state treasurer shall be allocated based upon the ratio of each county's population to the population of the state.

(b) Revenues earned under this article during each fiscal year shall be recognized as revenue during that fiscal year for accounting purposes. Revenue collected by the department from the taxes imposed by this article shall be transferred to the state treasurer who shall, as specified by the department:

(i) Credit sixty-nine percent (69%) for deposit by the state treasurer to the general fund except as provided by subsections (d) and (e) of this section and less any credit allowed pursuant to W.S. 39-16-107(b)(viii);

(ii) Deduct from the remaining share, one percent (1%) to cover all administrative expenses and costs attributable to the remaining share and credit for deposit by the state treasurer into the general fund for that amount;

(iii) From the remaining share, until June 30, 2004, deduct an amount equivalent to one-half percent (0.5%) and thereafter deduct an amount equivalent to one percent (1%) of

the tax collected under W.S. 39-16-104. From this amount, the department shall distribute until June 30, 2004, five thousand dollars (\$5,000.00) and thereafter ten thousand dollars (\$10,000.00) annually to each county in equal monthly installments and then distribute the remainder to each county in the proportion that the total population of the county bears to the total population of the state. The remainder shall then be paid monthly to the treasurers of the counties, cities and towns for payment into their respective general funds. The percentage of the remainder that will be distributed to each county and its cities and towns will be determined by computing the percentage that net use taxes collected attributable to vendors in each county including its cities and towns bear to total net use taxes collected of vendors in all counties including their cities and towns. The distribution shall be as follows:

(A) To each county in the proportion that the population of the county situated outside the corporate limits of its cities and towns bears to the total population of the county including cities and towns;

(B) To each city and town within the county in the proportion the population of the city or town bears to the population of the county.

(c) In addition to the distribution in subsection (b) of this section, until June 30, 2004, twenty-nine and one-half percent (29.5%) and thereafter thirty-one percent (31%) of use taxes accruing from out-of-state vendors shall be distributed to counties, cities and towns in the same percentage as determined in paragraph (b)(iii) of this section.

(d) If any person commences after the effective date of this act to construct an industrial facility, as that term is defined in W.S. 35-12-102, under a permit issued pursuant to W.S. 35-12-106, or if the federal or state government commences to construct any project within this state with an estimated construction cost as specified in the definition of industrial facility in W.S. 35-12-102 the department of revenue shall thereafter pay to the county treasurer and the county treasurer will distribute to the county, cities and towns of that county in which the industrial facility or project is located, impact assistance payments from the monies available under paragraph (b)(i) of this section. Each payment to the county treasurer shall be equal to an amount determined by the industrial siting council under this subsection and shall continue during the period of construction except that in the case of an industrial

facility or a federal or state government project which is expected to continue in phases for an indefinite period of time, the department of revenue shall discontinue payments under this section when construction of any phase has ceased or been substantially completed for twelve (12) consecutive months. The person constructing the industrial facility and the counties affected by the construction of the industrial facility shall provide evidence at the public hearing held pursuant to W.S. 35-12-110(f)(i) of the mitigated and unmitigated impacts that the construction will have on the counties, cities and towns determined by the industrial siting council to be affected by the construction of the industrial facility. The industrial siting council shall review the evidence of the impacts and determine, applying a preponderance of evidence standard, the dollar amount of the unmitigated impacts. The council shall state, in the order issued under W.S. 35-12-113(a), the total dollar amount of the impact assistance payment and include specific findings of fact detailing the basis for the total dollar amount determination and if requested by the affected county, city or town, its justification for rejecting, in whole or in part, an application for an impact assistance payment. The impact assistance payment shall be distributed by the department of revenue in an amount and on a schedule determined by the council, based on evidence presented at the hearing. Under no circumstances shall the total dollar amount of the impact assistance payment exceed the maximum allowable percentage specified in this subsection of the total estimated material costs of the facility, as those costs are determined by the council. The maximum allowable percentage shall be two and twenty-five hundredths percent (2.25%) for facilities with total estimated materials costs of three hundred fifty million dollars (\$350,000,000.00) or less except as otherwise provided in this subsection, two percent (2%) for facilities with total estimated materials costs in excess of three hundred fifty million dollars (\$350,000,000.00) but less than eight hundred fifty million dollars (\$850,000,000.00) and one and one-half percent (1.50%) for facilities with total estimated materials costs of eight hundred fifty million dollars (\$850,000,000.00) or more. For facilities with total estimated materials costs of three hundred fifty million dollars (\$350,000,000.00) or less, the council may increase the maximum allowable percentage to not more than two and seventy-six hundredths percent (2.76%) if the council includes in the specific findings required under this subsection that the maximum allowable percentage of two and twenty-five hundredths percent (2.25%) is insufficient to mitigate the identified impacts. The council shall submit a report to the joint appropriations committee and the joint minerals, business

and economic development interim committee not later than ten (10) business days after increasing the maximum allowable percentage as specified in this subsection, including data to support the increase. The impact assistance payments shall be distributed to the county treasurer and the county treasurer will distribute to the county and to the cities and towns therein based on a ratio established by the industrial siting council during a public hearing held in accordance with W.S. 35-12-110(f)(i). In determining the distribution ratio, the industrial siting council may consider the extent and location of the unmitigated impacts, the populations of the affected counties, cities and towns, including any disproportionate impacts on smaller communities, and any other equitable factor. The industrial siting council shall review the distribution ratio for construction projects on a regular basis and make appropriate adjustments. A governing body which is primarily affected by the facility, or any person issued a permit pursuant to W.S. 35-12-106, may petition the industrial siting council for review and adjustment of the distribution ratio or the amount of the impact assistance payment upon a showing of good cause. The impact assistance payment shall be in addition to all other distributions under this section, but no impact assistance payment shall be made for any period in which the county or counties are not imposing at least a one percent (1%) tax authorized by W.S. 39-15-204(a)(i) and 39-16-204(a)(i) or at least a total of a two percent (2%) sales tax authorized under W.S. 39-15-204(a)(i), (iii) and (vi) and at least a total of a two percent (2%) use tax authorized under W.S. 39-16-204(a)(i), (ii) and (v). For purposes of this subsection, the industrial facility or federal or state government project will be deemed to be located in the county in which a majority of the construction costs will be expended, provided that upon a request from the county commissioners of an adjoining county to the industrial siting council, the council may determine that the social and economic impacts from construction of the industrial facility or federal or state government project upon the adjoining county are significant and establish the ratio of impacts between the counties and certify that ratio to the department of revenue who will thereafter distribute the impact assistance payment to the counties pursuant to that ratio. Each county, city and town that receives a distribution under this subsection shall provide an annual report to the industrial siting council describing how the impact assistance payment was expended. The report shall first be submitted not later than one (1) year after the impact assistance payment is approved and annually each year thereafter for the duration in which distributions are made and until all distributions are expended.

The industrial siting council shall adopt rules as necessary to implement this subsection.

(e) As used in subsection (d) of this section:

(i) "Period of construction" begins at the commencement of construction and ends when the physical components of the industrial facility or federal or state government project are ninety percent (90%) complete, and provided, if payments are already being made under this act, commencement of construction of another industrial facility or federal or state government project will not be considered for purposes of establishing a new impact assistance payment amount or determining when payments will commence under this act, but will only be considered for determining when the period of construction ends;

(ii) Repealed by Laws 2015, ch. 107, § 2.

(iii) "Unmitigated impact" means as defined by W.S. 39-15-111(d)(iii).

(f) Vendors shall annually provide the department information indicating the amount of tax under this article collected from purchases of propane, butane, liquefied gas and compressed natural gas. Upon verification by the department, the state treasurer shall annually transfer from the revenues deposited pursuant to paragraph (b)(i) of this section to the state highway fund ten percent (10%) of the amount collected under this article on purchases of propane, butane, liquefied gas and compressed natural gas. This transfer of revenue replaces highway revenues existing prior to the enactment of this act.

(g) Repealed By Laws 2007, Ch. 140, § 2.

(h) Taxes collected under subsections W.S. 39-16-107(b)(ii) and (iii) of this section shall be remitted in full by the county treasurer to the department monthly or as required by the department together with reports as required by the department. County treasurers shall be reimbursed monthly in an amount equal to five percent (5%) of the amount remitted to the department in the preceding month for deposit into the county general fund.

(j) Repealed By Laws 1999, ch. 54, § 2.

If a board of county commissioners adopts the process described in this article, it shall enforce this article and, in accordance with the Wyoming Administrative Procedure Act, shall adopt rules and regulations to implement the provisions of and to insure compliance with the intent and purposes of this article.

18-5-405. Cluster development; notice to state engineer.

Within thirty (30) days after a cluster development has been approved pursuant to the conservation design process, the board of county commissioners shall notify the state engineer of the approval and shall provide the state engineer a copy of the approved cluster development plan.

ARTICLE 5 - WIND AND SOLAR ENERGY FACILITIES

18-5-501. Definitions.

(a) As used in this article:

(i) "Industrial siting council" or "council" means the council created by W.S. 35-12-104;

(ii) "Wind energy facility" means any wind powered electrical generation development consisting of an individual wind turbine or multiple wind turbines rated by the manufacturer to generate more than one-half (0.5) megawatt of electricity and includes all lands where the owner or developer has rights to erect wind turbines;

(iii) "Enlarge" or "enlargement" means adding additional wind turbines or energy capacity that is not permitted as part of an original permitting process. "Enlarge" or "enlargement" shall not include an improvement made to a permitted wind turbine that maintains the same surface space occupied by the structure that was previously permitted, regardless of the cost of the improvement;

(iv) "Owner" means the surface owner of land;

(v) "Facility" includes:

(A) A wind energy facility or a solar energy facility unless the context clearly indicates otherwise;

(B) A wind energy facility or a solar energy facility planned for construction and siting or whose ownership or business structure is organized in a way to circumvent the definition of "facility" or the requirements of this article while engaging in conduct that otherwise would be subject to the requirements of this article. A facility that meets the definition of this subparagraph shall comply with all requirements of this article before locating, erecting, constructing, reconstructing or enlarging the facility.

(vi) "Solar energy facility" means a commercial facility with a rated power capacity of more than one-half (0.5) megawatt of electricity from solar power that includes all lands where the owner or developer has rights to erect solar energy facilities, including lands for battery storage.

18-5-502. County regulation of wind or solar energy projects; exceptions.

(a) It is unlawful to locate, erect, construct, reconstruct or enlarge a facility without first obtaining a permit from the board of county commissioners in the county in which the facility is located.

(b) If a facility is to be located in two (2) or more counties, a permit shall be obtained in each county in which the facility is to be located.

(c) No wind energy facility constructed or being constructed prior to July 1, 2010 shall be required to have the permit required by this section. No wind energy facility for which an application for a permit has been made to the industrial siting council, or that has received findings of fact, conclusions of law and an order from the industrial siting council, prior to July 1, 2010 shall be required to have the permit required by this section.

(d) Any wind energy facility which is not required to have a permit pursuant to subsection (c) of this section shall be required to obtain a permit for any enlargement of the facility after July 1, 2010.

(e) No solar energy facility that has obtained final county approval where required or that is constructed or being constructed prior to July 1, 2020 shall be required to have the permit required by this section. Any solar energy facility that is not required to have a permit pursuant to this subsection

shall be required to obtain a permit for any enlargement of the facility after July 1, 2020.

18-5-503. Application.

(a) To obtain the permit required by W.S. 18-5-502, the owner or developer of a facility shall submit an application to the board of county commissioners. The application shall:

(i) Certify that reasonable efforts have been undertaken to provide notice in writing to all owners of land within one (1) mile of the proposed facility, to the military installation commander or the commander's designee if there are any active federal military missile launch or control facilities within five (5) miles of the proposed facility, to the department of transportation and to all cities and towns located within twenty (20) miles of the facility. Notice shall include a general description of the project including its location, projected number and capacity of turbines or solar energy facilities, the likely routes of ingress and egress and the likely location of electric transmission and other related facilities;

(ii) Certify that notice of the proposed facility will be published in a newspaper of general circulation in all counties in which the facility will be located at least twenty (20) days prior to the public hearing required by W.S. 18-5-506. The notice shall include a brief summary of the facility, invite the public to submit comments and identify the time and date of the hearing;

(iii) Certify that the proposed facility will comply with all the standards required by W.S. 18-5-504;

(iv) Certify that the proposed facility will comply with all applicable zoning and county land use regulations, which regulations shall be no less stringent than the standards required by this article;

(v) Certify that a written emergency management plan has been submitted for review and comment to the county fire warden, county emergency management coordinator and the county sheriff. If the permit is granted, the plan shall be supplemented and revised following construction of the facility and prior to its operation if there are any variations in the facility's construction which would materially impact the original emergency management plan;

(vi) Provide a waste management plan that includes an inventory of estimated solid wastes and a proposed disposal program for the construction, operation and eventual decommissioning of the proposed facility;

(vii) Provide evidence sufficient for the board of county commissioners to determine if the proposed facility has adequate legal access. The application also shall describe how private roadways within the facility will be marked as private roadways and shall acknowledge that no county is required to repair, maintain or accept any dedication of the private roadways to the public use. The application also shall include a traffic study of any public roadways leading to and away from the proposed facility and the board of county commissioners and department of transportation may require the applicant to enter into a reasonable road use agreement for the use of county roads or state highways prior to construction of the facility;

(viii) Provide a project plan indicating the proposed roadways, tower locations, substation locations, transmission, collector and gathering lines and other ancillary facility components. If the application is granted, the board of county commissioners shall require that the project plan be revised to show the final location of all facilities;

(ix) Certify that there shall be no advertising or promotional lettering on any solar energy facility, tower, turbine, nacelle or blade beyond the manufacturer's or the applicant's logo on the solar energy facility or the nacelle of the turbine;

(x) Provide a site and facility reclamation and decommissioning plan which indicates the planned life of the facility and the means by which the facility and its site will be decommissioned and reclaimed at the end of the facility's life and which certifies that any owner of land within the facility and its site who is not the applicant has been consulted in development of the reclamation and decommissioning plan. Such plan shall comply with all requirements adopted by the industrial siting council under W.S. 35-12-105(d). If the permit is granted, the plan shall be updated every five (5) years until site reclamation and decommissioning is complete;

(xi) For wind energy facilities and solar energy facilities not meeting the definition of an industrial facility as defined in W.S. 35-12-102(a) (vii) (E) or (G), provide a

detailed summary of any significant adverse environmental, social or economic effects that the proposed facility may have together with any preliminary plans developed to alleviate any of the adverse effects.

(b) A facility subject to this article shall meet the requirements adopted pursuant to W.S. 35-12-105(d) and (e) regardless of whether the facility is referred to the industrial siting council pursuant to W.S. 18-5-509 or is otherwise subject to the industrial siting act.

18-5-504. Minimum standards; incorporation into other processes.

(a) No board of county commissioners shall issue a permit for a facility if that facility:

(i) Does not comply with standards properly adopted by the board of county commissioners for the construction of wind energy facilities or solar energy facilities, which standards shall not be less stringent than the standards required by this article, except as allowed by this section;

(ii) For wind energy facilities, would locate the base of any tower at a distance of less than one hundred ten percent (110%) of the maximum height of the tower from any property line contiguous or adjacent to the facility, unless waived in writing by the owner of every property which would be located closer than the minimum distance;

(iii) For wind energy facilities, would locate the base of any tower at a distance of less than one hundred ten percent (110%) of the maximum height of the tower from any public road right-of-way;

(iv) For wind energy facilities, would construct any tower or other structure, other than underground structures, transmission lines, roadways and structures appurtenant to roadways, at a distance of less than five and one-half (5.5) times the maximum height of the tower, but in no event less than one thousand (1,000) feet from any platted subdivision unless this restriction is waived in writing by the owners of all lands included within the distance specified in this paragraph;

(v) For wind energy facilities, would locate the base of any tower at a distance of less than five and one-half (5.5) times the maximum height of the tower, but in no event less than

one thousand (1,000) feet from a residential dwelling or occupied structure, unless waived in writing by the person holding title to the residential dwelling or occupied structure;

(vi) For wind energy facilities, would locate the base of any tower at a distance of less than one-half (1/2) mile from the limits of any city or town;

(vii) For solar energy facilities:

(A) Would locate the facility within three hundred (300) feet of an occupied structure or residence unless waived in writing by the owner of the structure or residence;

(B) Would locate the facility within one hundred (100) feet of any outer boundary of the facility;

(C) Would locate the facility on unzoned or agricultural zoned land less than two hundred (200) feet from any public road right-of-way or on other land less than one hundred (100) feet from any public road right-of-way.

(b) No rule, regulation or law promulgated or applied by any county in this state shall adopt a standard less stringent than the minimum standards established in subsection (a) of this section. The minimum standards stated in subsection (a) of this section shall be incorporated into every existing or future county permitting or licensing process to which they are applicable so that no applicant for a permit under this article is required to submit more than one (1) application addressing these standards to any county.

(c) Notwithstanding subsection (b) of this section, any board of county commissioners for solar facilities:

(i) May vary the location and setback requirements provided in subsection (a) of this section, either on its own or by following its land use planning, zoning or conditional use processes;

(ii) For lands within the boundaries of any incorporated municipality, shall require any setbacks recommended by the governing body of the municipality within the boundaries of that municipality;

(iii) May increase setbacks required from public road rights-of-way beyond those required in this section to

accommodate known big game animal migrations and frequent local wildlife movements and to reduce the risk of motor vehicle and big game animal collisions. A board of county commissioners may consult with the:

(A) Game and fish department for setbacks from public roads;

(B) Department of transportation for setbacks from state highways;

(C) County's appropriate local entity for setbacks from county roads.

(d) No board of county commissioners shall issue a permit under W.S. 18-5-502(a) until that county has adopted rules and regulations governing the notice that the application for a permit must provide to the record owners and claimants of mineral rights located on and under lands where the facility will be constructed. The rules shall conform to rules adopted by the industrial siting council for the same purpose pursuant to W.S. 35-12-105.

(e) For a permit granted for a wind energy facility under this article, there shall be no vertical construction of a wind turbine within two (2) nautical miles of any active federal military missile launch or control facility, unless the owner or developer of the wind energy facility first obtains and furnishes documentation to the board of county commissioners of:

(i) A written determination of no adverse impact on nuclear security operations from the military installation commander or the commander's designee. The determination shall not be unreasonably withheld or denied;

(ii) A determination of no hazard from the federal aviation administration; and

(iii) Documentation from the federal military aviation and installation assurance siting clearinghouse that resolves any potential adverse impact on military operations and readiness and that commits to implement required mitigation measures.

18-5-505. Complete applications; notice.

Upon receipt of an application, the board of county commissioners shall conduct a review of the application to determine if it contains all the information required by W.S. 18-5-503 and any applicable rules and regulations. If the board of county commissioners determines that the application is incomplete, it shall within thirty (30) days of receipt of the application notify the applicant of the specific deficiencies in the application. The applicant shall provide the additional information necessary within thirty (30) days of receipt of a request for additional information from the board. When the board of county commissioners determines that the application is complete it shall notify the applicant that the application is complete and shall provide notice of the date and time at which the hearing required by W.S. 18-5-506 will be conducted.

18-5-506. Hearing and public comment.

Any board of county commissioners receiving an application to permit a facility shall hold a public hearing to consider public comment on the application no less than forty-five (45) days and not more than sixty (60) days after determining that the application is complete. Written comment on the application shall be accepted by the board of county commissioners for not less than forty-five (45) days after determining that the application is complete.

18-5-507. Decision of the board; findings necessary.

(a) Within forty-five (45) days from the date of completion of the hearing required by W.S. 18-5-506, the board shall make complete findings, issue an opinion, render a decision upon the record either granting or denying the application and state whether or not the applicant has met the standards required by this article. The decision shall be subject to the remedies provided in W.S. 18-5-508. The board shall grant a permit if it determines that the proposed facility complies with all standards properly adopted by the board of county commissioners and the standards required by this article.

(b) No permit shall be granted if the application is incomplete or if all notices required by W.S. 18-5-503 have not been timely given.

(c) A copy of the decision shall be served upon the applicant.

18-5-508. Remedies.

(a) Any party aggrieved by the final decision of the board of county commissioners may have the decision reviewed by the district court pursuant to Rule 12 of the Wyoming Rules of Appellate Procedure.

(b) When a decision is issued after hearing on an application for a permit under this article, the decision is final for purposes of judicial review.

18-5-509. Referral.

(a) Any board of county commissioners which receives an application to permit a wind energy facility or solar energy facility which does not meet the definition of an industrial facility as defined in W.S. 35-12-102(a)(vii)(E) or (G) may refer the facility to the industrial siting council for additional permitting consistent with the requirements of the Industrial Development Information and Siting Act, W.S. 35-12-101 through 35-12-119, but the provisions of W.S. 39-15-111 and 39-16-111 shall not apply. A referral shall be made only when a board of county commissioners finds there are potentially significant adverse environmental, social or economic issues which the county board of commissioners does not have the expertise to consider or authority to address.

(b) Any facility referred to the industrial siting council under this section may apply to the council for a waiver of permit application pursuant to W.S. 35-12-107.

(c) Upon receiving a referral pursuant to this section and within fifteen (15) days after receipt of the referral, the director of the department of environmental quality may reject the referral by giving written notice of the rejection to the county making the referral and the applicant. No appeal from the decision of the director under this subsection shall be allowed.

(d) A referral made pursuant to this section shall not relieve a board of county commissioners from its obligation to consider whether the proposed facility should be permitted under the standards required by this article.

(e) A referral made pursuant to this section shall be made no later than thirty (30) days after an application is deemed complete pursuant to W.S. 18-5-505.

18-5-510. Binding effect.

Upon referral of a facility to the industrial siting council pursuant to W.S. 18-5-509, the facility shall not be withdrawn from the council's consideration without consent of the council. Any decision by the council shall be final except as provided in this article or pursuant to the remedies provided to other facilities permitted by the council.

18-5-511. Revocation or suspension of permit.

(a) A permit may be revoked or suspended for:

(i) Any material false statement in the application or in accompanying statements or studies required of the applicant, if a true statement would have warranted the refusal to grant a permit;

(ii) Failure to comply with the terms or conditions of the permit after notice of the failure and reasonable opportunity to correct the failure;

(iii) Violation of this article, the rules and regulations adopted pursuant to this article or valid orders of the board of county commissioners or the industrial siting council;

(iv) Failure of the proposed facility to receive a required permit from the industrial siting council pursuant to the Industrial Development Information and Siting Act, W.S. 35-12-101 through 35-12-119;

(v) Failure of the permitted wind energy facility to:

(A) Transmit electricity created by wind energy for a period of two (2) consecutive years or more;

(B) Maintain land rights necessary to operate the wind energy facility.

(vi) Failure of the permitted solar energy facility to maintain land rights necessary to operate the solar energy facility.

18-5-512. Penalties for violations.

(a) No person shall:

(i) Commence to construct a wind energy facility on or after July 1, 2010 or a solar energy facility on or after July 1, 2020 without first obtaining a permit required by this article;

(ii) Construct, reconstruct, operate, locate, erect, maintain, enlarge, change or use a facility, after having first obtained a permit, other than in specific compliance with the permit; or

(iii) Cause any of the acts specified in this subsection to occur.

(b) Any person violating subsection (a) of this section is liable for a civil penalty of not more than ten thousand dollars (\$10,000.00) for each violation. Each day of a continuing violation constitutes a separate offense.

(c) Any wind turbine tower, wind generator or portion thereof or any solar energy panel or facility or portion thereof erected in violation of this article shall subject the owner of the tower, generator or solar energy panel or facility to a penalty of seven hundred fifty dollars (\$750.00) per day for every tower, generator or solar energy panel or facility so erected.

(d) Any penalties collected pursuant to this section shall be paid and credited as provided by W.S. 8-1-109.

18-5-513. Fees.

(a) A board of county commissioners which receives an application under this article for the permitting of a facility may charge the applicant a reasonable fee which shall not exceed the reasonably anticipated costs of processing and considering the application and conducting public hearings.

(b) The board of county commissioners also may collect a reasonable building permit fee prior to commencement of construction which shall not exceed the reasonably anticipated administrative costs of issuing the building permit and overseeing compliance with permit conditions and requirements.

CHAPTER 6 - COURTHOUSES AND JAILS

ARTICLE 1 - GENERALLY



STATE OF WYOMING
EXECUTIVE DEPARTMENT
EXECUTIVE ORDER

Order 2019-3
(Replaces 2015-4 and 2017-2)

GREATER SAGE-GROUSE CORE AREA PROTECTION

WHEREAS, the Greater sage-grouse (*Centrocercus urophasianus*), an iconic western species that inhabits much of the sagebrush-steppe habitat in Wyoming and serves as an umbrella species for sagebrush obligate species, including many of the state's species of greatest conservation need; and

WHEREAS, the sagebrush-steppe habitat type is abundant across the State of Wyoming, with the greatest populations of Greater sage-grouse across its range; and

WHEREAS, the United States Department of the Interior has determined that listing the Greater sage-grouse range-wide as a threatened or endangered species is not warranted, placing management authority for the species with the State of Wyoming; and

WHEREAS, the listing of the Greater sage-grouse would have a significant, adverse effect on land and natural resource management, and the economy of the State of Wyoming, including the ability to generate revenues from State lands, and could have negative unintended consequences to the species itself; and

WHEREAS, the listing of the Greater sage-grouse would have a significant, adverse effect on the custom and culture of the State of Wyoming, and would substantially obstruct and conflict with ongoing and effective collaborative efforts to conserve Greater sage-grouse; and

WHEREAS, the State of Wyoming recognizes the necessity of a robust and scientifically rigorous system of monitoring and has developed and implemented a Greater sage-grouse Core Area Protection strategy, including mechanisms to evaluate emerging science, data and information resulting in updated management recommendations from the Sage Grouse Implementation Team; and

WHEREAS, Wyoming's Greater sage-grouse Core Area Protection strategy protects significant quantity and quality of Greater sage-grouse habitat across the state and has been shown to represent approximately 84% of Wyoming's Greater sage-grouse; and

WHEREAS, the State of Wyoming, the Bureau of Land Management (2019 BLM ARMPA), the U.S. Forest Service, other land management agencies and private landowners have coordinated Greater sage-grouse Core Area Protection conservation actions across their boundaries which encompass approximately 15 million acres of habitat for the Greater sage-grouse in Wyoming; and

WHEREAS, Candidate Conservation Agreements with Assurances (CCAA) on private lands, complemented by Candidate Conservation Agreements (CCA) on public lands through the U.S. Fish and Wildlife Service, as well as the Sage-Grouse Initiative (SGI) through the Natural Resources Conservation Service on private lands, provide regulatory certainty and are a proven means of investing in the future of rural land management; and

WHEREAS, the Wyoming State Legislature, federal, state and local agencies, industry, conservation organizations, and landowners have dedicated significant time and resources to conserve Greater sage-grouse populations in Wyoming; and have shown the capacity and authority to protect and manage for the species and its habitats on all lands by establishing oversight mechanisms and implementing management stipulations, and

WHEREAS, in consideration of the recommendations from the statutorily established Sage Grouse Implementation Team (W.S. § 9-19-101), this Executive Order is the State of Wyoming's primary regulatory mechanism to conserve the Greater sage-grouse and preclude the need for listing the bird as a threatened or endangered species pursuant to the Endangered Species Act of 1973;

NOW, THEREFORE, Executive Orders 2015-4 and 2017-2 is hereby replaced by this Executive Order. In consideration of the recommendations of the Sage-Grouse Implementation Team and pursuant to the authority vested in me by the Constitution and Laws of the State, and to the extent such actions are consistent with the statutory obligations and authority of each individual agency, including those found in the Wyoming Regulatory Takings Act, W.S. § 9-5-301 through 9-5-305, I, Mark Gordon, Governor of the State of Wyoming, do hereby issue this Executive Order providing as follows:

1. Agencies and departments of the State of Wyoming (including, but not limited to: Wyoming Game and Fish Department, Office of State Land and Investments, Department of Environmental Quality, State Engineer's Office, Industrial Siting Council, Department of Transportation, Oil and Gas Conservation Commission) shall, consistent with their statutory authority, prioritize the maintenance and enhancement of Greater sage-grouse habitats and populations inside Core Population Areas, Connectivity Areas, and Winter Concentration Areas. State agencies shall follow the procedures outlined in this Executive Order, while recognizing that adjustments to the stipulations may be necessary based upon local conditions, opportunities, and limitations. The goal is to maintain habitat and minimize future disturbance by locating proposed disturbances within areas already disturbed or naturally unsuitable (Appendix A, Appendix E).
2. Agencies and departments of the State of Wyoming shall, consistent with their statutory authority, recognize that protections in areas of non-core population areas, while less restrictive than Core Population Areas, should be recognized and managed in a manner consistent with this Executive Order (Appendix E).

3. Valid existing rights shall be recognized and respected. Activities existing or permitted in Core Population Areas prior to August 1, 2008, and activities existing or permitted prior to the date of Executive Order 2015-4 (July 29, 2015) and within Core Population Areas added as a result of Executive Order 2015-4 will not be required to be managed under Core Population Area density and disturbance thresholds (Appendix D). Examples of existing activities include oil and gas, mining, agriculture, processing facilities, housing, state and federal highways, and other uses that were in place prior to the development of the Core Population Areas and other delineated habitats. Federal and state permitted activities, within a defined project boundary (such as a recognized federal oil and gas unit, drilling and spacing unit, mine permit, subdivision plat, state or federal highway right-of-way, utility right-of-way, grazing allotment etc.), shall be allowed to continue within the existing boundary even if the use exceeds recommended density and disturbance thresholds (Appendix A, Appendix E).
4. It is critical that existing land uses and landowner activities continue to occur in Core Population Areas, particularly agricultural activities on private lands. Functioning ranches and agricultural lands provide crucial ecological and habitat services to wildlife. The failure or loss of these areas could have damaging implications to wildlife and their habitats. For the most part, activities on private lands are not subject to state or federal agency review or approval. Only those activities which state agencies are required by state or federal law to review or approve are subject to this Executive Order. Existing land uses and landowner activities deemed to have negligible or no impacts to Greater sage-grouse are exempt from review for consistency under this Executive Order (Appendix G).
5. Land uses and activities proposed inside Core Population Areas for which stipulations have not been developed in this Executive Order may be authorized on a case-by-case basis only when it can be demonstrated to the satisfaction of the permitting agency, and based upon recommendations made by the Wyoming Game and Fish Department that the activity will not create negative impacts to Greater sage-grouse populations (Appendix E).
6. Development shall be conducted in a manner that recognizes and achieves an order of avoidance, minimization and where appropriate, compensatory mitigation to assure the long-term sustainability of Greater sage-grouse populations and habitats. Development consistent with the stipulations set forth in this Executive Order shall be deemed sufficient to demonstrate that the activity will not exceed Greater sage-grouse thresholds (Appendix E).
7. Where feasible through voluntary efforts, seek opportunities to expand populations and habitats for Greater sage-grouse in Wyoming (Appendix A, Appendix C).
8. Habitat enhancement and reclamation within Greater sage-grouse habitat is vital to restoring function to habitat disturbed by human activities or where enhancement may increase carrying capacities. Conducting enhancements and completing reclamation activities during the appropriate time of year may include granting stipulation relief, and should be evaluated on a case-by-case basis with an emphasis on habitat improvement for Greater sage-grouse (Appendix C, Appendix E).
9. Where consistent with the Greater sage-grouse conservation goals set forth herein, a non-regulatory approach should be used to influence management actions and activities within

Executive Order delineated habitats. Permit stipulations should reflect unique localized conditions, including soils, vegetation, development type, predation, climate, and other local realities (Appendix A, Appendix E).

10. Fire suppression efforts and invasive species control and management in Core Population Areas should be emphasized, recognizing that other local, regional, and national suppression priorities may take precedence. Public and firefighter safety remains the number one priority for all fire management activities. (Appendix C).
11. The State of Wyoming supports applied research to continue to understand the ecology and needs of Greater sage-grouse, including management-based alternatives to habitat management. Further, the State of Wyoming will develop appropriate local, science-based standards to manage disturbance in delineated and mapped winter concentration areas (Appendix C).
12. To ensure continued sustainability of Wyoming's economy, incentivizing and prioritizing development outside of Core Population Areas shall be a priority. State and federal agencies, with other relevant stakeholders, should work collaboratively to develop a strategic plan to achieve a beneficial balance between Greater sage-grouse protection and Wyoming's economy. Incentives, prioritization of projects outside of Core Population Areas, and coordinated permit processes should be considered (Appendix A).
13. State and federal agencies, including the U.S. Fish and Wildlife Service, Bureau of Land Management, U.S. Forest Service, Wyoming Game and Fish Department, and other stakeholders shall work collaboratively to ensure a uniform and consistent application of this Executive Order to maintain and enhance Greater sage-grouse habitats and populations (Appendix A).
14. The State of Wyoming will support voluntary enrollment and expanded coverage for federal, state and local conservation programs, including conservation easements, improvements and investments by the U.S. Department of Agriculture, U.S. Department of the Interior, and other agencies where appropriate. These efforts should be focused and prioritized to take place in Core Population Areas (Appendix A).
15. Local Working Groups will continue to be engaged through the Local Working Group Charter (Appendix A).
16. The State of Wyoming will engage in adaptive management that will include the involvement of state and federal land management and regulatory agencies as appropriate (Appendix I).
17. The State of Wyoming shall monitor and document Greater sage-grouse populations, conservation actions and development activities to ensure that permitted activities under this authority do not result in negative impacts to Greater sage-grouse outside cyclical trends. State agencies shall report all conservation and development activities occurring within Greater sage-grouse Core Population Areas no later than 31 March annually for the previous calendar year to the Office of the Governor. (Appendix E, Appendix H).

18. Absent compelling information that adjustments are necessary to protect the integrity of the Greater sage-grouse Core Area Protection strategy, these Core Population Areas, Connectivity Areas, delineated and mapped Winter Concentration Areas, and protective stipulations identified in this Executive Order shall not be altered for a minimum of 5 years from the date of this Executive Order (Appendix B, Appendix E).
19. The State of Wyoming will manage and implement a compensatory mitigation procedure that recognizes the need for replacement, durability, additionality and other factors to assure the long-term sustainability of Greater sage-grouse and their habitats (Appendix F).
20. This Executive Order, together with its attachments, constitutes Wyoming's strategy for the conservation of the Greater sage-grouse and their habitats. Appendices A through I are expressly adopted and incorporated by reference herein, and each shall have the full force and effect of this Executive Order. Amendment to any Appendix may be made without requirement that the full Executive Order be amended, provided the process follows the procedures outlined herein (Appendix A).

Given my hand and the Executive Seal of the State of Wyoming this 21st day of August, 2019.



Mark Gordon
Governor

APPENDIX A

COORDINATION AND AGENCY COOPERATION

Background

The State of Wyoming, federal land management agencies, local governments, private landowners and other stakeholders or parties have coordinated Greater sage-grouse conservation actions across jurisdictional boundaries which encompass approximately 15 million acres of habitat for the Greater sage-grouse in Wyoming. Together, these entities utilize their combined capacity and authority to protect and manage for the species and its habitat on all lands by establishing oversight mechanisms and implementing management stipulations.

Successful conservation of Greater sage-grouse requires a shared stewardship vision among states, local governments, private citizens, landowners, federal land management agencies, and partners to ensure that each state can manage the habitat within its borders for the particular needs of its landscapes and communities. In addition to cross-jurisdictional coordination among Wyoming and state wildlife agencies across the sagebrush ecosystem, the coordination responsibilities outlined in this Appendix shall guide inter-government consultation and cooperative efforts. This appendix also provides the framework to integrate the contributions from the various collaborative stakeholders and working groups aimed at informing agency policy on Greater sage-grouse conservation.

Amendments to Executive Order and Appendices

Executive Order 2019-3 (EO) states that Appendices A through I shall have the full force and effect of the Executive Order. The EO is formatted in a manner to allow for amendments to any appendix without requirement that the full document be amended. Adjustments to the EO and its appendices may be made at any time provided that the process follows the procedures outlined herein. Anyone, including the governor, may ask the Sage Grouse Implementation Team (SGIT) to review new, compelling information to determine if it merits adjustment to the EO or appendices. Upon review, SGIT shall develop a formal recommendation for the governor's consideration, reserving any approval for adjustments to the EO or appendices at the governor's discretion.

Roles and Authorities

State of Wyoming

Under Wyoming State statutes, all wildlife within Wyoming is declared property of the State and managed by the Wyoming Game and Fish Department under the direction of the Wyoming Game and Fish Commission (Wyoming Statutes §§ 23-1-103, -302, and -401). The State of Wyoming's primary strategy to conserve Greater sage-grouse and its habitat is set forth by Executive Order 2019-3, Greater Sage-Grouse Core Area Protection (collectively known as the "Core Area Protection Strategy," or State Strategy), as authorized under the Wyoming Constitution and laws of the State. All actions taken under

EO 2019-3 must be consistent with the statutory obligations and authority of each individual state agency that include those found in the Wyoming Regulatory Takings Act under Wyoming Statutes §§ 9-5-301 through -305.

Sage Grouse Implementation Team (SGIT)

EO 2019-3 and Wyoming's Core Area Protection Strategy are informed by the recommendations of the Sage Grouse Implementation Team as authorized under Wyoming statutes § 9-19-101. SGIT is a collaborative working group appointed by the governor to make recommendations to maintain and enhance Greater sage-grouse populations and habitats. It is comprised of state and federal agencies, representatives of local governments, members of Local Working Groups and private citizens.

Local Governments

Counties are political subdivisions of the State and are statutorily granted enumerated powers to be exercised to promote the general welfare of the public. For example, Wyoming statutes § 18-5-201(a) grants counties the authority to regulate and restrict land use and development in the unincorporated area of the county through zoning and comprehensive planning to limit impact to wildlife, such as Greater sage-grouse.

Per Wyoming Statute § 18-5-208(a), a county involved in federal land planning and management is "deemed to have special expertise on all subject matters for which it has statutory responsibility, including but not limited to, all subject matters directly or indirectly related to the health, safety, welfare, custom, culture and socio-economic viability of a county." Counties regularly advocate for county interests related to wildlife management, state species, recreation, private property rights, water rights or leasehold rights as pursuant to Wyoming Statute § 9-4-218(a).

Private Landowners

Landowners have authority over activities occurring on private lands for the most part. The requirements under this EO do not apply to private lands unless a particular activity requires a permit or authorization from a government entity.

Local Sage-Grouse Working Groups (LWGs)

LWGs are charged with developing and facilitating implementation of local conservation plans for the benefit of Greater sage- grouse, their habitats, and whenever feasible, other species that use sagebrush habitats. LWGs are facilitated by the Wyoming Game and Fish Department and are integral to the decision-making process. LWGs may influence agency policy but they do not have the authority to change policies mandated by state or federal law. There are eight LWGs currently active throughout Wyoming:

1. Bates Hole/Shirley Basin
2. Big Horn Basin
3. Northeast
4. South-Central
5. Southwest
6. Upper Green River Basin
7. Upper Snake River Basin
8. Wind River/Sweetwater River

Adaptive Management Working Group

The Greater sage-grouse adaptive management plan provides a means of addressing and responding to unintended negative impacts to Greater sage-grouse and its habitat before consequences become severe or irreversible. The Statewide Adaptive Management Working Group was established in consultation with SGIT to provide appropriate adaptive management guidance for BLM, Forest Service, USFWS, NRCS and the State of Wyoming. Local technical specialists, in conjunction with Local Working Groups, work with the Statewide Adaptive Management Working Group to initiate a response strategy to meet Greater sage-grouse conservation objectives. The Statewide Adaptive Management Working Group meets annually to review all data collected in the prior year regarding Greater sage-grouse populations and habitats.

Federal Agencies

As federal land management agencies, the BLM and USFS manage Greater sage-grouse habitat as part of the agencies' multiple use missions under applicable regulations.

Bureau of Land Management (BLM)

The BLM manages Greater sage-grouse habitat as part of the agency's multiple use mission under the Federal Land Policy and Management Act (FLPMA). Current management in Wyoming is provided for in Greater sage-grouse Resource Management Plans Amendment.

United States Forest Service (USFS)

The USFS manages Greater sage-grouse habitat as guided by the National Forest Management Act (NFMA). Current management for Greater sage-grouse conservation in Wyoming is provided for in Greater sage-grouse Land and Resource Management Plans Amendment.

United States Fish and Wildlife Service (USFWS)

Under the Endangered Species Act (ESA), the United States Fish and Wildlife Service administers protective and recovery requirements for threatened and endangered species as well as the ecosystems upon which they depend. The USFWS' "not-warranted" determination for Greater sage-grouse relies on the effective implementation and reporting of federal and state land-use plans. To support these efforts, the USFWS actively works with federal, state, industry and conservation partners, manages national

wildlife refuges for ecosystem health, funds new research and provides on the ground support for private landowners through its Fish and Wildlife Partners program and Greater sage-grouse Candidate Conservation Agreement with Assurances (CCAAs) and the companion agreements for BLM and USFS lands.

Natural Resources Conservation Service (NRCS)

The Natural Resources Conservation Service offers technical and financial assistance to help agricultural producers voluntarily conserve private lands and associated leased lands. This assistance helps producers plan and implement a variety of conservation activities or practices that address natural resource concerns on their agricultural operations. NRCS' Sage Grouse Initiative is part of Working Lands for Wildlife (WLFW), through which NRCS provides specific technical and financial assistance to help ranchers restore and protect habitat for Greater sage-grouse.

Coordination

State Agencies

EO 2019-3 directs all State of Wyoming permitting agencies to comply with the Core Area Protection Strategy during the permitting process, including consultation with the Wyoming Game and Fish Department. These state agencies include, but are not limited to:

- Office of State Land and Investments
- Department of Environmental Quality
- State Engineer's Office
- Industrial Siting Council
- Department of Transportation
- Oil and Gas Conservation Commission

Consistent, cross-jurisdictional coordination is key to Wyoming's Core Area Protection Strategy. State agencies are expected to collaborate with all relevant stakeholders -- private citizens, landowners and federal agencies, other state wildlife management agencies across state lines, etc. -- to conserve Greater sage-grouse and its habitat across the species' range regardless of land ownership under the following principles:

General Core Area Protection Strategy Directives

1. Where consistent with the Greater sage-grouse conservation goals set forth by EO 2019-3, a non-regulatory approach should be used to influence management actions and activities within EO-delineated habitats. Wyoming's Core Area Protection Strategy is based on the principle that conservation of important habitat essential to the maintenance of Greater sage-grouse and activities important to the State's economy are not mutually exclusive. Protective measures are designed to avoid, minimize and mitigate impacts to the species with compensatory mitigation employed only where avoidance and minimization are either inadequate or impossible.
2. State agencies must prioritize the maintenance and enhancement of Greater sage-grouse habitats and populations inside Core Population Areas, Connectivity Areas, and Winter Concentration Areas in a manner consistent with their statutory authority. State agencies are also responsible for application of non-Core Population Area stipulations for development (Appendix E).
3. State agencies should consider incentives, prioritization of projects outside of Core Population Areas and coordinated permit processes (Appendix E).
4. State agencies must also recognize that adjustments to stipulations may be beneficial based upon local conditions, opportunities and limitations. For example, the State's permitting process shall allow for alterations in certain cases, such as seasonal use adjustments (Appendix E).
5. The State shall work collaboratively to ensure a uniform and consistent application of EO 2019-3 requirements to maintain and enhance Greater sage-grouse habitat and populations.
6. State-federal coordination, in concert with coordination efforts that include other relevant stakeholders, should collaboratively maintain a beneficial balance between Greater sage-grouse protection and Wyoming's economy.

Additional Permitting Directives

Appendix E (Permitting) outlines detailed permitting coordination requirements that include the process for state permit review and determining project compliance with EO 2019-3.

Data Coordination Directives

The State will collect Greater sage-grouse population and habitat trend data, identify data gaps and research needs, incorporate new information from ongoing research, and recommend adaptive management actions as needed. The State will further work with federal partners, researchers, managers, and conservation organizations to aggregate all relevant, non-proprietary data collected in Greater sage-grouse habitats throughout Wyoming (Appendix H).

Federal Agency Coordination

BLM and USFS

Through the Office of the Governor and as informed by the recommendations provided by SGIT, EO 2019-3 requires that the State of Wyoming cooperate with the federal government regarding federal land use issues concerning multiple use of federal lands in Wyoming pursuant to Wyoming Statute § 9-1-207. In turn, the federal agencies consult with the State and local governments to carry forth their responsibilities and mandates under FLPMA, NFMA, and applicable regulations.

Consistent cross-jurisdictional coordination across state and federal land management boundaries is crucial to ensure the landscape-scale viability of the species and is the touchstone for the Wyoming Core Area Protection Strategy. Recognizing the importance of coordinated management across boundaries, both the BLM and USFS have entered into Memoranda of Understanding/Agreement with the State of Wyoming to outline the commitments and responsibilities of both parties. These agreements aim to enhance the management and protection of Greater sage-grouse and its habitat on federally managed public lands.

State agencies shall work with federal land management partners to adhere to their respective federal directives under Greater sage-grouse plan amendments to:

1. Perform timely reviews on proposed projects in Greater sage-grouse habitat on public lands managed by the BLM and USFS to determine whether the proposed projects comply with the State's Core Area Protection Strategy (Appendix E).
2. Work jointly with the federal agencies to provide guidance if compliance would require the implementation of avoidance, minimization or compensatory mitigation measures. Should mitigation measures be determined to be required, the State will apply the Compensatory Mitigation Framework as outlined by Appendix F (Compensatory Mitigation).
3. Follow coordination guidance as applicable under existing or future Memoranda of Understanding or Agreements.

USFWS

Candidate Conservation Agreements with Assurances (CCAA) on private lands, complemented by Candidate Conservation Agreements (CCA) on public lands through the USFWS, provide regulatory certainty and are a proven means of investing in the future of rural land management. CCAAs are a proven means to encourage voluntary conservation actions and measures. State agencies should participate in these efforts to the fullest extent possible.

The USFWS Conservation Efforts Database (CED) collects information from partners about the various types and distribution of conservation activities and to evaluate their effectiveness in reducing or eliminating threats contributing to sagebrush habitat loss and degradation across the ecosystem. This standardized way of collecting information allows USFWS to work with partners and stakeholders to monitor implementation and aid in assessing the long-term benefits realized through effective implementation of conservation efforts. In Wyoming, all conservation efforts from non-federal partners are first recorded in the Wyoming CED for further reporting to the USFWS CED (Appendix H).

In partnership with other federal agencies, the states, Tribes, and affected industries, USFWS works with project proponents on mitigation to address a variety of resource challenges. The majority of the USFWS existing authorities for engaging in mitigation processes are advisory by recommending measures that will assist agencies and project proponents to avoid, minimize and compensate for impacts to fish and wildlife. These efforts complement the State of Wyoming's compensatory mitigation framework to assist industry with meeting the State's mitigation requirements (Appendix F). Credit sales from mitigation and conservation banks approved by USFWS are reported via the online Regulatory In-Lieu Fee and Bank Information Tracking System (RIBITS).

NRCS

NRCS' Greater sage-grouse efforts are part of Working Lands for Wildlife (WLFW), through which NRCS provides regulatory certainty and invests in the future of rural land management. NRCS offers technical and financial assistance to help agricultural producers voluntarily conserve private lands and associated leased land by targeting Environmental Quality Incentives Program (EQIP) and Agricultural Conservation Easement Programs (ACEP) funds to achieve biological outcomes for sage-grouse while helping ranchers achieve agricultural sustainability.

Sage Grouse Implementation Team (SGIT)

The Sage Grouse Implementation Team is comprised of representatives from state and federal agencies, industry, and non-governmental organizations. SGIT members are appointed by the governor and they work collaboratively to protect the Greater sage-grouse under EO 2019-3. The team meets approximately six times a year to discuss current Greater sage-grouse related issues under the direction of the SGIT chairperson. The public is invited to attend these meetings.

Local Governments

As directed by EO 2019-3, state agencies, local governments (including counties, municipalities and conservation districts), federal agencies and other stakeholders shall work collaboratively to ensure a uniform and consistent application of the EO to maintain and enhance Greater sage-grouse habitat and populations. In consideration of the statutory duties under Wyoming law as they apply to local governments, these collaborative efforts shall be inclusive to allow coordination across jurisdictional boundaries. Careful consideration shall be made to consult local land use and natural resource plans based, where adopted, as state agencies implement the EO and federal agencies manage Greater sage-grouse habitat on public lands.

Private Landowners

With as much advance notice as practicable and in accordance with state agency rules and regulations, state permitting agencies are encouraged to coordinate with landowners directly affected by agency actions resulting from Executive Order 2019-3.

Local Working Groups (LWGs)

LWGs are an instrumental means to engage stakeholders directly affected by the policies set forth by Wyoming's Strategy. They provide a forum to share localized information, expertise and knowledge. By charter, they are expected to communicate and engage with state and federal agencies, landowners and other interested parties to identify and prioritize issues affecting Greater sage-grouse in their area.

Adaptive Management Working Group

Upon any indication of a potential triggering situation, the Adaptive Management Working Group shall notify holders of permits, leases, rights of way or easements of the situation and involve them in the Causal Factor Assessment and Response Strategy development (Appendix I).

APPENDIX B MAPS

Descriptions

Core Population Areas, Connectivity Areas and Winter Concentration Areas

Core Population Areas, Connectivity Areas and Winter Concentration Areas represent approximately 83% of the Greater sage-grouse population, on approximately 24% of the surface area of the State of Wyoming (15.2 million acres). Current Core Population Areas were developed in 2008 with revisions and were last updated in 2015 (Figure 1).

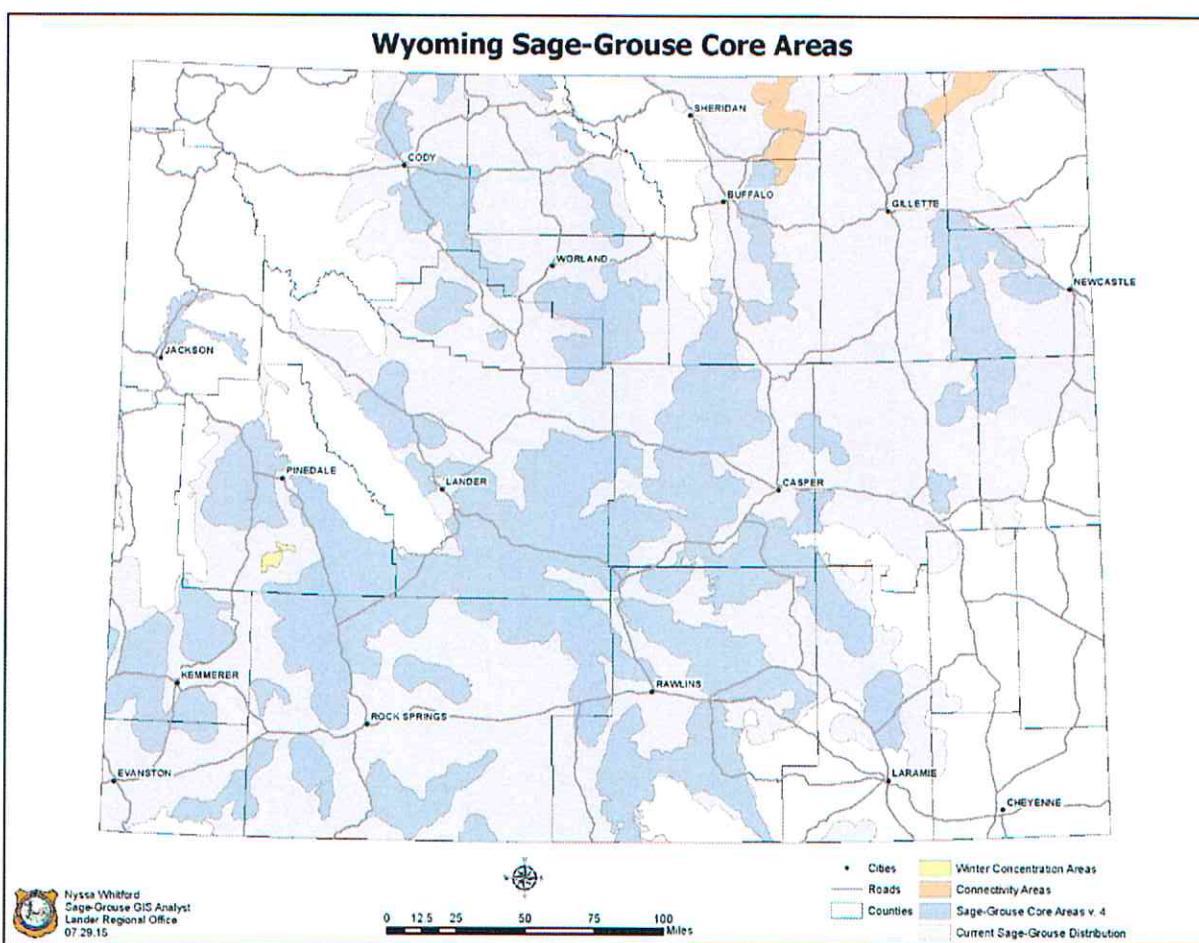


Figure 1: Wyoming Greater sage-grouse Core Population Areas, Connectivity Areas and Winter Concentration Areas

Development of Core Population Area Maps

To develop Core Area Population maps, a kernel density function is applied to the lek location and attendance data to determine Greater sage-grouse density distribution (Figure 2). The red areas represent the breeding habitat for 65% of Greater sage-grouse in Wyoming based on lek size and location. The maps illustrate population proportions at a given time, not trends over time. More details concerning the methodology used to establish Core Area Population maps can be found in Appendix E (Permitting).

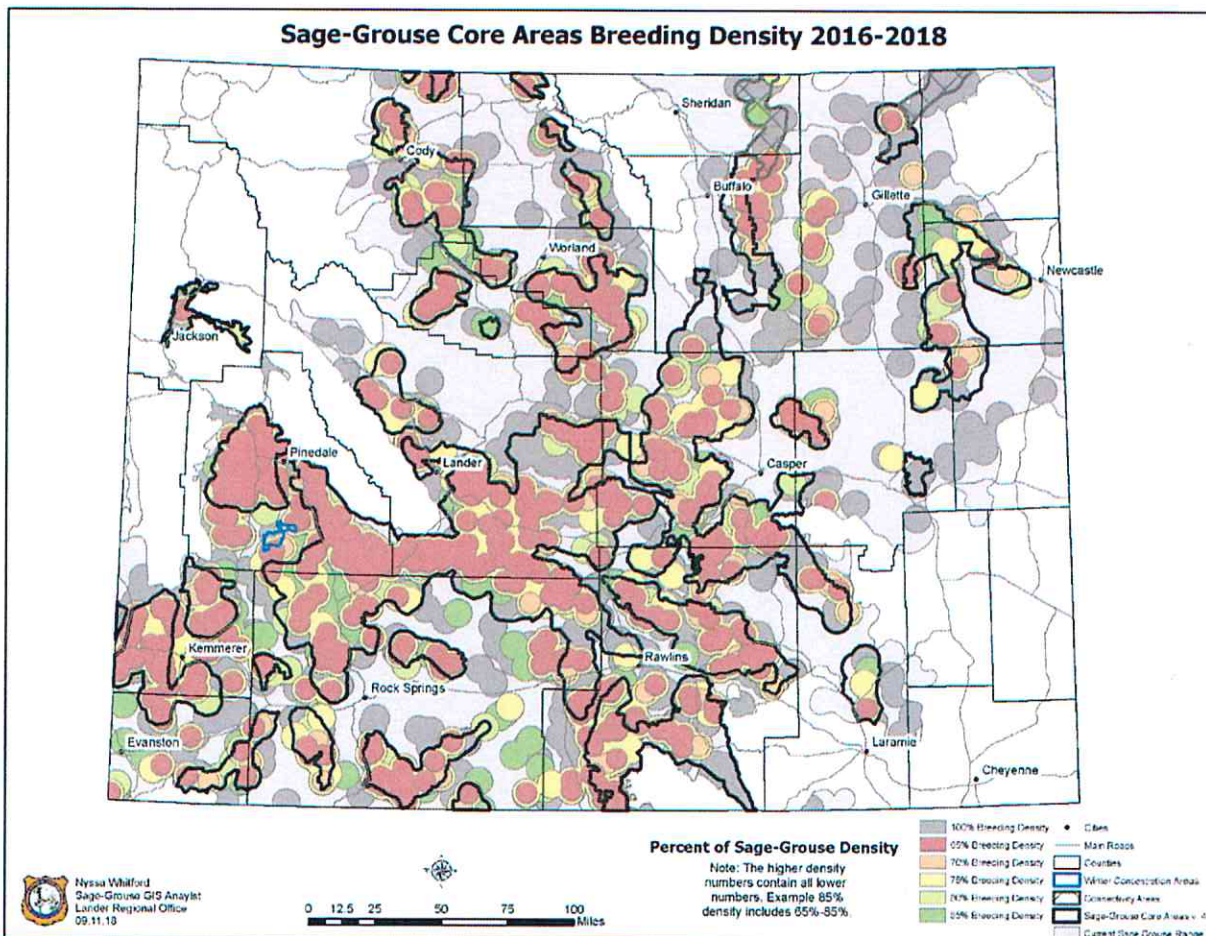


Figure 2: Density Function Density Overlaid with Core Population Areas

Northeast Wyoming Core Population Areas

Northeast Wyoming is ecologically limited in terms of ability to produce dense stands of sagebrush, thereby requiring additional consideration of local conditions and habitat selection by Greater sage-grouse. , Appendix C describes many of these considerations and distinct parameters for activities such as vegetation treatments, however there are no distinct stipulations to be applied to development for northeast Wyoming Core Population Areas outside of the standard requirements (Appendix E).

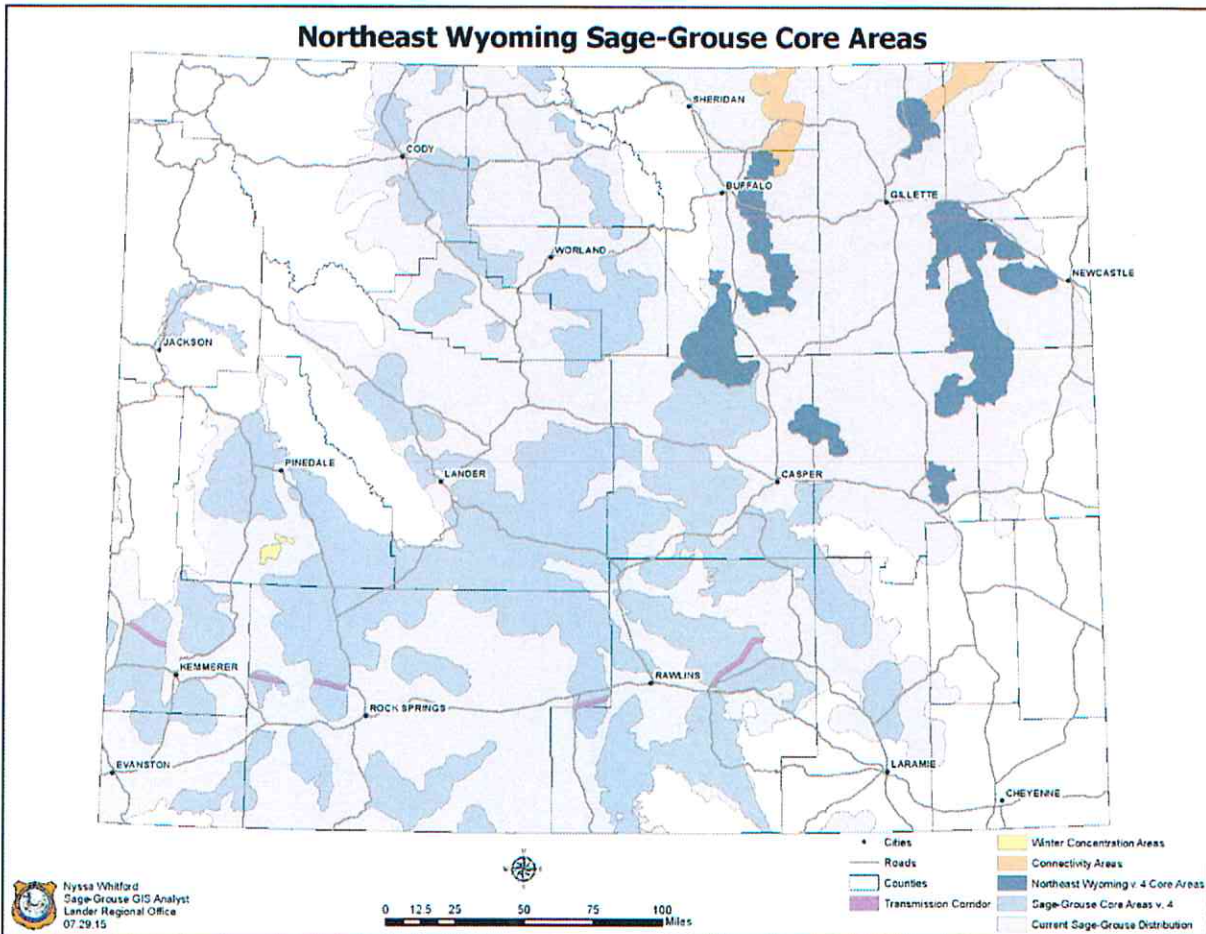


Figure 3: Northeast Wyoming Core Population Areas (based on NE Wyoming Local Working Group boundaries.)

Transmission Corridors

A two mile-wide transmission line corridor has been established through Core Population Areas in south central and southwestern Wyoming to avoid and minimize negative impacts to Greater sage-grouse (Figure 4).

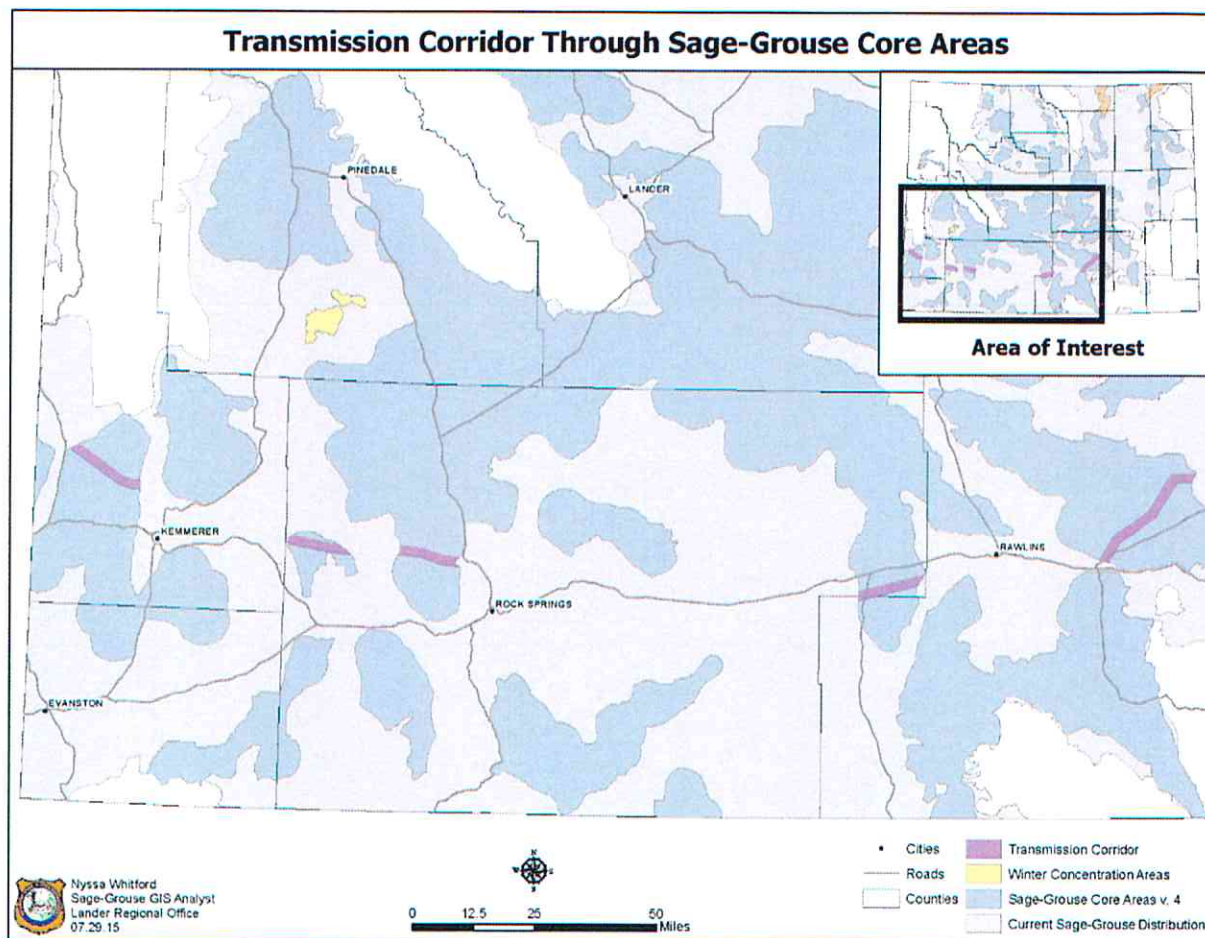


Figure 4: Transmission Corridor through Greater sage-grouse Core Population Areas

APPENDIX C
PROJECT-LEVEL HABITAT DEFINITIONS, WILDFIRE, HABITAT TREATMENTS, MONITORING AND RECLAMATION

Greater sage-grouse require different seasonal habitats distributed over large areas to complete their life cycle. All of these habitats consist of, are associated with, or are immediately adjacent to sagebrush. An abbreviated description of a complex system cannot incorporate all aspects of, or exceptions to, what habitats a local Greater sage-grouse population may or may not utilize.

Habitat definitions in this appendix primarily inform the Density Disturbance Calculation Tool (DDCT) process but may also have applicability in project siting. Definitions for Executive Order 2019-3 delineated habitats (e.g. - Core, non-Core, etc.) can be found in Appendix E.

DDCT Habitat Definitions

The following definitions are used to inform the DDCT process and post-disturbance actions such as reclamation.

“Suitable” habitats are within the delineated range of Greater sage-grouse, and are:

1. Existing habitats with 5% or greater sagebrush canopy cover as measured by the point intercept method. "Sagebrush" includes all species and sub-species of the genus *Artemisia* except the sub-shrub species: *frigida* (fringed sage), *pedatifida* (birdfoot sage), or
2. Riparian, wet meadow (native or introduced) or areas of alfalfa or other suitable forbs (brood rearing habitat) within 275 meters of sagebrush habitat with 5% or greater sagebrush canopy cover (for roosting/loafing). Areas further than 275 meters from sagebrush may be considered suitable where pellet counts, documented sightings, or other defensible proof of sage-grouse use can be provided; or
3. Reclaimed or restored habitat containing 5% or greater sagebrush canopy cover, with site-appropriate desirable grass and forb cover and frequency (see Reclamation Monitoring section); or
4. Natural and man-made wetlands and historically (pre-2008) irrigated areas, excluding row crops, in stream and river valleys further than 275 meters from sagebrush habitat. These areas are considered “suitable” habitat for DDCT purposes. These areas may also be considered suitable habitat for credit calculation purposes where pellet counts, documented sightings or other defensible proof of sage-grouse use can be provided.

“Transitional” habitat is land that has been previously disturbed or burned resulting in less than 5% sagebrush cover but is actively managed to provide functional habitat within 10 years. Lands managed to meet or move towards “suitable” definition for reclaimed or restored habitat (5% sagebrush canopy, appropriate grass and forb cover and frequency), including reclamation, may be considered “transitional” when valid, reliable, and repeatable trend data show vegetation is moving towards the definition of “suitable” and a management plan is developed. Trend is established by a minimum of five years of data. On potential “transitional” sites, the Wyoming Game and Fish Department (WGFD) and

other relevant partners will be included in management plan development and a technical team may be needed (see Wildfire section for discussion of technical teams).

Habitats that are classified as “transitional” will not count as disturbance in DDCT calculations of EO 5% threshold. However, “transitional” sites that do not meet the definition of “suitable” within 10 years will be considered “disturbed.”

“Disturbed” habitat is land that has been converted from formerly suitable habitat to grasslands, croplands, energy development, mining, or other disturbance resulting in less than 5% sagebrush canopy cover. These areas may provide habitat at some time in the future through succession, reclamation, or restoration.

The following items are guidelines for determining disturbed habitat for the DDCT process:

- a. Long-term removal occurs when habitat is physically removed through activities that replace suitable habitat with long-term occupancy of unsuitable habitat such as a road, well pad or active mine.
- b. Short-term removal occurs when vegetation is removed in small areas, but restored to suitable habitat within 5-10 years, such as a successfully reclaimed pipeline or a successfully reclaimed pit.
- c. Suitable habitat between three or more short- or long-term disturbances may be considered disturbed due to proximity. Disturbances less than 1.2 miles apart (0.6 miles from each activity) will be consolidated and reflected in the DDCT as industrialized areas. Exceptions may be provided on a site-by-site basis.
- d. Lands in northeastern Wyoming are ecologically limited in terms of sagebrush production and the ability to sustain dense stands of sagebrush (canopy cover rarely exceeds 15% as measured by Line Intercept). Lands in northeastern Wyoming where sagebrush was removed prior to 1994 for the purposes of grassland agriculture which still do not have 5% or greater sagebrush cover may be exempt from counting as “disturbed” for DDCT purposes. Lands that were converted after 1994 that still do not have 5% or greater sagebrush canopy cover will be counted as “disturbed” in DDCT. Determinations will be based on orthophoto interpretation.

“Unsuitable” habitat is land within the historic range of Greater sage-grouse that did not, does not, and will not provide Greater sage-grouse habitat due to natural ecological conditions (e.g.- badlands, canyons or forests). This also includes those permanent disturbances such as existing reservoirs and municipal boundaries. This may also be referred to as “non-habitat.”

Relationship between Executive Order 2019-3 Definitions and the Habitat Assessment Framework

The Sage-grouse Habitat Assessment Framework (HAF; Stiver et al 2015)¹ is specifically designed to capture information about sage-grouse habitat across multiple scales and during different seasons, whereas EO definitions are used to inform the DDCT process or general reclamation standards. The HAF is a multi-scale habitat tool designed to establish indicators to inform managers of sage-grouse habitat quality and potential needs across different seasonal habitats at multiple scales.

Sage-grouse habitat selection is primarily driven by availability and local conditions, therefore requiring a local perspective with regard to numerical values found in HAF Table 4-7. Tables in the HAF use Habitat Indicators to generalize Habitat Suitability Characteristics based on range-wide science that represents attributes most commonly selected by sage-grouse (e.g.- 15-25% sagebrush canopy cover). Additionally, HAF numerical values are broken down by seasonal habitat type and information is collected via different methodologies in the HAF and DDCT.

HAF glossary definitions for “suitable, marginal, potential, unsuitable, and non-habitat” are similar to those listed above. However, HAF definitions also consider survival and reproduction rates and have different temporal qualifiers whereas EO definitions are focused on changes to amounts of suitable habitat.

EO definitions primarily used to inform the status of Core Area thresholds (5%, 1/640). For mitigation projects (Appendix F), the HAF and DDCT are used concurrently to develop an overall picture of the project in terms of habitat quality and quantity.

Multi-scale concepts and general habitat selection information from the HAF can be beneficial to managers but must be considered and applied in the appropriate context. For purposes of DDCT analysis and this Executive Order, the numerical values in the HAF do not apply and are not strictly synonymous with “suitable” habitat as defined above. Managers considering habitat attributes such as sagebrush canopy cover must remain cognizant of which process, HAF or DDCT, is being applied and which monitoring questions are being addressed.

Reclamation

Reclamation Monitoring for DDCT Process

Reclaimed sites, or reclamation areas, are sites where topsoil has been removed by anthropogenic activities and have subsequently undergone at least one of the following: replacement of topsoil, re-contouring, or replanting of vegetation. Common monitoring techniques should provide adequate information to managers regarding progression, and potential need for additional action, on reclaimed sites.

For reclamation sites in Core and Connectivity Areas where there is uncertainty regarding whether or not they qualify as “suitable” habitat for DDCT purposes, the following guidelines shall be followed.

¹ The HAF can be found at: <https://www.fs.fed.us/sites/default/files/sage-grouse-habitat-assessment-framework.pdf>.

1. If the reclaimed area has 5% or greater sagebrush canopy cover with appropriate grass and forb communities, it is to be considered "suitable".
 - a. Sites which contain a bunchgrass component in the reference site, appropriate Ecological Site Description, or in pre-disturbance data must contain at least one bunchgrass.
2. If the reclaimed area has less than 5% sagebrush cover but is within 60 meters of existing "suitable" habitat, use appropriate methodologies to determine cover and frequency of site-appropriate desirable forbs and grasses for the site.
 - a. Sites that contain two or more desirable grass species (including a bunchgrass component where appropriate) and two or more desirable forb species, in great enough abundance to meet or exceed 70% of plant community frequency and cover described on the reference site, within the appropriate Ecological Site Description, or in pre-disturbance species data will be considered "suitable".
 - b. If reclaim does not meet 2(a) it may be considered for "transitional" status, pending development of management plan and WGFD approval. See "transitional" definition above.

Monitoring Resources

Suggested resources for developing monitoring plans include but are not limited to: Technical Reference 1734-4 – Sampling Vegetation Attributes; Technical Reference 1734-6 – Interpreting Indicators of Rangeland Health; Technical Reference 6710-1 – Sage-Grouse Habitat Assessment Framework; and the Monitoring Manual for Grassland, Shrubland, and Savanna Ecosystems, 2nd Edition, Volumes I and II.

Habitat Restoration and Enhancement

Habitat restoration sites are those which have been previously disturbed but are not currently required to be changed in any way (e.g.- a reclamation site from 1950). Habitat enhancement sites are those which show a diminished level of functionality but still contain some, or all, of the typical attributes of sage-grouse habitat (e.g.- a site with abundant sagebrush but few forbs).

In some instances, habitats naturally degrade over time or still show impacts of historical activities. In these cases, restoration or enhancement activities may provide improved functionality to habitat on sites that are capable of producing more desired attributes than in their current state. Examples may include, but are not limited to: historic sagebrush treatments, poor historic reclamation, historic wildfire scars, and areas where plant community shifts have limited habitat quality. In general terms, these types of stable state systems will require significant inputs to alter ecological conditions (e.g.- shifting a rhizomatous grass community towards a bunchgrass community, re-establishing sagebrush, etc.).

Similarly, previously reclaimed areas have not always followed expected successional routes, or returned to pre-disturbance plant communities in time intervals expected. Size, age, methods used to create the disturbance and to reclaim it, and objectives of the original reclamation should be considered when assessing reclaimed areas for functionality and restoration or enhancement potential.

Restoration or enhancement projects are highly encouraged in all areas and should be prioritized based on feasibility of restoration activities and likelihood of success. Sites targeted for enhancement (e.g.- invasive species treatment, sagebrush treatment, inter-seeding, etc.) should utilize the best available science and be coordinated with WGFD and other relevant agencies.

Restoration or enhancement projects are not currently part of the Mitigation Framework (Appendix F). They are also not directly tied to DDCT calculations. However, restoration of some sites may contribute to reductions in overall DDCT calculations for some projects. Proponents should work with WGFD on these types of projects.

Wildfire

Wildfire poses a significant threat to sage-grouse habitat in many areas. Fire suppression efforts should be emphasized in Core Areas and coordination of local, regional, and national suppression efforts are key to fire response. Where available, a team member with knowledge regarding sagebrush habitat should be added to fire crews. Public and firefighter safety remain the number one priority for all fire management activities.

Following wildfire, lands shall be considered “disturbed” pending an implemented management plan with trend data showing the area returning to functional Greater sage-grouse habitat as outlined above in the “transitional” definition.

Following a wildfire, a Technical Team or Adaptive Management Working Group will be established, if not already in place. A team should be comprised of appropriate representatives from State and Federal agencies, Local Working Groups, Conservation Districts, Weed and Pest, non-governmental organizations, and private landowners. This team will be charged with developing a plan for: restoration, post-fire activities, and data collection to inform metrics outlined above in the “transitional” definition (Appendix I).

In the event an accidental fire is started on a project location by proponent operations (Appendix E) and expands to impact adjacent suitable habitat, the project proponent is strongly encouraged to work with a Technical Team to reduce or eliminate long-term impacts of habitat loss. Fires that occur under this scenario will be considered disturbance until a post-fire management plan is developed and accepted by the State and trend data shows the area is meeting the definition of “transitional” habitat.

Habitat Treatments

Sagebrush Habitat Treatments in Core and Connectivity Areas

Sagebrush habitat treatments include, but are not limited to: prescribed fire, mowing, chemical treatment, and strip removal. The following requirements apply to all forms of sagebrush habitat treatment:

- Treatments that result in sagebrush eradication are considered disturbance for DDCT purposes;
- Treatments that reduce canopy cover to less than 5% are considered disturbance for DDCT purposes;
- Treatments improve overall functionality of habitat (with consideration to scale at which functionality will be realized);
- Treatments follow the WGFD Vegetation Treatment Protocols (2019).

Prescribed fire can be used as a tool to improve sagebrush habitat in some instances. In addition to the requirements above, the use of prescribed fire is allowed in Core Areas when:

- Pre-fire data and a post-fire plan exist; coordinate with WGFD and local fire crews, including federal partners where necessary;
- Adequate contingencies are included in the post-fire plan for invasive species and/or restoration activities.

The use of fire in northeast Wyoming is not recommended (Appendix B). Northeast Wyoming is ecologically limited in terms of sagebrush production and sagebrush canopy cover rarely exceeds 15% (as measured by Line Intercept method). In addition to the requirements above, fire should not be used in northeast Wyoming unless:

- The treatments would not reduce canopy cover below 15% (as measured by Line Intercept method); or
- The treatments that would reduce cover below 15% must provide compelling evidence treatment would result in improved habitat function for sage-grouse.

Current WGFD Vegetation Treatment Protocols (2019) outline detailed information regarding treatment design and other considerations. Treatments that do not meet the requirements above may be considered on a site-by-site basis, and in some instances may qualify for “transitional” status (e.g.- escaped prescribed fire); approval by WGFD is required before such treatments can be undertaken or before “transitional” status is approved.

Other Habitat Treatments and Habitat Treatments in Non-Core Areas

Projects that would restore or enhance habitats outside of Core Areas can have beneficial impacts and are encouraged. Other Core Area habitat treatments (e.g.- juniper removal, mesic meadow/riparian improvement, etc.) designed to improve sage-grouse habitats, either directly or indirectly, are encouraged. Treatments that target invasive annual grasses, noxious weeds, or other problematic plant species are considered de minimis in most instances (Attachment G).

Habitat projects outside of Core Areas, Connectivity Areas, or Winter Concentration Areas are not subject to the requirements above but these requirements are highly recommended for consideration when designing projects in sagebrush habitats.

APPENDIX D

VALID EXISTING RIGHTS

Valid existing rights shall be recognized and respected. Activities existing or permitted in Core Population Areas prior to August 1, 2008, and activities existing or permitted prior to the date of Executive Order 2015-4 (July 29, 2015) and within Core Population Areas added as a result of Executive Order 2015-4 will not be required to be managed under Core Population Area density and disturbance thresholds (Appendix E).

Examples of existing activities include oil and gas, mining, agriculture, processing facilities, housing, state and federal highways, and other uses that were in place prior to the development of the Core Population Areas and other delineated habitats. Federal and state permitted activities, within a defined project boundary (such as a recognized federal oil and gas unit, drilling and spacing unit, mine permit, subdivision plat, state or federal highway right-of-way, utility right-of-way, grazing allotment etc.), shall be allowed to continue within the existing boundary even if the use exceeds recommended thresholds (Appendix E). Proponents of new activities within boundaries such as above are required to submit a Density Disturbance Calculation Tool (DDCT) for purposes of tracking disturbance. If the proposed activity DDCT is at or above Executive Order thresholds, the project proponent, Wyoming Game and Fish Department (WGFD) and the permitting agency will identify opportunities to avoid or minimize impacts to Greater sage-grouse in accordance with Appendix E.

Permits

For information regarding existing permits, expired permits and permit renewal, please see the Permitting section in Appendix E.

Drilling and Spacing Units

Core Population Areas

For an oil and gas activity located in Core Population Area to be allowed, per the exemptions granted in Executive Order 2019-3, the bottom hole location (BHL) must be governed by an approved Wyoming Oil and Gas Conservation Commission (WOGCC) order(s) for spacing and applicable increased density/additional wells issued prior to August 1, 2008. WOGCC staff will determine whether an oil and gas activity meets this requirement. Activities that meet this requirement will be permitted in accordance with the language in the following section regarding Pre-existing Oil and Gas Units.

For an oil and gas activity located in Core Population Area added as a result of Executive Order 2015-4, the BHL must be governed by an approved WOGCC order(s) for spacing and applicable increased density/additional wells issued prior to July 29, 2015. The WOGCC will determine whether an oil and gas activity meets this requirement. Activities that meet this requirement will be permitted in accordance with the language in the following section regarding Pre-existing Oil and Gas Units.

Additionally, Executive Order 2019-3 states that "Federal and state permitted activities, within a defined project boundary... shall be allowed to continue within the existing boundary even if the use exceeds recommended density and disturbance thresholds." This statement is intended to be consistent with the statement in the following section regarding Pre-existing Oil and Gas Units: "... are not subject to new Greater Sage-grouse mitigation measures contained in Appendix E of this Executive Order with the

exception that unit operators cannot initiate activities resulting in new surface occupancy within 0.6 miles of the perimeter of an occupied Greater sage-grouse lek.”

Non-Core Population Areas

In non-Core Population Areas, oil and gas activities occurring between 0.25 miles and 2 miles from the perimeter of an occupied lek that have an approved WOGCC order(s) for spacing and applicable increased density/additional wells issued prior to August 1, 2008 will be granted relief from seasonal use stipulations. This determination will be made by WOGCC staff. The 0.25-mile No Surface Occupancy (NSO) requirement will still apply in non-Core Population Areas.

Pre-Existing Oil and Gas Units

For the purposes of this section “Pre-existing Oil and Gas Units” means oil and gas units established prior to August 1, 2008 or oil and gas units established after August 1, 2008 but prior to July 29, 2015 in Core Population Areas changed by Executive Order 2015-4.

In administering oil and gas plans of development in Core Population Area, logical and systematic planning will occur in accordance with the terms of oil and gas unit agreements for Pre-existing Oil and Gas Units and the goals of this Executive Order. This will be accomplished by concentrating activity within existing unit boundaries even if disturbance and density exceed Executive Order thresholds within the DDCT assessment area.

Each situation should be addressed with flexibility and an understanding of the local landscape, habitats and other factors.

Pre-existing Oil and Gas Units within Core Population Area or non-Core Population Area are not subject to new Greater sage-grouse mitigation measures contained in Appendix E of this Executive Order with the exception of the NSO stipulations.

For oil and gas development approved under the annual plan of development and associated surface disturbance proposals by the unit operator, the unit operator is required to complete the DDCT process including the appropriate worksheet when submitting those applications. It is understood that the level of existing and future development in Pre-existing Oil and Gas Units may exceed Executive Order thresholds.

The DDCT results and worksheet completed for Pre-existing Oil and Gas Unit activity will be used solely to track disturbance data inside the unit boundary to obtain baseline data for use in Executive Order monitoring and to calculate existing and future planned disturbance. Proponents and agencies are still expected to minimize surface disturbance whenever possible and follow all other existing, applicable lease stipulations. As projects are completed, as-built footprints will be collected and the disturbance layer updated with the as-built information.

For project proposals located outside unit boundaries, wherein a DDCT assessment area for the project proposal encompasses parts of Pre-existing Oil and Gas Units, disturbance will be based upon the existing disturbance, annual plans of development, or other relevant information regarding development provided by the unit operator, the Bureau of Land Management Reservoir Management Group or other credible sources of information such as the Wyoming Oil and Gas Conservation

Commission. In the absence of an annual plan of development or other relevant information, the unit affected will be considered fully developed for the purpose of calculating existing disturbance per the DDCT process.

For new development inside the boundary of Pre-existing Oil and Gas Units that are not directly related to oil and gas development (e.g., vegetation treatment or gravel pits), the project proponent will be required to comply with all aspects of this Executive Order.

Mining

Leasable Coal Mining Operations

Coal mining activities authorized prior to October 2, 2015 and included within the approved permit boundary will be allowed to continue under the regulatory and permit-specific terms and conditions authorized under the Wyoming Environmental Quality Act (WEQA) and the Surface Mining Control and Reclamation Act of 1977 (SMCRA) as administered by the Wyoming Department of Environmental Quality (WDEQ).

Leasable, Locatable, and Saleable Non-Coal Mining Operations

Non-coal solid mineral mining activities within a permit boundary approved prior to August 1, 2008, and activities permitted prior to the date of the Executive Order 2015-4 (July 29, 2015) and within Core Population Areas added as a result of Executive Order 2015-4 are not subject to Greater sage-grouse stipulations in Core or Non-core Population Areas.

Leasable non-Coal Minerals Operations

Leasable non-coal minerals are defined by Federal Law, a variety of which are mined in Wyoming (e.g.- Sodium, phosphate, potassium, etc.). Mining activities for solid non coal leasable minerals within a permit boundary are authorized under any of the following; the Minerals Leasing Act of 1920 as amended, 43 CFR Parts 3500 or 3600 (or under a Wyoming state mineral lease or a private fee lease), and the Wyoming non-coal rules and regulations.

Locatable non-Coal Minerals Operations

Locatable Minerals are defined by federal Law, a variety of which are mined in Wyoming (e.g.- bentonite, gold, gypsum, uranium, and certain rare earth metals). Mining activities for locatable minerals within a permit boundary are authorized under the General Mining Law of 1872 as amended, 43 CFR Subpart 3809 or 36 CFR Part 228 Subpart A, and the Wyoming non-coal rules and regulations.

Saleable non-Coal Minerals Operations

Saleable minerals are defined by Federal Law, a variety of which are mined in Wyoming (e.g. sand and gravel). Mining activities for saleable minerals within a permit boundary approved prior to August 1, 2008 are authorized under The Materials Act of 1947 as amended, 36 CFR Part 228 Subpart C, and the Wyoming non-coal rules and regulations.

Existing Corridors (Roads, Transmission and Pipelines)

Existing, permitted/authorized corridors and rights-of-way (ROWs) for roads, power lines, pipelines, and other utilities (e.g.- water, sewer) are considered valid existing rights. For permitting information on corridors and ROWs, please see Appendix E. For information on de minimis activities for utility

corridors, please see Appendix G. Activities within ROWs or corridors for transmission and distribution power lines, substations, pipelines and other utilities established and authorized prior to August 1, 2008 are not subject to Greater sage-grouse stipulations contained in Appendix E of this Executive Order.

Activities within ROWs for state and federal highways established and authorized by Wyoming Department of Transportation and the Federal Highway Administration prior to August 1, 2008 are not subject to Greater sage-grouse stipulations contained in Appendix E of this Executive Order.

APPENDIX E

GREATER SAGE-GROUSE POPULATION AREAS, PERMITTING PROCESS, AND STIPULATIONS FOR DEVELOPMENT

Beginning in 2007, the Sage Grouse Implementation Team was charged with three primary tasks: (1) identification of areas where Greater sage-grouse and their habitats would be most effectively conserved, (2) development of a strategy to reduce or eliminate potential threats to the species, and (3) development of methodology to evaluate, document and track potential impacts over time. The following describes those efforts to date.

Greater Sage-Grouse Population Areas

Establishment of Greater Sage-Grouse Core Population Area

Greater sage-grouse lek location and attendance data as identified through modeling of bird populations and habitat were overlaid with areas of valid existing rights to produce the Greater sage-grouse Core Population Area map for Wyoming (Appendix B). This iterative process consisted of a series of reviews conducted in the field by Local Working Groups (LWGs) and others with a thorough understanding of local Greater sage-grouse use to assure that areas included as a core habitat were a true representation of actual conditions on the ground. Similar processes were used in 2010 and 2015 to refine the Core Population Area mapping, resulting in the current Core Population Areas (Appendix B).

A kernel density function was applied to the lek location and attendance data to develop the final Greater sage-grouse density maps and later adjustments (Appendix B). The red areas represent the breeding habitat for 65% of Greater sage-grouse in Wyoming based on lek size and location. The maps illustrate population proportions at a given time, not trends over time. This method was based on breeding birds and did not take into account late brood-rearing and wintering seasonal habitats. During the 2010 revision of Core Population Area boundaries in Wyoming, both late brood-rearing and winter use were considered in the process and most of these seasonal habitats associated with birds in the existing Core Population Area were included in the final product. The eight LWGs assisted in the revision process by using highly detailed habitat imagery (1 meter National Agriculture Imagery Program (NAIP) imagery) and reviewing new lek and development data. These activities were open to the public and other interests throughout the process.

The resultant 2008, 2010 and 2015 Core Population Areas encompass approximately 83% of the Greater sage-grouse population, on approximately 24% of the surface area of the State of Wyoming (Appendix B).

Non-Core Population Area

Non-Core Population Area is habitat located outside of Core Population and Connectivity Areas, and is within the current distribution of Greater sage-grouse in Wyoming (Appendix B). Development scenarios in Non-Core Population Area are more flexible, but should still be designed and managed to maintain populations, and habitats. Wyoming's conservation strategy requires habitat connectivity and movement between populations in Core Population Areas.

Connectivity Areas

Connectivity areas are recognized as areas important for maintaining the transmission of genetic material between populations. These areas have been identified as the most likely dispersal routes used by Greater sage-grouse to travel between potentially isolated populations in Wyoming to populations in neighboring states. Viable connectivity areas reduce the threat of creating isolated populations in Wyoming and adjacent populations in neighboring states. Connectivity areas are managed to limit anthropogenic development and have been delineated to increase the likelihood of natural immigration/emigration important for maintaining genetic variability in Core Population Areas.

Winter Concentration Areas

The identification of Core Population Areas is intended to capture all seasonal requirements for Greater sage-grouse; however, there is recognition that in some cases Core Population Areas may not capture all Greater sage-grouse needs. Specifically, Winter Concentration Areas, defined as places where large numbers of Core Populations Area Greater sage-grouse congregate and persistently occupy between December 1 and March 14, should be identified and protected. Identification of Winter Concentration Areas should be based on habitat features and repeated observations of winter use by biologically significant numbers of Greater sage-grouse (e.g.- groups of greater than or equal to 50 Greater sage-grouse) using a data driven statistically rigorous modeling approach (e.g.- validated Resource Selection Function).

Permitting Process

General Process

The first point of contact for addressing Greater sage-grouse Core Population Area issues for state permit application should be the Wyoming Game and Fish Department (WGFD). Project proponents should contact WGFD at least 45-60 days prior to submitting their application. Proposed projects requiring a density/disturbance calculation analysis are submitted through the Density Disturbance Calculation Tool (DDCT) website. The Wyoming Geographic Information Science Center (WYGISC) will complete the technical review and forward to WGFD for policy review. WGFD will work with the project proponent to determine appropriate avoidance and minimization measures.

WGFD will send the complete analysis package (DDCT results, map book, and worksheet) and recommendations to the appropriate permitting agencies and project proponent. All appropriate consultation with federal agencies and other state agencies will occur as described in Appendix A. WGFD recommendations will be included. Project proponent shall have access to all information used in developing recommendations. Where possible and when requested by the project proponent, state agencies shall provide the project proponent with potential development alternatives other than those contained in the project proposal.

DDCT Process

Density and Disturbance Calculation

The DDCT² is a spatially based tool that calculates both the average density of disruptive activities and total surface disturbance within the area affected by the project, also known as the DDCT assessment area. The DDCT assessment area is created based on an initial radius around projects proposed in Greater sage-grouse Core Population Areas, and subsequent radius around any occupied Core Population Area leks within the initial radii (Figures 1-2).

A 4-mile radius is used to identify 75% of the Greater sage-grouse use around a lek. Any portion of the analysis area not found in Core Population Areas is removed (Figure 3). Disturbance and density will be analyzed for the DDCT assessment area as a whole and for each individual Core Population Area lek boundary within the DDCT assessment area.

All activities will be evaluated within the context of maximum allowable density and disturbance of suitable Greater sage-grouse habitat (Appendix C for definition of suitable Greater sage-grouse habitat and disturbance of suitable Greater sage-grouse habitat) within the DDCT assessment area (Figure 4). This tool allows for better siting of projects rather than averaging the density/disturbance calculation per section.

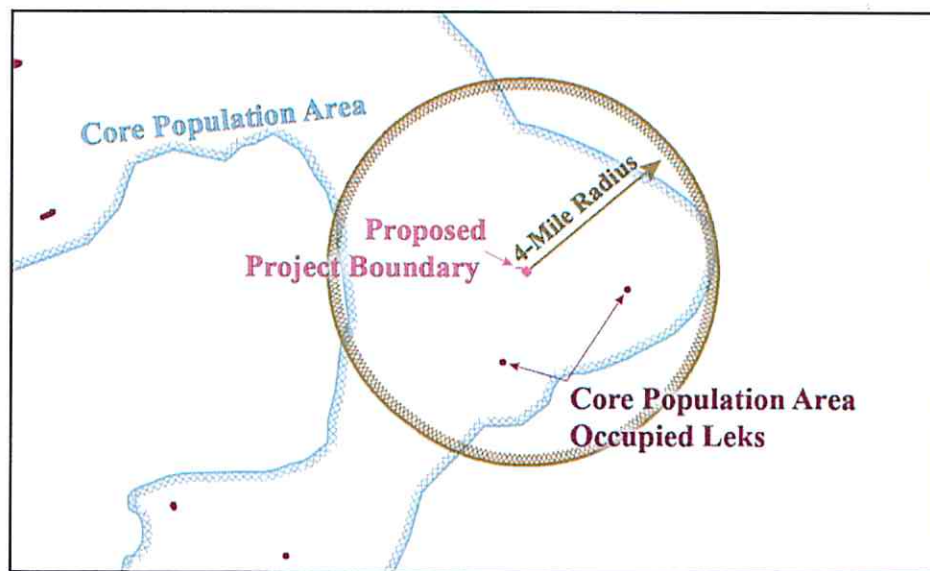


Figure 1: DDCT assessment area step 1 (proposed project boundary)

² The DDCT can be found at: <http://ddct.wygisc.org>.

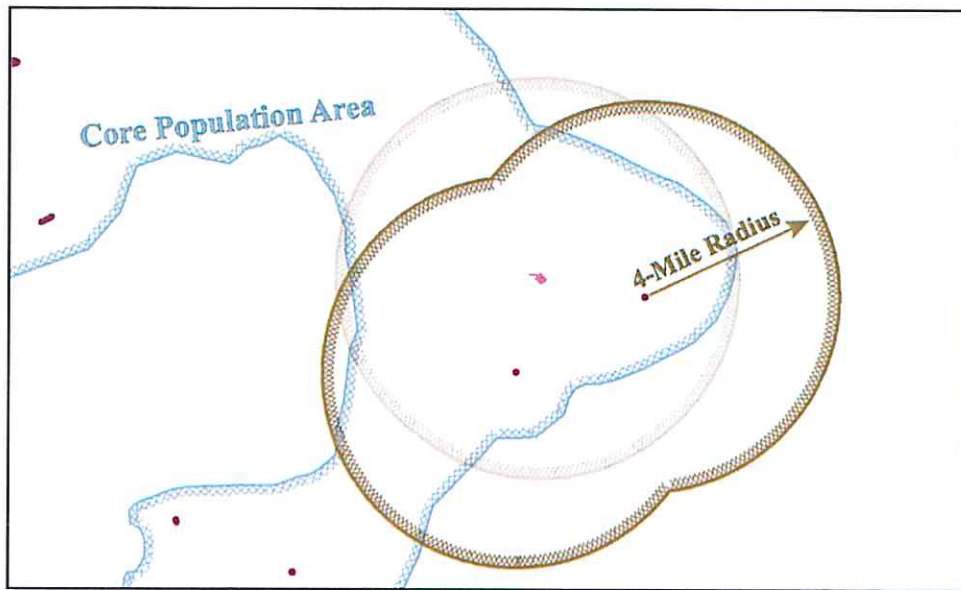


Figure 2: DDCT assessment area step 2 (lek boundaries)

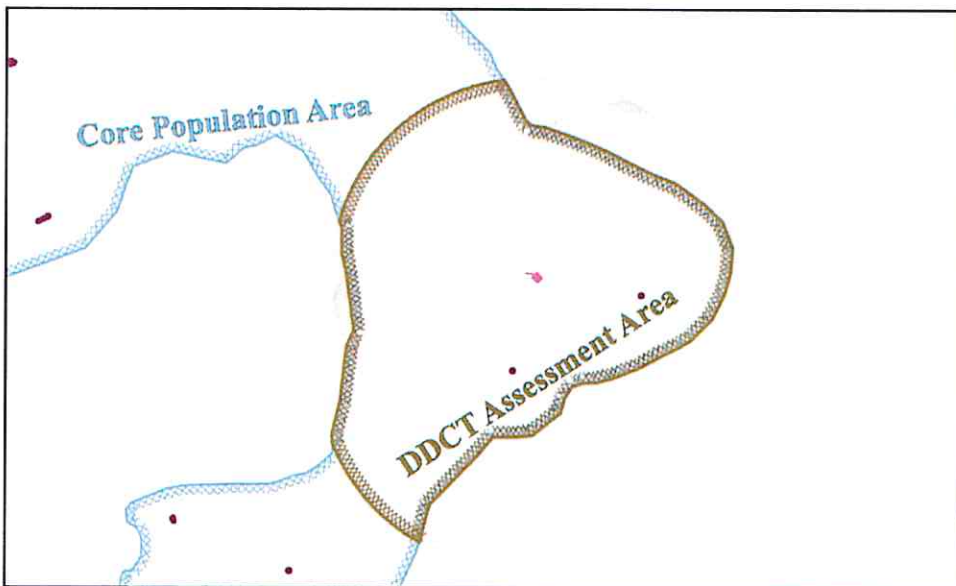


Figure 3: DDCT assessment area step 3 (remove non-Core Population Areas)

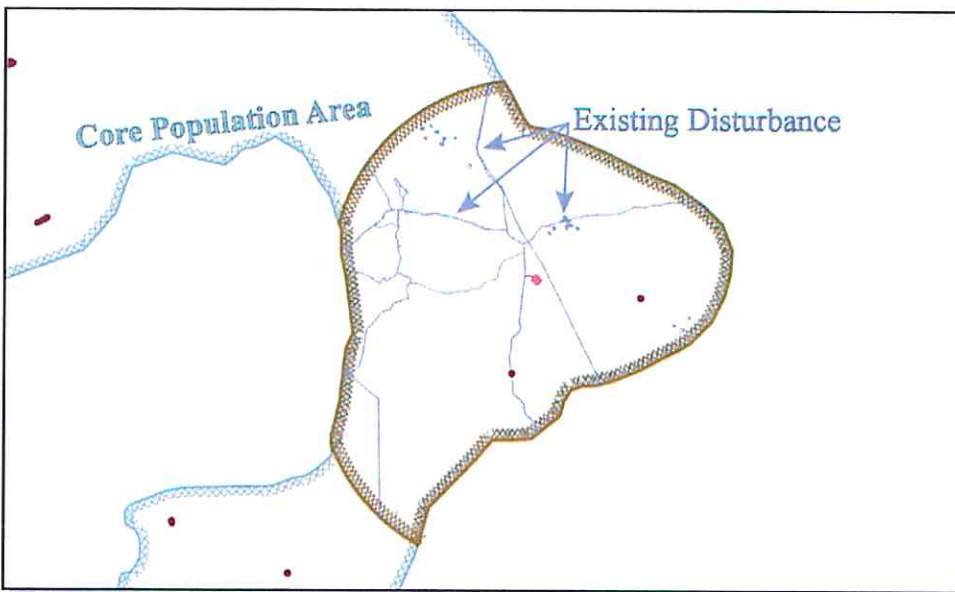


Figure 4: Existing and proposed disturbance in the DDCT assessment area

All lands within Core Population Area boundaries are considered suitable habitat unless documented. Mapped unsuitable habitat is treated neither as suitable habitat, nor disturbance, which results in the area being removed from the DDCT assessment area altogether.

Density and Disturbance Analysis

The total number of discrete applicable features (oil and gas well pads and associated infrastructure, active mines) as well as the total disturbance acres within the DDCT assessment area will be determined through an evaluation of:

- Existing disturbance (Greater sage-grouse habitat that is disturbed due to existing anthropogenic activity and wildfire).
- Approved permits (that have approval for on the ground activity) not yet implemented.
- Validation of the digitized disturbance through on the ground evaluation.

Avoid, Minimize, Mitigate

Assessment of all projects in Core Population Areas, Connectivity Areas, or Winter Concentration Areas will strive to avoid impacts first, minimize unavoidable impacts second and apply compensatory mitigation in accordance with Appendix F where necessary. Agency coordination will be completed in accordance with Appendix A.

Preferred development plans avoid negative impacts in Core Population Areas and other Executive Order-delineated habitat used by Greater sage-grouse through compliance with Executive Order thresholds and stipulations for development. This maximizes protections for both Greater sage-grouse and sagebrush habitat. Avoidance can be both spatial and temporal.

When development occurs within Core Population Areas and other Executive Order-delineated habitats used by Greater sage-grouse, all reasonable options should be pursued to minimize impacting suitable habitat to the greatest extent practicable. This may result in new disturbance within Executive Order delineated habitats, but the disturbance is managed to result in minimal discernable impacts at the population level.

It is recognized that incentivizing development in Non-Core Population Areas may result in greater impacts to Greater sage-grouse that use this habitat. The DDCT process is not used in Non-Core Population Areas, however, project proponents are strongly encouraged to incorporate minimization measures in development plans in Non-Core Population Areas where impacts to Greater sage-grouse can be meaningfully reduced.

Permit Expirations and Renewals

If the permit for which a proponent has applied expires, another DDCT analysis is required before issuing a new permit. An additional DDCT is not required for permit extensions or renewals when no changes are being authorized.

The Executive Order in effect at the time of a complete formal application will remain in effect through the final permit.

Exceptions

There are situations where exceptions to the stipulations in this Appendix are warranted. Project proponents can request relief from stipulations from WGFD. WGFD will work with the project proponent to review site and project specific factors and identify avoidance and minimization measures. WGFD will evaluate the exception request, including coordination with other agencies as described in Appendix A, and make a recommendation to the permitting agency. When Compensatory Mitigation is required WGFD shall include the amount of compensation required, consistent with Appendix F, in its recommendations.

Process Deviation or Undefined Activities

Development proposals incorporating less restrictive stipulations or activities that are not covered by these stipulations may be considered depending on site-specific circumstances. The proponent must have data demonstrating that the alternative development proposal will avoid negative impacts to Greater sage-grouse in Core Population Areas. Proposals to deviate from standard stipulations will be considered by a team including WGFD and the appropriate land management and permitting agencies, with input from the USFWS. To deviate from standard stipulations project proponents need to demonstrate that the project development would meet at least one of the following conditions:

- No suitable habitat is present in one contiguous block of land that includes at least a 0.6 mile buffer between the project area and suitable habitat;
- No Greater sage-grouse use occurs in one contiguous block of land that includes at least a 0.6 mile buffer between the project area and adjacent occupied habitat, as documented by total absence of Greater sage-grouse droppings and an absence of Greater sage-grouse activity for the previous ten years; or

- Implementation of a development/mitigation plan that has demonstrated through previous research avoids negative impacts to Greater sage-grouse. The demonstration must be based on monitoring data collected and analyzed with accepted scientific based techniques.

Exempt Activities

Production and maintenance activities are exempt from seasonal use stipulations. The applicable permitting agency is responsible for determining if an action is or is not a production and maintenance activity.

A list of exempt (“de minimis”) activities, including standard uses of the landscape is available in Appendix G.

General Stipulations

Applicable state agencies shall review projects requiring an authorization that are located in a Greater sage-grouse habitat and apply the stipulations in this section as appropriate.

Core Population Areas

These stipulations are designed and intended to maintain existing suitable Greater sage-grouse habitat by permitting development activities in Core Population Areas in a way that will avoid negative impacts to Greater sage-grouse.

General stipulations are recommended to apply to all activities in Core Population Areas, with the exception of exempt (“de minimis”) actions defined herein (Appendix G) or specifically identified activities. The specific industry and/or activity stipulations are considered in addition to the general stipulations.

Surface Disturbance

Surface disturbance will be limited to 5% of suitable Greater sage-grouse habitat per an average of 640 acres over the entire DDCT assessment area. The DDCT process will be used to determine the level of disturbance. Distribution of disturbance may be considered and approved on a case-by-case basis. Habitat should be identified in a seasonal and landscape context, on a case-by-case basis, outside the 0.6 mile buffer around occupied leks. This will incentivize proponents to locate projects in unsuitable habitat to avoid creating additional disturbance acres. The primary focus should be on protection of suitable habitats and minimizing habitat fragmentation. See Appendix C for a description of suitable, unsuitable habitat and disturbance.

Surface Occupancy

Within 0.6 miles of the perimeter of occupied Greater sage-grouse leks there will be no surface occupancy (NSO). NSO, as used in these recommendations, means no permanent surface facilities including roads shall be placed within the NSO area. Other activities may be authorized with the application of appropriate seasonal stipulations, provided the resources protected by the NSO are not adversely affected.

For example, underground utilities may be permissible if installation is completed outside applicable seasonal stipulation periods and significant resource damage does not occur. Seasonal protections are to be determined on principal usage of site by Greater sage-grouse. The primary purpose of the 0.6 restriction around leks is to avoid disturbing lekking Greater sage-grouse and to maintain habitat integrity. This necessitates the limitation of traffic or infrastructure that would encourage human activity around occupied leks.

Seasonal Use

Activities will be allowed from July 1 to March 14 outside of the 0.6 mile perimeter of an occupied lek in Core Population Areas where breeding, nesting and early brood-rearing habitat is present.

Powder River Basin Coal Bed Methane Plugging Operations: Plugging of Coal Bed Methane wells in the Powder River Basin is allowed May 15 to March 1 and between 8 am and 6 pm from March 1 to May 15.

Special Considerations: Where credible data support different timeframes for these seasonal restrictions, dates may be shifted 14 days prior to or subsequent to the above dates, but not both.

Transportation

Locate new collector or arterial roads that will have relatively high levels of activity (accessing multiple wells, housing development) greater than 1.9 miles from the perimeter of occupied Greater sage-grouse leks. Locate new local roads used to provide facility site access and maintenance greater than 0.6 miles from the perimeter of occupied Greater sage-grouse leks. Construct roads to minimum design standards needed for production activities.

Collector or arterial roads are single-lane or double-lane roads, with travel ways 12 to 24 feet in width. They collect traffic from local roads and connect to arterial roads or public highways. They are operated for intermittent or constant service.

Local roads are single-lane roads with travel ways 12 to 14 feet in width. They connect terminal facilities, such as well sites, to collector, local, arterial, or other higher-class roads. They are operated for low-volume traffic.

Use of existing collector, arterial, and local roads is encouraged where the construction of new roads can be avoided and where impacts to Greater sage-grouse can be minimized. Project-specific travel management plans are encouraged where high levels of new traffic on existing roads (e.g.- hauling product and/or waste) will occur within 1.9 miles of the perimeter of occupied Greater sage-grouse leks.

Noise

Sound levels at leks, due to new project noise individually or cumulatively from anthropogenic sources, should not exceed 10 decibels (dB) above baseline sound levels at the perimeter of a lek during the breeding season (March 1 to May 15), 6 pm to 8 am. Baseline sound levels should be determined prior to project initiation. Sound level measurement and monitoring protocols available from the WGFD should be used to measure and report sound levels.

Lek Monitoring

Proponents of new projects are expected to coordinate with the WGFD to determine which leks need to be monitored and what data should be reported by the proponent. Certain leks may be exempted from monitoring activities pending WGFD coordination.

Reclamation

Reclamation should re-establish grasses, forbs, and shrubs during interim and final reclamation commensurate with pre-disturbance plant communities, ESDs, or reference sites. Seed mixes should be tailored to local plant communities and conditions. Landowners should be consulted on desired seed mixes on private lands. Operators are required to control noxious and invasive species, including annual grasses and are encouraged to work with local Weed and Pest districts on control efforts.

Non-Core Areas Within 2 Miles of an Occupied Lek

Surface Disturbance

There are no limitations to disturbance outside the 0.25 mile no surface occupancy buffer.

Surface Occupancy

Within 0.25 miles of the perimeter of occupied Greater sage-grouse leks there will be NSO. NSO, as used in these recommendations, means no permanent surface facilities including roads shall be placed within the NSO area. Other activities may be authorized with the application of appropriate seasonal stipulations, provided the resources protected by the NSO are not adversely affected. For example, underground utilities may be permissible if installation is completed outside applicable seasonal stipulation periods and significant resource damage does not occur.

Seasonal Use

Activity will be allowed from July 1 to March 14 outside of the 0.25 mile perimeter of an occupied lek and within 2 miles from the perimeter of the occupied lek where breeding, nesting and early brood-rearing habitat is present. Activities in unsuitable habitat may also be approved year-round (including March 15 to June 30) on a case-by-case basis. Activities may be allowed during seasonal closure periods as determined on a case-by-case basis.

Powder River Basin Coal Bed Methane Plugging Operations: Plugging of Coal Bed Methane wells in the Powder River Basin is allowed May 15 to March 1 and between 8 am and 6 pm from March 1 to May 15.

Special Considerations: Where credible data support different timeframes for these seasonal restrictions, dates may be shifted 14 days prior to or subsequent to the above dates, but not both.

Connectivity Areas

Surface Disturbance

Surface disturbance should be limited to 5% of suitable Greater sage-grouse habitat over the entire DDCT assessment area. The DDCT process will be used to determine the level of disturbance.

Surface Occupancy

For protection of connectivity corridors, a NSO buffer of 0.6 miles around occupied leks or their documented perimeters is required.

Seasonal Use

A March 15 to June 30 timing limitation stipulation is required within nesting habitat within 4 miles of occupied leks.

Powder River Basin Coal Bed Methane Plugging Operations: Plugging of Coal Bed Methane wells in the Powder River Basin is allowed May 15 to March 1 and between 8 am and 6 pm from March 1 to May 15.

Winter Concentration Areas

Seasonal Use

In delineated and mapped Winter Concentration Areas, new activities will be allowed March 15 to November 30.

SPECIFIC STIPULATIONS

(To be applied in addition to general stipulations)

Oil and Gas

Oil and gas well pads and associated infrastructure densities are not to exceed an average of one pad per square mile (1/640 acres) and suitable habitat disturbance does not to exceed 5% within the DDCT assessment area. As an example, the number of well pads within a two mile radius of the perimeter of an occupied Greater sage-grouse lek should not exceed 11, distributed preferably in a clumped pattern in one general direction from the occupied lek.

Geophysical Exploration

Geophysical exploration may be permissible in accordance with identified seasonal use stipulations in Greater sage-grouse population areas. Staging areas should be located outside of Core Population Areas, or evaluated through the DDCT process if within Core Population Areas.

Mining

For development drilling or ore body delineation drilled on tight centers (approximately 100 feet by 100 feet), the disturbance area will be delineated by the external limits of the development area. Assuming a widely-spaced disturbance pattern, the actual footprint will be considered the disturbance area.

Any Greater sage-grouse monitoring results will be reported annually in the mine permit annual report and to WGFD.

The number of active mining development areas (e.g., operating equipment and significant human activity) is not to exceed an average of one site per square mile (1/640 acres) within the DDCT.

Vegetation removal and topsoil stripping should be limited to the minimum disturbance required by the project. All topsoil stripping and vegetation removal in suitable habitat is limited to July 1 and March 14 in Core Areas. Production and maintenance activities (surface mining) between March 15 and June 30 are considered permissible once the vegetation is removed outside the seasonal stipulations. Initial disturbance in unsuitable habitat between March 15 and June 30 may be approved on a case-by-case basis. It is important that the "viability" of the topsoil is maintained. A set of Best Management Practices (BMPs) for protecting topsoil are outlined in Appendix C.

In Core Population Areas, it is understood that there will be exceptions for minimal impacts due to existing mines as they expand their existing operations through modified mine plans.

Overhead Power Lines

It will be necessary to construct significant new transmission infrastructure to transport electricity generated in Wyoming to out-of-state load centers. There will be new distribution and transmission lines that will need to be built to service existing approved projects.

Transmission lines are power lines designed and constructed to support voltages less than 36 kilovolts (kV) and are generally designed to help move electricity from a power plant or generation source to substations.

Distribution lines are power lines, energized at voltages from 2.5kV to 35kV, and used to distribute electricity to residential, industrial, and commercial customers. Residential and agricultural distribution lines are discussed in Appendix G.

For purposes of consistency with this Executive Order there is established a transmission line corridor through Core Population Areas in south central and southwestern Wyoming as illustrated in Appendix B. This two mile-wide corridor represents the State of Wyoming's preferred alternative for routing electric transmission lines across the southern portion of the state while reducing impacts to Core Population Areas and other natural resources.

New transmission lines constructed within corridors identified in this Executive Order (Appendix B) or within one half-mile either side of existing or permitted (prior to August 1, 2008) 115 kV or larger transmission lines, creating a corridor no wider than 1-mile shall be considered consistent with this Executive Order if construction occurs within the corridor between July 1 and March 14 (or between July 1 and December 1 in delineated and mapped Winter Concentration Areas).

New transmission lines constructed within 0.5 miles either side of 115kV or larger transmission lines in existence or permitted prior to the date of this Executive Order 2015-4 (July 29, 2015) and within Core Population Areas added as a result of this Executive Order 2015-4, creating a corridor no wider than 1-mile, shall be considered to be consistent with this Executive Order if construction occurs within the

corridor between July 1 and March 14 (or between July 1 and December 1 in delineated and mapped Winter Concentration Areas).

New transmission lines outside the above described corridors but within Core Population Areas should be authorized or conducted only when it can be demonstrated that the activity will avoid negative impacts to Greater sage-grouse. If it is absolutely necessary to site new distribution and transmission lines through a Core Population Area outside of an existing corridor, lines should be sited to minimize negative impact on Greater sage-grouse or their habitats, and preferentially consider siting along or adjacent to existing long-term linear disturbance features whenever possible (e.g.- along existing occupied above ground utilities or roads).

Proponents are encouraged to apply appropriate Best Management Practices (BMPs) specific to electric utility facilities; otherwise, locate overhead lines at least 0.6 miles from the perimeter of occupied Greater sage-grouse leks.

Lines permitted but not located in an Executive Order transmission corridor will be counted towards the 5% disturbance calculation (line disturbance is equal to right-of-way (ROW) width multiplied by length and includes all access roads, staging areas, and other permanent surface disturbance associated with construction outside of the ROW).

Underground Rights of Way

The State of Wyoming and federal management agencies have worked to develop utility corridors in current Resource Management Plans (RMPs). One of the primary purposes of these utility corridors is to encourage placement of future linear development (e.g.- pipelines, water lines, fiber optics, etc.) adjacent to existing infrastructure to reduce habitat fragmentation.

It is the intent of this Executive Order to continue to incentivize co-location of new pipelines in RMP-designated utility corridors. New pipelines proposed in RMP established utility corridors will be required to complete DDCT calculations prior to construction. The pipeline proponents are not expected to meet Executive Order thresholds within the utility corridor, but the project construction would be subject to appropriate seasonal timing stipulations. The locations of permanent above-ground facilities (e.g.- block valves, compressors, etc.) will be subject to Executive Order thresholds if located outside the designated corridor. Pipelines outside RMP-designated utility corridors, but in Core Population Areas, are required to comply with the 5% disturbance per the DDCT analysis.

Installing underground utilities and pipelines using plowing techniques that eliminate the need for reclamation will be allowed from July 1 to March 14. Plowing underground lines will be allowed year-round within state and federal highway right-of-ways, except where activity will occur within 0.6 miles of an occupied lek where human disturbance should be avoided from 6:00 pm to 8:00 am during the breeding season (March 1 to May 15).

Commercial Wind or Solar Energy Development

Commercial wind and solar development is not recommended in Greater sage-grouse Core Population Areas, but will be re-evaluated on a continuous basis as new science, information and data emerges.

APPENDIX F

COMPENSATORY MITIGATION FRAMEWORK

Scope

Core Population Areas have been mapped to include additional habitat beyond that strictly necessary to prevent listing of Greater sage-grouse. Development consistent with the stipulations set forth in Executive Order (EO) 2019-3 Appendix E are sufficient to avoid negative long-term impacts to Greater sage-grouse.

If a project complies with the stipulations contained in EO 2019-3 for Greater sage-grouse conservation (for example, in non-Core Population Areas: 0.25 mile No Surface Occupancy, timing limitations; and, for example, in Core Population Areas: 0.6 mile No Surface Occupancy, 5% surface disturbance threshold), no compensatory mitigation is required by the State of Wyoming. Any project that will require credits and debits and has a federal nexus will be coordinated with the federal agency that is involved with the permitting effort pursuant to the specific sections in approved Bureau of Land Management (BLM) Resource Management Plan Amendments and United States Forest Service (USFS) Land Management Plans.

The BLM, USFS, U.S. Fish and Wildlife Service (USFWS), and Natural Resources Conservation Service (NRCS) have agreed to use this Mitigation Framework as stated in the Memorandum of Understanding with the State of Wyoming.

Background

Greater sage-grouse are a landscape species, meaning that they occupy and use a variety of seasonal habitats (including some which may be considered marginal or less than ideal) in an interconnected manner. The Wyoming Greater sage-grouse Core Area Protection Strategy addresses tolerances of the species to disturbance, disruption and loss of habitat and is designed to avoid and minimize impacts before allowing deviations. Any activity that requires a state permit and fails to comply with the stipulations of EO 2019-3 may be denied. Those activities requiring a state permit, but fail to comply with the stipulations of EO 2019-3 and are not denied will be required to provide compensatory mitigation for impacts to Greater sage-grouse. Consistent with EO 2019-3, the preferred method of resolution of conflicts will be avoidance and minimization, where possible.

Unlike historic banking for wetlands and some other habitats, the Greater sage-grouse compensatory mitigation process is grounded in available credits being part of a complete functional landscape and the availability and assurance of all seasonal habitats within that area. The connection between seasonal habitat needs and reduced disturbance and disruption for Greater sage-grouse remains imperfect; for instance, areas with lower quality habitat may still be important within landscapes and are often integral to landscape function.

Ultimately, the goal of the State of Wyoming is to maintain intact sagebrush landscapes that will adequately provide a variety of habitat needs for Greater sage-grouse and other sagebrush obligate species. This goal includes the efforts of federal agencies as demonstrated by close coordination with the Approved Resource Management Plan (BLM) and Land Management Plan (USFS) amendments and revisions to create a comprehensive and consistent regulatory mechanism.

Compensatory mitigation may be accomplished in two primary manners. The first are “conservation credits,” which maintain existing habitats in a landscape context, provide for long-term management consistent with the needs of the species, and remove potential threats to the species from human activities. The second are “restoration credits,” which may be used to restore habitats that have been lost or severely impacted and did not meet the habitat needs of the species. Full suitability of lost or severely impacted sites may take decades. However, to provide incentives to restore habitats impacted by historic activities, restoration credits will be given to sites that have improved from lost or severely impacted to functional condition that demonstrates a positive trend toward suitability (over a period of five years), and is currently occupied by Greater sage-grouse. Restoration credits must demonstrate functionality and occupation before any credits are awarded.

Conservation credits are created by removing or limiting a threat to Greater sage-grouse or their habitat for the full duration of the impact or in perpetuity. Restoration credits are created by converting disturbed or low quality habitat to suitable Greater sage-grouse habitat. In some cases, both may occur on the same landscape and should be accounted for accordingly.

Conservation Credits

All credits offered as compensatory mitigation for Greater sage-grouse must be evaluated on a landscape scale, and not as an “acre of habitat-for-an acre of habitat trade.” A credit, whether through a bank, exchange or other mechanism represents a unit of a functional and intact landscape, and must have relativity to all of the essential habitats required by the species. Inherent in this requirement is the assimilation of indirect credits to the species that are not readily measured, but contribute to the fully functional landscapes. Simply put, an acre of nesting habitat is of no value to the species if it does not have proximity to breeding areas, brood-rearing areas, and winter habitats. Conversely, an acre with little actual use by Greater sage-grouse, but still meets the ecological potential for the site, such as a rocky crag, is part of the functional landscape and should not be regarded as diminished value. These sites within the overall landscape remove potential threats and provide protection from the placement of disruptive activities.

In order for a land parcel to be considered for Greater sage-grouse “conservation credits,” it must be demonstrated that the lands in question meet the following biological requirements:

1. The geographic area designated for credits must have active use by Greater sage-grouse.
2. The geographic area designated for credits must include the habitat attributes identified as essential for perpetuation of Greater sage-grouse, consistent with the ecological potential for the landscape in question.
3. The geographic area designated for credits must be able to support Greater sage-grouse, or have reliable access to all seasonal habitats for the species (breeding and nesting, early brood-rearing, late brood-rearing, winter).
4. The geographic area designated for credits must have active breeding areas (leks) within the landscape. (Generally, the credits should be located within 5.3 miles of an active lek. However, there may be circumstances that may be considered which would allow credits in unique circumstances such as restoration credits.)
5. The area must meet the Greater sage-grouse habitat suitability definition in EO 2019-3 Appendix C.

Further, in order for a landscape to be considered for Greater sage-grouse credits, it must meet the following disturbance tolerances for the species:

6. The area designated for credits must be consistent with the tolerances of EO 2019-3 (for example, surface disturbance < 5%, one oil and gas or mining activity per 640 acres on average for the modified Density/Disturbance (MDD) area, collector or arterial roads > 1.9 miles from the perimeter of a lek, no surface occupancy < 0.6 miles from the perimeter of a lek). MDD Areas that exceed 5%, but do not exceed 10% may be eligible for credits; however, the credit will be discounted by 10%. The discount may be removed from unused credit acreage if the disturbance is shown to fall below 5%.

Finally, in order for a landscape to be considered for Greater sage-grouse credits, it must be able to show that it can meet the following tests for durability and risk reduction:

7. The credits must persist for the duration of any offsetting impacts and associated activities or be permanent in nature. Credits that do not meet the durability requirements below will be discounted by 10%.
8. The credits must be adequately secured by reserve accounts additional acreage or by adequate financial assurances to replace any loss of the original credits.

All state agencies required to review permit applications for compliance with EO 2019-3, Greater Sage-Grouse Core Area Protections, shall accept credits from Greater sage-grouse compensatory mitigation providers approved by the U.S. Fish and Wildlife Service before the date of this EO or the credit providers approved after the date of this EO, should the State permitting agency determine that compensatory mitigation credits are required.

Requirements for conservation credit eligibility are outlined in Table 1.

Table 1: Conservation Credit Eligibility Requirements

Category	Credit Condition	Credit Requirements
<i>Occupancy</i>	Mandatory	The credit is occupied by Greater sage-grouse.
<i>Disturbance</i>	Mandatory	Disturbance within the area to be considered for credits must be below 10% and 1 per 640 as measured by a modified Density Disturbance Calculation Tool (DDCT) process.
<i>Disturbance</i>	Potential Credit Adjustment	Disturbance within the area to be considered for credits is below 5% and 1 per 640 acres as measured by a Modified Density Disturbance (MDD) process. If disturbance is between 5.01% and 9.99% as measured by the MDD Process, the credit will be discounted by 10%.
<i>Durability</i>	Mandatory	The credit exists for the life of the project impact.
<i>Durability</i>	Potential Credit Adjustment	The credit has permanent protection. For non-private lands, this would require a conservation credit lease term of not less than 50 years, with a renewal option at the end of the term. On private land, credits that do not have permanent protection, but are 50 years or greater with a renewal option at the end of the term, will be discounted by 10% per acre.
<i>Financial Assurances/Replacement</i>	Mandatory	Credits include the financial assurances or replacement credits, as appropriate, to guarantee the implementation and effectiveness of compensatory mitigation measures and to cover their administration, durability, monitoring, and reporting.
<i>Habitat Suitability</i>	Mandatory	Habitat suitability must be functional for Greater sage-grouse as verified by an ecological site potential assessment and habitat assessment through the Habitat Assessment Framework (HAF), EO 2019-3 Appendix C suitability definition, or other similar habitat analysis. Methodologies must provide adequate information to inform bird use, habitat

		availability, juxtaposition to other seasonal habitats, and overall habitat quality.
<i>Habitat Suitability</i>	Mandatory	Habitat suitability is greater than 5% sagebrush cover or other EO 2019-3 Appendix C suitability definition.
<i>Additionality</i>	Mandatory	Credits will not be allowed where habitat conservation is otherwise required by law, regulation, permit, or other condition.
<i>Landscape Support</i>	Potential Credit Adjustment	The area proposed for credit must be within a landscape that provides access to all seasonal habitats where potential threats have been ameliorated or removed. Private lands that meet these criteria would receive a landscape context credit increase not to exceed 15%. Any areas not adequately conserved will be discounted from the total increase. Any landscape credit adjustment must be approved by the credit-certifying entity and should be figured in a manner that reflects specific habitat values (for example, the number of leks, the lek population, enhanced credit value based on credit location in relation to protecting a lek, quality of habitat, removal of multiple threats).
<i>Risk Reduction</i>	Mandatory	The credit includes a description of: 1. The outcomes of compensatory mitigation measures and the performance standards to be met for the duration of the credit life. Credit descriptions should include the types and amounts of resources that will be restored, established, enhanced, and/or preserved, and how these outcomes will address species' conservation needs at the landscape scale. 2. The baseline condition prior to disturbance and future disturbance threats affecting the compensatory mitigation credits (For example: are there 4 seasonal habitats located within 4 miles? What are the existing disturbance thresholds? What is the potential for future development?). 3. The durability of the compensatory mitigation measures and how the credit

		sites will be maintained (for example, offset for life of disturbance or perpetuity). 4. The monitoring and reporting program that will be used to report credit conditions and trends of resources at all relevant scales, to assess the effectiveness of compensatory mitigation measures, and to identify any need for adaptive management. 5. The triggers for adapting management, if necessary, in order to achieve the outcomes of the compensatory mitigation measures. 6. The implementation plan for the enhancement, restoration or funding of compensatory mitigation measure(s) that includes: • Specifications for implementing the compensatory mitigation measures (for example, timing, method, source materials, specific geographic area). • The schedule and plan to maintain compensatory mitigation measures for the duration of the impacts. 7. The accounting and reporting process for tracking measures/funds/credits.
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Restoration Credits

Compensatory mitigation may be achieved through actions that improve or restore existing landscapes, or areas within landscapes, from a condition that does not currently support Greater sage-grouse, or does not meet the needs of species reflected through HAF assessments, or other defensible habitat assessments which are consistent with the ecological potential for the site. Restoration credits would only be achieved when the proponent can show that site conditions have been changed from an “unsuitable” condition to a condition that is stable, functional, occupied and trending towards the normal range of variability of appropriate Ecological Site Descriptions, as defined by Appendix C, and where Greater sage-grouse occupy the site.

Credits will be awarded when a disturbed site conforms to the appropriate Ecological Site Description and is maintained in a stable state and trend toward optimal Greater sage-grouse habitat for a period of five years. A restoration credit must also meet all the Categories in Table 1 except for the Habitat Suitability category.

Improvement will be measured as a functional change in the landscape, and generally will be in the form of credit generation as outlined above. Proponents are required to annually submit data to show that the credit is not regressing. Restoration credits must adhere to the quality parameters outlined for conservation credits. Any action that is required by law, permitting and reclamation agreements, contracts, or other requirements is not eligible for conservation credits.

Debits for Impacts to Greater sage-grouse

The primary emphasis of the Wyoming Greater sage-grouse Core Area Protection Strategy is to avoid and minimize impacts to the species first. Since the inception of Wyoming’s strategy, those efforts have been employed across the state, and have been effective in avoiding and reducing impacts and threats to the species. However, there are cases when avoidance and minimization still do not meet EO 2019-3 thresholds, primarily due to pre-existing disturbance. In those cases, where projects cannot be denied due to valid existing rights, and where avoidance and minimization does not adequately address impacts to Greater sage-grouse, compensatory mitigation may be an appropriate method to assure maintenance and enhancement of the species and its required habitats.

The Wyoming Mitigation Framework is based upon biological, legal, and policy requirements for mitigation, including the debit and/or credit principles of replacement, landscape support and vulnerability, durability of mitigation measures, indirect effects from activities, additionality, and timeliness. Table 1 contains an outline of the credit parameters. The concepts of replacement, indirect effects, habitat assurance and habitat vulnerability are considered in debit requirements for activities in Core Population Areas, as described and shown in Table 2.

1. *Replacement*: Replacement is a physical and biological metric that will replace an impacted acre with an equal or greater amount of habitat where threats have been removed or abated. Replacement is calculated on an acre-to-acre basis (based on the footprint of the activity), and is a factor of one-to-one.
2. *Indirect Effects*: Indirect effects are those impacts arising out of an action that extend beyond the actual footprint of the action itself. This includes factors that may cause avoidance or abandonment of habitats not directly impacted. Indirect effects have been calculated through various means over time, and are generally greater in closer proximity to the activity, with a declining effect with distance. Based on the footprint of the activity, indirect effects will be assigned a factor of two-to-one for all actions.
3. *Habitat Assurance*: Potential losses to habitat, populations, or both, must be adequately offset by a greater security of habitats and populations where threats have been removed or abated. Because GSG require large intact landscapes, show great fidelity to habitat, and do not respond well to blind transplants, it is necessary to assure that compensatory mitigation is robust and adequate to reliably remove threats to the species. Based upon the policy of the State of Wyoming, habitat assurance will be assigned (on an acre-to-acre basis) a factor of two-to-one for all actions.
4. *Habitat Vulnerability*: Actions that occur in highly vulnerable or limiting habitat types (for example, wet meadows, high-quality nesting habitat, lands that provide severe winter relief, and other vulnerable habitats identified and confirmed within the DDCT area) will likely be impossible to replace. These areas should be avoided. Where avoidance is not possible, additional debits would be assigned to these habitats on an acre-to-acre basis with a factor of five-to-one.

Other considerations relative to debits, including durability, additionality, timeliness and other factors are adequately addressed in the calculation of credits and should not be applied to both debits and credits. For instance, a credit must show durability for the life of the impact, and thus is reduced appropriately to meet that standard. Specific to the concern of additionality, that determination is not a calculation, but a requirement that the credit not be given for an action that would be otherwise required.

In order to assure the perpetuation of the species, any action that meets the need for compensatory mitigation in Core Population Areas debits will be assessed based upon the criteria and the threshold exceeded. Table 2 identifies how the replacement, indirect effect, habitat assurance and habitat vulnerability debit factors are calculated for activities in Core Population Areas.

Table 2: Debit Requirements for Activities in Core Population Areas

Activity in Core Population Areas	Debits
<i>New disturbance in compliance with EO 2015-4 thresholds</i>	0 debits
<i>New disturbance exceeding the 5% disturbance threshold and occurring more than 0.6 miles from an occupied lek</i>	5 debits per acre
<i>Any new disturbance within 0.6 miles from an occupied lek and new collector or arterial roads within 1.9 miles from an occupied lek</i>	10 debits per acre
<i>Greater than 1 activity per 640 acres</i>	10 debits total per activity
<i>Short-term impact (seasonal stipulation relief)</i>	10 debits per activity, per year
<i>Habitat vulnerability (discretionary)</i>	Potential 5 debits per acre of vulnerable habitat

Short-Term Impacts

Short-term impacts that require compensatory mitigation (for example, activities during seasonal stipulations or other actions that require less than one year occupancy) will be assessed by the event and not on a per-acre basis. Short-term impacts will be assessed 10 debits per activity, per year.¹

Compensatory Mitigation in non-Core Population Areas

For surface occupancy within (less than) 0.25 miles from an occupied lek in non-Core, compensatory mitigation will be calculated on an acre-to-acre basis (based on the footprint of the activity in suitable habitat within the 0.25 mile buffer) with a factor of 2:1.

¹ Project proponents should be aware that the BLM has an exception waiver modification criteria process that may be applied to projects on BLM land.

The compensatory mitigation requirement for short-term impacts applies to Non-Core Population Areas. It is the policy of EO 2019-3 to incentivize developments of all types outside of Core Population Areas, including through stipulation waivers and other incentives.

Table 3: Debit Requirements for Activities in non-Core Population Areas

Activity in Non-Core Population Areas	Debits
<i>New disturbance in compliance with EO 2015-4 thresholds</i>	0 debits
<i>Within .25 miles from an occupied lek</i>	2 debits per acre of suitable habitat
<i>Short-term impact (seasonal stipulation relief)</i>	10 debits per activity, per year

APPENDIX G
EXEMPT ("DE MINIMIS")
ACTIVITIES

The following exemptions apply to all delineated Greater sage-grouse areas identified in this Executive Order: Core, Winter Concentration Areas, and Connectivity. Exemptions are not required in non-Core Population Areas.

General

1. Emergency response and public health and safety issues.
2. Authorized or required cultural, paleontological, and biological resource surveys.

Agriculture

It is important that agricultural practices are not unduly interrupted. Agriculture can provide benefits to a number of wildlife species, including Greater sage-grouse and help deter fragmentation of seasonal habitats. The following agricultural practices are considered exempt ("de minimis"):

1. Existing animal husbandry practices (including branding, docking, herding, trailing, etc.).
2. Existing farming practices and irrigation. Conversion of suitable sagebrush habitats is not considered de minimis.
3. Maintenance or modification of existing fence.
4. New fencing more than 0.6 miles from the perimeter of an occupied lek. New fences or new stretches of fences, with high potential for collisions should be marked or be designed to minimize risk. Construction within 0.6 miles is permitted so long as construction does not occur from March 15 to June 30 or on the lek itself; coordination with WGFD is strongly suggested.
5. Drilling and outfitting of agricultural water wells or development of other agricultural water sources (including tank installation, pumps, and agricultural water pipelines), more than 0.6 miles from the perimeter of an occupied lek. Construction within 0.6 miles is allowed from July 1 through March 14, after a habitat evaluation has occurred, and provided development does not occur on the lek. New tanks shall have escape ramps.
6. Construction of agricultural reservoirs, less than 10 surface acres and more than 0.6 miles from the perimeter of an occupied lek. Construction within 0.6 miles is allowed from July 1 through March 14, after a habitat evaluation has occurred, and provided that development does not occur on the lek. Treatment for West Nile Virus is encouraged.
7. Grazing operations that utilize recognized management approaches (allotment management plans, Natural Resources Conservation Service grazing plans, prescribed grazing plans, etc.).

It is Wyoming's primary premise that grazing activities are compatible with Greater sage-grouse conservation and may improve or compliment habitat for Greater sage-grouse. Properly managed grazing maintains or enhances Wyoming rangelands and helps sustain a diversity of plant species important to Greater sage-grouse habitat, and therefore populations.

On federal land, the State of Wyoming will collaborate with appropriate Federal agencies and the permit/lease holder(s) to: (1) develop appropriate Greater sage-grouse habitat conservation objectives; (2) define a framework for evaluating situations where Greater sage-grouse objectives are not being achieved to determine if a causal relationship exists between improper grazing (by wildlife, wild horses or livestock) and Greater sage-grouse conservation objectives; and (3) identify and implement appropriate site-based action to achieve Greater sage-grouse conservation objectives.

If grazing adjustments are believed necessary to achieve Greater sage-grouse conservation objectives, coordination among land management agencies and permit/lease holders shall take place. Monitoring data will, at a minimum: reflect five years of information, include rangeland health assessments, and require conclusion or action to be based on three out of five consecutive years of data (e.g.- years 1-2-3, years 2-3-4, years 3-4-5). These requirements may be waived in case of a catastrophic event such as fire. Further, the State recognizes there is a distinction between conservation objectives and land health standards and that it is possible to achieve land health standards while not achieving Greater sage-grouse conservation objectives and vice-versa. Federal agency participation in the implementation of this Executive Order in no way precludes them from managing federal surface for rangeland health.

Maintenance and Utilities

Some utilities are obligated by current regulation to serve customers with safe and reliable service. However, utilities must also comply with agency stipulations for Greater sage-grouse. In order to avoid impacting operational abilities of these companies, agencies, and landowners, certain practices are considered de minimis. Additionally, it is important that other routine maintenance, by agencies, utilities, or private landowners, is not impacted. As such, the following practices are considered de minimis:

1. Drilling and outfitting of residential water wells (including covered storage tank installation, pumps, and water pipelines) more than 0.6 miles from the perimeter of an occupied lek. Construction within 0.6 miles of an occupied lek is allowed from July 1 through March 14, after a habitat evaluation has occurred, and provided development does not occur on the lek.
2. Construction of residential or agricultural electrical distribution lines more than 0.6 miles from the perimeter of an occupied lek. Construction within 0.6 miles of an occupied lek is allowed when: a habitat evaluation has occurred, lines are not constructed on the lek itself, and construction takes place between July 1 and March 14.
3. Preventative or required maintenance to existing private or county roads within the right-of-way (blading/smoothing, filling pot holes, graveling, culvert replacement, right-of-way maintenance, cattle guard maintenance, etc.) are considered "de minimis". Road construction activities (vertical or horizontal realignment, roadway widening, new construction, bridge replacement,

etc.) are not considered "de minimis" and may require completion of a Density/Disturbance Calculation Tool (DDCT) analysis (Pendleton 2015).

4. General and operational maintenance activities of existing power lines and associated facilities, so long as the electric utility follows appropriate/applicable BMPs for electric utilities (APLIC 2015). Coordination of ongoing activities with the WGFD is encouraged.

Habitat

Habitat projects may directly or indirectly benefit sage-grouse. The following habitat related projects are considered de minimis:

1. Construction of aquatic habitat improvements, less than ten wetland or water surface acres, more than 0.6 miles from the perimeter of an occupied lek. Construction within 0.6 miles is allowed from July 1 through March 14, after a habitat evaluation has occurred, and provided development does not occur on the lek.
2. Spring development: if the spring is protected with fencing and enough water remains at the site to provide mesic (wet) vegetation. Fences should be constructed to be highly visible to Greater sage-grouse (i.e., buck-and-rail, steeljack, etc.) and/or marked to minimize collision potential.
3. Authorized herbicide applications; pesticide treatments for grasshoppers/Mormon crickets following Reduced Agent and Area Treatment (RAATs) protocol; vector treatments for other diseases such as West Nile Virus. All treatments must be done in accordance with regulations and labels. Coordination with Weed & Pest Districts is encouraged. See Appendix C – Habitat for guidance on vegetation treatment projects.
4. Conifer removal projects more than 0.6 miles from the perimeter of an occupied lek. Conifer removal within 0.6 miles is allowed from July 1 through March 14.
5. Reclamation seeding.

APPENDIX H

DATA COLLECTION AND REPORTING

Collecting and analyzing data is essential in assessing the influence of Executive Order 2019-3. The State of Wyoming should collect and analyze Greater sage-grouse population and habitat trend data, identify data gaps and research needs and recommend adaptive management actions as needed (Appendix I). The State will further work with federal partners, researchers, managers, and conservation organizations to aggregate all relevant, non-proprietary data being collected in sage-grouse habitats throughout the state. These compiled data will be analyzed and reported annually to establish the effect on populations and habitats of all activities pursued under purview of this Executive Order.

All state agencies shall report permitting actions, conservation efforts and population data by March 1 annually. Population and habitat trends relative to development and conservation activities, identified data gaps and research needs, and adaptive management recommendations will be reported by the State no later than April 30 annually for the previous calendar year.

Federal agencies are expected to contribute permitting actions, conservation efforts and other relevant reports annually (Appendix A).

Population Monitoring Data

Sage-grouse populations are monitored via: 1) lek counts and surveys, 2) harvest statistics, and 3) data derived from wing collections from harvested birds. Lek data can be analyzed in many ways, but is primarily used to estimate the average number of peak male sage-grouse per active lek. This provides a trend of sage-grouse populations over time and should be interpreted concurrently with the number of active vs. inactive leks.

Harvest statistics are collected via a voluntary hunter survey after the September hunting season and provide an estimate of the number of birds harvested, number of hunters, and the number of hunter days spent afield. Hunters voluntarily submit sage-grouse wings, allowing Wyoming Game and Fish Department (WGFD) biologists to estimate chick production/recruitment from the ratio of the number of chicks per hen. Greater sage-grouse population data is reported by WGFD in an annual Job Completion Report.

Conservation Efforts Data

Conservation efforts to benefit sage-grouse and their associated habitat are conducted by a wide variety of public and private entities. Conservation efforts will be recorded in the Wyoming Conservation Efforts Database and be reported to the U.S. Fish and Wildlife Service Conservation Efforts Database.

Permitting Data

Agencies are involved in permitting and may have data to report related to regulated activities include, but are not limited to:

- Office of State Land and Investments
- Department of Environmental Quality
- State Engineer's Office
- Industrial Siting Council
- Department of Transportation

- Oil and Gas Conservation Commission
- Game and Fish Department

These agencies will provide data related to the Sage Grouse Implementation Team (SGIT) on regulated activities occurring in Greater sage-grouse population areas in a consistent and useable manner. It is acknowledged that agency systems are generally designed to track regulated activities and may not be set up to track activities related to Executive Order 2019-3. Therefore, some data that is desirable may not be available at the present time without the dedication of additional resources.

The following is a list of items that may be tracked and reported by the agencies listed in this section.

- Permits
- Exceptions
- Exemptions
- Disturbance
- Violations
- Reclamation
- Compensatory mitigation credit

Federal agencies recognize the importance of providing permitting related data to SGIT. Federal agencies are expected to provide permitting data (e.g.- NEPA decisions, permits, exceptions, waivers, modifications) in accordance with the timeline in this Appendix.

Data Analyses

The State should analyze compiled data annually and will work with SGIT to identify data and information gaps necessary to effectively assess Greater sage-grouse habitat conditions, population trends and overall effectiveness of Executive Order 2019-3.

APPENDIX I

WYOMING GREATER SAGE-GROUSE ADAPTIVE MANAGEMENT PLAN

The Wyoming Greater sage-grouse adaptive management plan provides a means of addressing and responding to unintended negative impacts to Greater sage-grouse and their habitat before consequences become severe or irreversible. The plan uses science-based soft and hard response triggers and addresses multiple scales of data through an Adaptive Management Working Group. Figure 1 describes the Wyoming Adaptive Management Plan workflow to help visualize these interactions.

Adaptive Management Working Group and Technical Team

A Statewide Adaptive Management Working Group (S-AMWG) was established in consultation with the SGIT to provide an appropriate means for state and federal agencies to cooperatively assess and address abnormal fluctuations in populations and habitats should those events occur. Members of this team include representatives of BLM, Forest Service, USFWS, NRCS (as appropriate) and an equal number of representatives from the State of Wyoming (as appropriate).

Generally, Local Working Groups (LWG) will identify when and where a trigger may be tripped and communicate a need for review to the S-AMWG. In consultation with the Local Working Group, the S-AMWG would then assemble a Technical Team comprised of local specialists best equipped to develop a response strategy aimed at reversing the trigger. The primary purpose of this Technical Team is to evaluate potential causal factors and where appropriate, suggest a response strategy to address the factor(s).

In some instances, a single causal factor may be unidentifiable (e.g.- drought combined with a fire) or beyond control of management (e.g.- weather). Upon any indication of a potentially tripped trigger, the Adaptive Management Working Group shall notify holders of permits, leases, rights of way or easements of the situation and involve them in the causal factor assessment and response strategy development.

The Adaptive Management Working Group will meet annually to review all data collected in the prior year regarding Greater Sage-grouse populations and habitats to continue to refine assessments and responses until the trigger is no longer tripped.

Adaptive Management Triggers

Adaptive management triggers are essential for identifying when changes might be needed in order to continue meeting Greater sage-grouse Conservation objectives laid out in Executive Order 2019-3 and federal land management plans. The trigger data will be analyzed annually as soon as it becomes available. Soft and hard triggers are based on three metrics:

1. Number of active leks;
2. Acres of available habitat; and
3. Population trends based on annual lek counts.

Soft Triggers

Soft triggers are indicators that management may not be achieving the intended results or that unanticipated changes to populations or habitats have occurred that might place habitats or populations at risk. The soft trigger is any departure from normal trends in habitat or population in any given year. Metrics include, but are not limited to: annual lek counts, wing counts, aerial surveys, habitat monitoring, and Density Disturbance Calculation Tool (DDCT) evaluations.

For population metrics, normal population trends are calculated as the five-year running average of annual population counts. This framework calls for management changes if monitoring identifies negative population and habitat anomalies in order to avoid crossing a hard trigger threshold.

Hard Triggers

Hard triggers are indicators that management is not achieving desired conservation results. Hard triggers would be considered a catastrophic indicator that the species is not responding to conservation actions, or that a larger-scale impact or set of impacts is having a negative effect. Within the range of normal population variables (five-year running average of annual population counts), hard triggers shall be determined to take effect when two of the three metrics exceed 60% of normal variability for the area under management in a single year, or when any of the three metrics exceeds 40% of normal variability for a three year time period within a five year range of analysis. A minimum of three consecutive years in a five-year period is used to determine trends (e.g.- years one, two and three, years two, three and four, years three, four and five).

Adaptive Management Response

Soft Trigger Response

Soft triggers require immediate monitoring and surveillance to determine what caused the trigger (aka causal factors) and may require cutting back on activities in the short- or long-term, as allowed by law. If a specific project's activities are identified as the causal factor, then the project level adaptive management strategies will identify appropriate responses. If causal factors are not attributable to a specific project, then the management agency in consultation with the AMWG will implement an appropriate response strategy or make adjustments at a larger regional or state-wide level.

Should review of the monitoring data identify that multiple soft triggers have been tripped in one core area, or the same triggers have been tripped across multiple core areas, the Technical Team will be tasked with verifying the scope and intensity of the trends. Once the analysis of the trends has been completed by the technical team and reported back to the AMWG, the AMWG will make recommendations to the appropriate land managing agency regarding an interim adaptive management strategy to be implemented.

Hard Trigger Response

Where it is suspected that a hard trigger has been tripped, it should be reported to the appropriate LWG for review and confirmation. Upon determination that a hard trigger has been tripped, the LWG should

notify the S-AMWG. Within 14 days of notification from the LWG that a hard trigger has been tripped, the AMWG will convene to develop an *interim response strategy*, or review suggested strategies from the LWG, and start an assessment to determine the causal factor(s).

Should a hard trigger be tripped, the trigger and any recommended adaptive management strategy being implemented will be shared with the appropriate neighboring state(s). Should the need arise for implementation of a multi-state adaptive management strategy, the AMWG will coordinate to develop an effective response.

Interim Strategy

An interim response strategy will be developed, and implemented to the extent permitted by law, within 90 days of determination that a hard trigger has been tripped. The Technical Team will be consulted to identify the scope and scale of the interim strategy. Based on the recommendation of the AMWG, the federal agencies should implement an interim response strategy through an Instruction Memorandum or other management mechanisms to direct management until the causal factor(s) and appropriate response(s) can be determined.

The interim response strategy should consist of appropriate management measures undertaken at the project stage, supported by the best available science, to address the specific metric which has been tripped and may include deferral of some activities as appropriate. If it has been identified that more than one core area has the same hard triggers being tripped, or is trending towards triggers being tripped, the interim strategy will be implemented at the appropriate scale.

Causal Factor Assessment

The causal factor assessment will be completed within 180 days of determination that a hard trigger threshold has been crossed. Once the causal factor assessment is completed by the AMWG, the interim response strategy will be modified to adequately address the causal factors in consultation with the Technical Team. The AMWG would define a process to review and reverse adaptive management actions once the identified causal factor is resolved (e.g., returning to previous management once objectives of interim management strategy have been met). If a causal factor or factors cannot be identified, the interim response strategy should stay in place until the cause can be determined and any new planning decision can be implemented.

Small Leaks

Small leaks will be given separate consideration. Due to geographic variations, a definition of “small” is not provided; determination of “small” will be made by the AMWG based upon recommendations of the scientific community.

Generally, “small” is considered 10 or fewer males for a three year time period within a five year range of analysis. If a trigger is hit based upon such a lek, then the AMWG will evaluate the site-specific circumstances and determine appropriate remedial action.

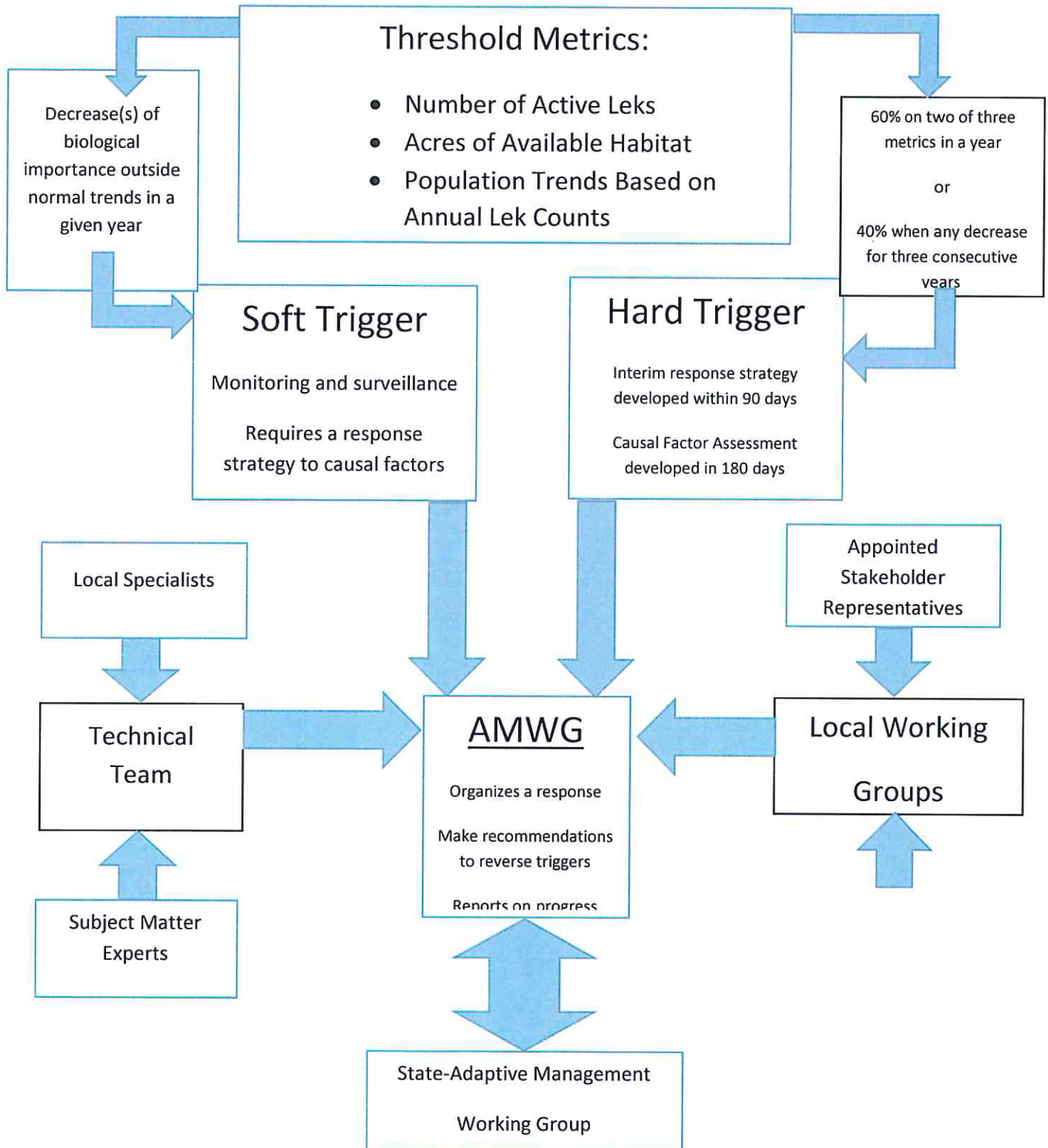


Figure 1: Wyoming Adaptive Management Workflow Diagram



STATE OF WYOMING
EXECUTIVE DEPARTMENT
EXECUTIVE ORDER

Order 2020-1

WYOMING MULE DEER AND ANTELOPE MIGRATION CORRIDOR PROTECTION

WHEREAS, Wyoming is home to the longest intact mule deer and antelope migration corridors in North America, and

WHEREAS, migration corridors are essential to the maintenance of viable mule deer and antelope populations, and

WHEREAS, wildlife that utilize these corridors are highly valued by all people and contribute significantly to the economy and reputation of Wyoming, and

WHEREAS, land associated with migration corridors provide the state and nation with multiple-use opportunities that are integral to Wyoming's revenues, jobs, and way of life, and

WHEREAS, private landowners play a key role in maintaining migration corridors, and

WHEREAS, county governments play a significant role in land use planning and in conserving wildlife habitat and open spaces, and

WHEREAS, all wildlife in Wyoming are property of the State and the Wyoming Game and Fish Department is charged with managing all of the State's wildlife in trust for the benefit of the citizens of the State and does so with a science-based approach, and

NOW THEREFORE, to preclude any need for more regulatory action, or action by agencies beyond the purview of the State and without coordination with the State; pursuant to the authority vested in me by the Constitution and Laws of the State, and to the extent such actions are consistent with the statutory obligations and authority of each individual agency, including those found in the Wyoming Regulatory Takings Act, Wyoming Statutes §§ 9-5-301 through 9-5-305, I, Mark Gordon, Governor of the State of Wyoming, do hereby issue this Executive Order providing as follows:

1. The Sublette Mule Deer, Baggs Mule Deer, and Platte Valley Mule Deer Migration Corridors are hereby designated (Appendix D).
2. The process whereby other corridors could be designated in the future is established (Appendix B).
3. Nothing in this Executive Order and the attached Appendices shall apply to actions taken by landowners on their private land or restrict state-issued permits a landowner seeks on his or her own land or minerals. Private landowners should be encouraged and incentivized to manage for the functionality of migration corridors.
4. On privately-owned lands, for actions of a third-party developer requiring a state-issued permit, private landowners and the third-party developers are encouraged to finalize a surface-use agreement and to consult with the Wyoming Game and Fish Department (WGFD) concerning the permitted activities.
5. Each executive branch agency in Wyoming shall exercise its legal and regulatory authorities to protect the annual movement of mule deer and antelope between seasonal ranges in their respective designated migration corridors. State agencies shall follow the procedures outlined in this Executive Order, while recognizing that adjustments to management may be necessary based upon local conditions, opportunities, and limitations (Appendix C).
6. Where surface disturbance inside of designated corridors is proposed within, near, or adjacent to areas that have already been disturbed or are naturally unsuitable, state agencies should work to maintain habitat and minimize future disturbance by locating proposed disturbances within such disturbed or unsuitable areas (Appendix C).
7. Subject to paragraphs 3 and 4 above, any surface-disturbing activities requiring a state-issued permit within designated corridors should be permitted in a manner that maintains the continued functionality of a designated migration corridor (Appendix C).
8. Subject to paragraphs 3 and 4 above, any state-permitted activity within designated corridors during the migration period should be conditioned so as not to impede the functionality of the corridor by mule deer and antelope (Appendix C).
9. Valid existing rights shall be recognized and respected. Existing activities will be conducted and conditioned as specified in the original authorizing permits or instrument(s) for such activities (Appendix E).

10. For recreational activities inside of designated migration corridors requiring a state permit, permitting agencies shall issue permits with the goal of maintaining migration corridor functionality, and minimizing impacts to animals using the designated corridor during migration periods. State agencies shall make comments for federally-issued recreation permits within designated corridors with the same goal (Appendix C).
11. Boards of county commissioners may revise their land use plans to be consistent with this Executive Order. The State of Wyoming encourages this consideration and supports county governments should they develop a template for updating land-use plans consistent with this Executive Order.
12. The Wyoming Department of Transportation (WyDOT), in conjunction with the Wyoming Game and Fish Department as well as other state agencies such as the Wyoming Wildlife and Natural Resource Trust, shall plan and engineer state and federal highway and associated projects that intersect designated migration corridors to avoid, minimize and mitigate vehicle/wildlife collisions, facilitate big game movement, and support migration connectivity to the extent practical. WyDOT shall include opportunities to address wildlife/roadway infrastructure projects in its annual planning efforts.
13. This Executive Order is to be construed narrowly and limited to the habitat and activities specifically described herein.
14. This Executive Order, together with its attachments, constitutes Wyoming's strategy for managing designated migration corridors and their habitats. Appendices to this Order are expressly adopted and incorporated by reference herein, and each shall have the full force and effect of this Executive Order. Amendment to any Appendix may be made without requirement that the full Executive Order be amended.

Given my hand and the Executive Seal of the State Of Wyoming this 13 day of February 2020.

A handwritten signature in blue ink, appearing to read 'Mark Gordon', is written over a horizontal line.

Mark Gordon
Governor

Appendix A

Definitions

Identified Migration Corridor: The geographic area used by big game for seasonal movements between summer and winter ranges that has undergone research by, or been approved by, the Wyoming Game and Fish Department (WGFD) to delineate the habitat and the components of habitat. Identified migration corridors are not subject to the management and processes outlined in this Executive Order, except as provided in Appendix B.

Designated Migration Corridor: An identified mule deer or antelope migration corridor that was nominated for designation by the Wyoming Game and Fish Commission (WGFC) and was subject to the process for designation outlined in this Executive Order, including the Sublette Mule Deer, Baggs Mule Deer, and Platte Valley Mule Deer Corridors, which are formally designated by the signing of this Executive Order.

High Use Area: Segment or portion of a mule deer and antelope migration corridor used by 20% or greater of the Global Position System (GPS)-collared animals.

Medium Use Area: Segment or portion of a mule deer and antelope migration corridor used by 10-20% of the GPS-collared animals.

Low Use Area: Segment or portion of a mule deer and antelope migration corridor used by less than 10% of the GPS-collared animals.

Stopover Areas: The area used the majority of time by GPS-collared animals to forage and rest during spring and fall migration.

Bottleneck: Any portion of a mule deer and antelope migration corridor where animals are significantly physically or behaviorally restricted.

Biological Risk Assessment: Analyses of the potential biological risks, foreseeable biological threats, and conservation opportunities that exist in the migration corridor by the Wyoming Game and Fish Department. An assessment is developed with public stakeholder input and updated as conditions change on the landscape.

Migration period: The specific dates during which migrating mule deer and antelope are physically present within a portion of a designated migration corridor, which can vary from year-to-year.

Migration Corridor Functionality: Maintaining connectivity between summer and winter ranges to allow mule deer and antelope movements conducive to necessary foraging and rest during migration, based on the best-available scientific data.

Appendix B

Corridor Designation and Review Process

Wyoming is home to numerous migration corridors. The identification of corridors may benefit herd management and overall herd fitness. It is the formal act of designating, rather than identifying, a corridor that warrants limitations of human use to conserve those corridors. Not every migration corridor requires designation to ensure the health of the animals and/or the herd that uses it.

The Wyoming Game and Fish Department (WGFD), as the agency with authority over the management of wildlife, shall lead research efforts on migration and identification of big game migration corridors. A summary of the results of WGFD research regarding migration corridors will be available to the public so long as the information is not 'sensitive wildlife location data' within the meaning of Wyoming Statute § 16-4-203. A minimum of 3 years of research on a herd's migration patterns, which includes the collaring of a representative sample of animals from the herd, is necessary for a corridor to be considered for designation. The data gathered must be combined with scientifically-sound analysis techniques. Long-term knowledge of local WGFD personnel, landowners and other stakeholders is used in addition to this data to validate the identification of mule deer and antelope migration corridors, stopover areas, and mule deer and antelope migration bottlenecks. The WGFD will establish and utilize science-based criteria for determining whether an identified corridor necessitates consideration of designation.

Prior to designation, any recommendation for the deferral of a mineral lease to the Bureau of Land Management or the Office of State Lands and Investments (OSLI) in an identified migration corridor shall be made at the sole discretion of the Governor, in consultation with WGFD, OSLI, and commissioners from the county or counties where the lease is located.

The following process shall occur prior to any formal migration corridor designation:

1. WGFD identifies a migration corridor. During the initial identification, the following information shall be included in a publicly-available report:
 - a. Mule deer or antelope pathway used to delineate the identified corridor and the underlying scientific information available that has informed the WGFD identification;
 - b. The location, acreage, and land ownership of identified stopover areas;
 - c. The location, acreage, and land ownership of identified bottlenecks;
 - d. The location, acreage, and land ownership of identified high-use, medium-use, and low-use areas within the corridor;
2. If WGFD's initial report on an identified corridor determines designation may be warranted and the corridor meets established and publicly available criteria, the agency will develop a Biological Risk Assessment. Any assessment will be developed with appropriate county, state,

and federal agency partners and updated as conditions warrant. The Biological Risk Assessment should not take more than 12 months to prepare and will involve public meetings in the region of the identified corridor. WGFD shall, consistent with its statutory authority, notify private landowners of identified migration corridors that intersect with that private landowner's property.

3. WGFD presents the identified corridor and Biological Risk Assessment to the Wyoming Game and Fish Commission (WGFC).

4. WGFC shall provide an opportunity for public comment regarding the identified corridor and the Biological Risk Assessment.

5. After considering the identified corridor, the Biological Risk Assessment, and public comment, the WGFC shall vote on whether to recommend to the Governor that an identified corridor be formally designated.

6. The Governor then determines if a designation will proceed. If the determination is made to proceed, the Governor will appoint an Area Working Group in consultation with the county commissioners representing any county through which an identified corridor passes, and if the corridor passes through the Wind River Indian Reservation, tribal representatives. Membership of the area working groups will include one county commissioner from each affected county, and if affected, a representative from the Eastern Shoshone and a representative from the Northern Arapaho Tribes. Other working group members will include up to seven individuals, at least two of whom will represent hunting, conservation, and wildlife, one will represent motorized outdoor recreation users, at least two of whom will represent agriculture, and at least two will represent industrial users including oil, gas, mining and renewable energy. All members of the Area Working Group will be appointed at the sole discretion of the Governor.

Area Working Groups will meet in public and must complete their work in a timely manner. Their work will be completed in the timeframe specified by the Governor, and will be focused on those topics specified by the Governor including, but not limited to: WGFD's risk assessment, corridor components, potential impacts on socio-economic conditions of the region (jobs, county and state revenues, population, incomes, etc.), conservation opportunities, highway projects, and other factors appropriate to the potential designation. They will also be directed to make recommendations on potential management after designation related to contested permits.

These recommendations should take into consideration any county commission plans established to manage development inside the corridor as well as any BLM or Forest Service planning documents.

7. Final Area Working Group analysis and determination shall then be delivered to the Governor who either formally designates the identified corridor, returns the recommendation to WGFD for further refinement, or formally rejects the proposal for designation.

8. In consultation with affected county commissioners and tribes, an Area Working Group of similar membership to that outlined above will be convened within five years of designation of a corridor. For the Sublette Mule Deer, Baggs Mule Deer, and Platte Valley Mule Deer Corridors the Governor will convene area working groups within two years. These groups will review the effectiveness of corridor designation on the migratory herd, opportunities for improved conservation, and evaluate the impacts of all restrictions on development and use of lands encompassed in the designated corridor. Each Area Working Group will report their findings to the Governor along with any other relevant recommendations.

Appendix C

New Infrastructure, Recreational Use and Development Conditions

Wherever possible, development, infrastructure, and use should occur outside of designated corridors. Inside corridors, state regulatory agencies should support the continued functionality of designated migration corridors by conditioning permits to avoid and minimize impacts from development or use allowed within the corridor.

Applicants for state-permitted projects and state-permitted uses within a designated migration corridor are required to consult with the Wyoming Game and Fish Department (WGFD) as part of the permitting process. After a consultation with the proponent, if the WGFD determines the proposed project or use will have adverse effects on migration corridor functionality the agency will work with the permit applicant to address these effects and provide recommendations to the proponent within five days. Permit applicants shall have access to all information considered in developing recommendations. Upon completion of that consultation, if the applicant does not agree with the recommendations of the WGFD it must prepare a letter outlining concerns with the WGFD recommendations. The WGFD will then deliver the recommendation and, if applicable, the accompanying letter to the Governor's Office within two days. The Governor shall review these materials and recommend a resolution of the applicant's concerns to the WGFD and the applicant. After conferring with the applicant and making any appropriate revisions, the WGFD shall submit the final recommendation to the appropriate permitting agency. Upon final issuance of the state permit, a single correspondence will be forwarded to appropriate federal, state, and county permitting agencies.

The following components of a corridor have unique management considerations for all development and uses:

Bottlenecks: No surface disturbance or seasonal-human presence shall be permitted within bottlenecks, and state agencies shall restrict uses to those that do not impair migration corridor functionality, except in cases necessary for human safety.

High Use Areas: Surface disturbance and human presence shall be limited to levels that maintain the corridor functionality and do not cause migrating mule deer or antelope to avoid or leave the high-use portion of the designated corridor during migration periods.

Stopovers within High Use Areas: Within stopovers in high-use portions of the corridor, surface disturbance should be avoided. Permitted human activities during migration periods should be limited or avoided.

Low and Medium Use Areas and Stopovers Within: Development and use can occur. Minimization, including project alterations, recreational permit restrictions, and other efforts that can be shown to reduce impacts to these areas should be considered where appropriate and will take into account whether an area is a low or medium use area. Surface disturbance, development and human presence during migration periods should be limited. Within low and medium use areas special consideration should be given to stopover areas to minimize disturbances.

Federal leases, permits, rights of way, or other authorizations issued after designation of any corridor by the Governor should be issued to conform with the provisions of this Executive Order. State executive branch agencies will coordinate and cooperate with federal agencies and comment on federal agency actions in a manner that is consistent with this Executive Order.

Appendix D Maps

Maps and specific shapefiles of the three designated migration corridors are available at <https://wgfd.wyo.gov/wildlife-in-wyoming/migration>

Appendix E Valid Existing Rights

Within designated corridors existing rights shall be recognized and respected in furtherance of this Executive Order. Authorized activities, which are existing or permitted prior to the Governor's designation of a corridor are not subject to this Executive Order. Examples of existing activities include oil and gas development, mining, wind energy development, solar development, permitted recreational uses, transmission lines, processing facilities, state and federal highways, and other uses that were in place prior to the designation of the migration corridors and specific components of the corridors. State-permitted activities, including Industrial Siting Council permitted projects, within a defined project boundary (such as a pre-existing oil and gas unit, mine permit, state or federal highway right-of-way, utility or other right-of-way, existing permitted recreational use etc.) shall be allowed to continue within the

existing boundary subject only to the terms, conditions and authorizations specified for the activity.

For purposes of this Executive Order, "Pre-existing Oil and Gas Units" means oil and gas units established prior to the designation of any corridor by the Governor and includes applications for permit to drill, drilling and spacing units, and federal exploratory units. Existing infrastructure within pre-existing Oil and Gas Units within designated migration corridors is not subject to regulation pursuant to this Executive Order. However, new development within pre-existing Oil and Gas Units inside bottlenecks should not be allowed.

Each situation should be addressed with flexibility and an understanding of the local landscape, habitats and other factors. Proponents and agencies are still expected to minimize surface disturbance whenever possible and follow all other existing, applicable lease stipulations.

Mining: Leasable Coal Mining Operations; Coal mining activities authorized prior to the designation of a corridor by the Governor and included within the approved permit boundary will be allowed to continue under the regulatory and permit-specific terms and conditions authorized under the Wyoming Environmental Quality Act (WEQA) and the Surface Mining Control and Reclamation Act of 1977 (SMCRA) as administered by the Wyoming Department of Environmental Quality (WDEQ). Leasable, Locatable, and Saleable Non-Coal Mining Operations and Non-Coal Solid Mineral mining activities within a permit boundary approved prior to the designation of a corridor by the Governor are not subject to this Executive Order.

Existing, permitted/authorized corridors and rights-of-way (ROWs) for roads, power lines, pipelines, and other utilities (e.g.- water, sewer) are considered valid existing rights.

Activities and maintenance within ROWs or corridors for transmission, distribution power lines, substations, pipelines, and other utilities established and authorized prior to the date of designation by the Governor are not subject to this Executive Order. Activities within ROWs for state and federal highways established and authorized by the Wyoming Department of Transportation and the Federal Highway Administration prior to designation of the corridor by the Governor are not subject to this Executive Order.

Any application to alter or amend existing oil and gas permit authorizations, rights of way, wind permits, solar permits, recreational use permits, or oil and gas lease terms (including but not limited to suspensions of operations, and extensions of the lease term), within any corridor designated by the Governor shall be considered a new use and the terms of this Executive Order apply to the granting of such alterations or amendments.

State executive branch agencies will coordinate and cooperate with federal agencies and comment on federal agency actions that alter or amend existing federal authorizations within designated corridors to ensure compliance with this Executive Order.

Appendix F Agriculture

Functioning ranches and agricultural lands provide crucial ecological and habitat services to all wildlife, including mule deer and antelope. Economically viable and well-managed private lands are valued because they provide open space, forage, water, and security for big game herds and migration habitats.

To aid in the continued existence of open spaces, the Wyoming Department of Agriculture and other State agencies shall use research and knowledge to facilitate the continued existence of functioning ranches and agricultural lands that provide crucial ecological and habitat services to wildlife and ways to recognize the value of ecosystem services.

State agencies should work with private landowners to build upon efforts to conserve migration corridor habitats.

Coordination

To aid in the conservation and enhancement of migration corridors the State of Wyoming will support voluntary enrollment in landowner-focused programs. These may include federal, state, local, and private conservation funds to support conservation easements, habitat improvements, and investments on projects and initiatives inside of designated and identified corridors.

Range improvement projects

In identified and designated migration corridors, the Wyoming Game and Fish Department shall provide information to landowners who voluntarily seek assistance in siting new range improvement projects, such as water sources and fences, and in modifying existing range improvement projects.

Alternative funding programs for private landowners

The Wyoming Game and Fish Department and the Wyoming Wildlife and Natural Resource Trust, as well as other state agencies, shall explore opportunities to support private landowners that sustain and enhance big game migration corridor habitats. This includes evaluating alternative funding opportunities, such as the potential to develop a habitat leasing/conservation leasing program.

Management flexibility on federal grazing allotments

State agencies that review and assist in developing Allotment Management Plans and National Environmental Policy Act (NEPA) documents related to grazing management and associated decisions shall work with land managers, permittees, and federal land management agencies to identify opportunities and implement voluntary actions to improve both habitat associated with big game migrations and livestock operations through management flexibility and adaptive

management. This Executive Order shall in no way restrict or impede the right and ability of permittees to graze livestock on federal and state lands.

Appendix G Research

Furthering research on migration corridors is imperative as is maintaining the research and upkeep on information related to designated corridors to ensure management is influenced by the best-available science.

The Wyoming Game and Fish Department, the University of Wyoming and Wyoming community colleges should continue to provide the public with research on migration and seasonal habitats.

Specific topics that may be explored, but are not limited to, include:

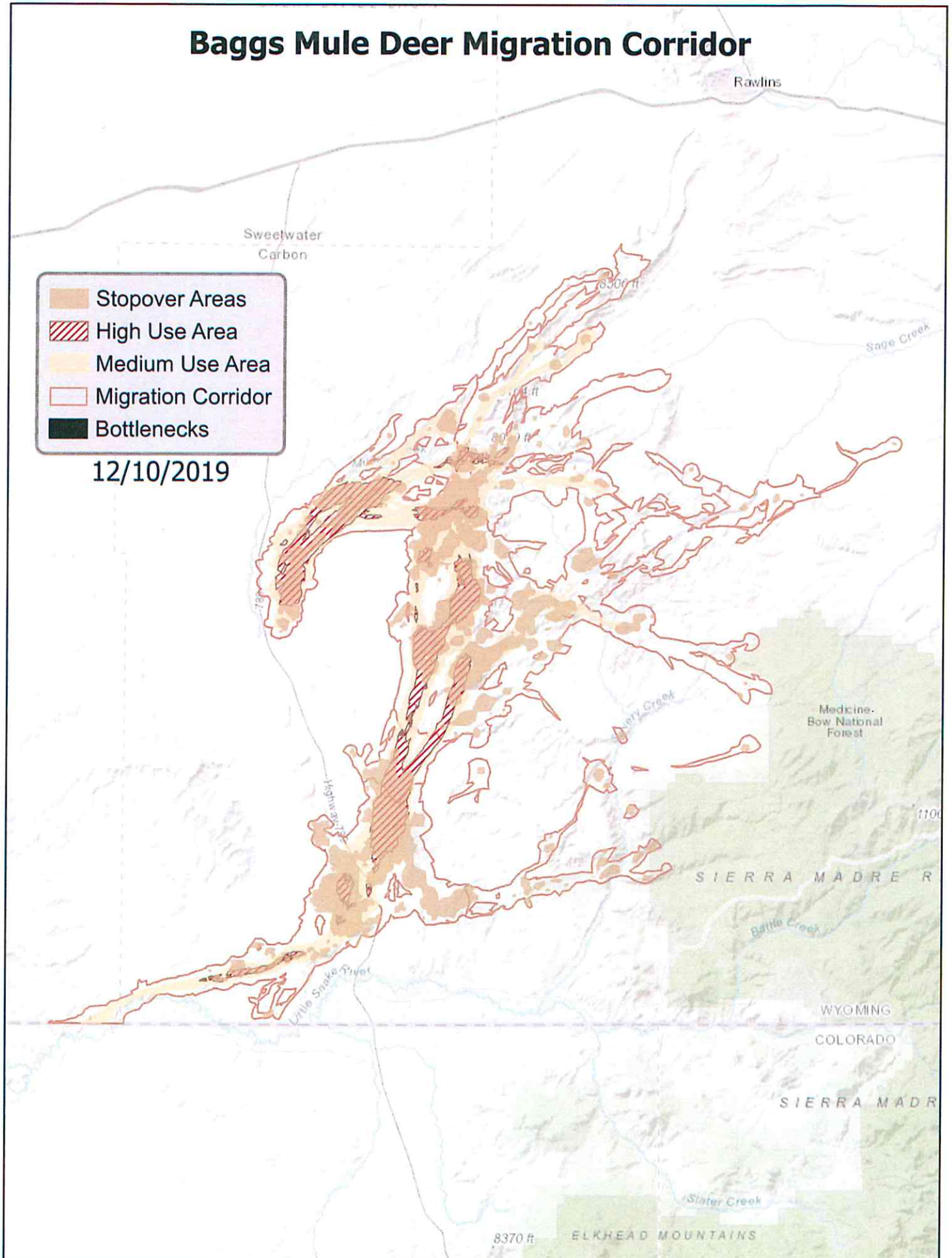
- Stopover areas and their use by mule deer and antelope. Including response of animals to the existing development inside of stopover areas, deer and antelope's cause for selection of stopover areas, why these migrating animals select specific stopover areas, impact of reclamation, and change of stopover size and habitat over time.
- Technologies for decreasing vehicle-caused mortality.
- The impact of human recreation inside of migration and other seasonal habitat.
- Competition between deer and pronghorn with the following other species: elk, predators, invasive and noxious weeds, and feral horses. (As data emerges from currently ongoing studies, the Game and Fish Department and Commission should develop recommendations to manage, mitigate and, where possible, abate interspecies competition and other issues that affect corridor function and herd health and viability.)
- The possibilities for mitigation as a tool to maintain the functionality of a corridor.
- The impacts of Chronic Wasting Disease on the functionality of a corridor, including comparative analysis of the health of migrating wildlife and non-migratory animals.
- Research related to the potential impact of human development and use inside low and medium areas of migration corridors.

Appendix H State Trust Land

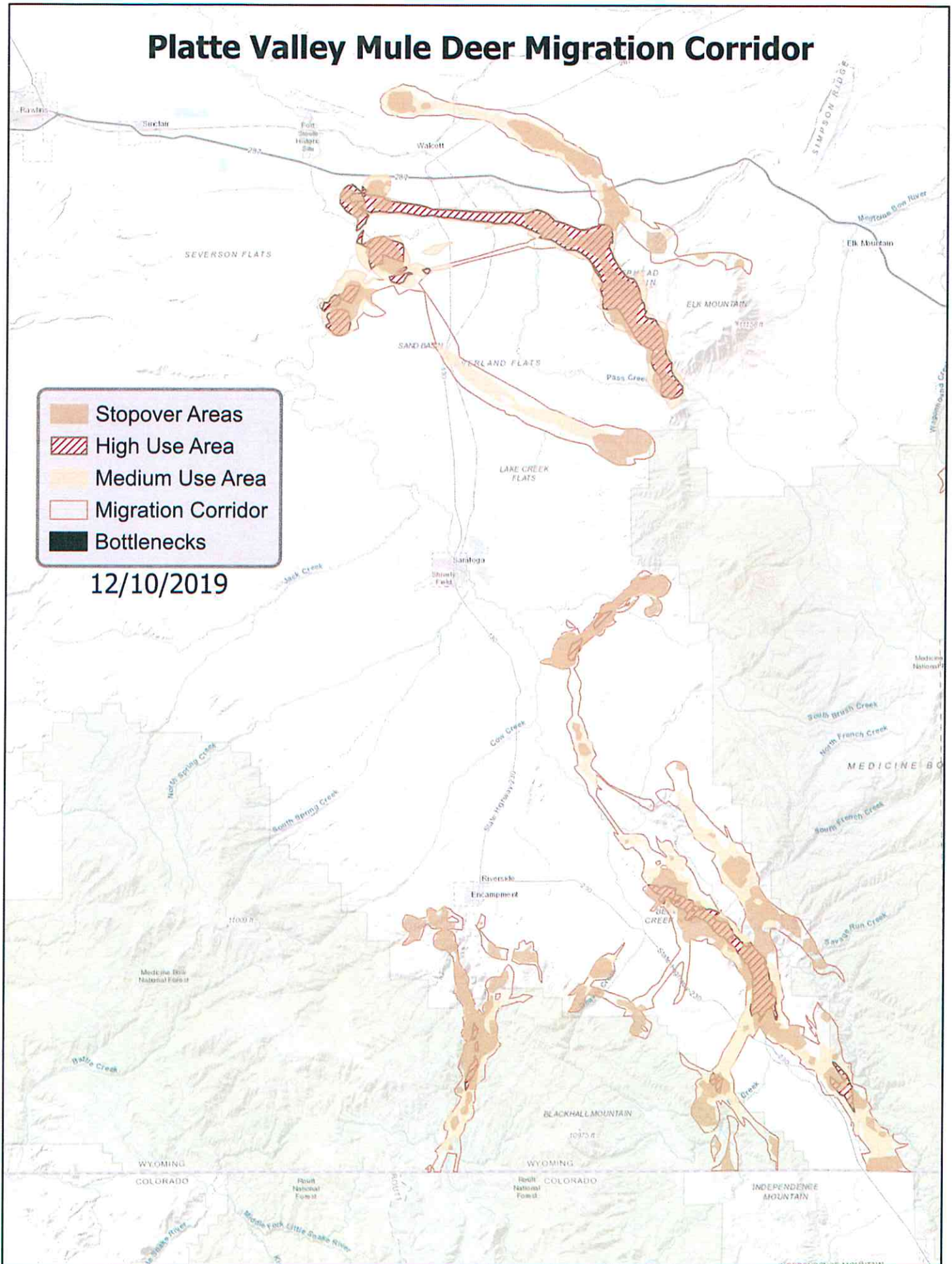
In fulfilling its constitutional and fiduciary duties (Wyo. Const. Article 18, Section 3), the Wyoming Board of Land Commissioners may consult with the Wyoming Game and Fish Department on a site-by-site basis to mitigate impacts to a designated migration corridor, including strategies to avoid bottleneck and stopover areas to maintain habitat functionality when considering activities on state trust land. The Wyoming Board of Land Commissioners has adopted the following stipulation:

This lease is issued subject to, and conditioned upon, lessee's acknowledgment and agreement that the parcel of land encompassed by this lease is located wholly or partially within an Ungulate Migration Corridor as designated by [the Governor.] Exploration and development activities shall be undertaken and managed as a controlled surface use. Prior to exploration and development, lessee is required to submit to WGFD a plan to protect and/or mitigate impacts to the migration corridor including strategies to avoid bottleneck and stopover areas. Plans must be approved by the Director, in consultation with the WGFD, before exploration and development activities can occur. All attempts should be made to avoid and minimize impacts to the surface in order to maintain habitat functionality within the ungulate migration corridor.

Baggs Mule Deer Migration Corridor



Platte Valley Mule Deer Migration Corridor



Sublette Mule Deer Migration Corridor

